
Writing Our Rights



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This journal is dedicated to Ethiopian women and our struggle for freedom.

Introduction

As a feminist movement and a leading organization working on gender equality in Ethiopia, Setaweet believes that one of its main contributions towards gender equality is to create a cache of narratives on gender in Ethiopia along its principle aim of articulating Ethiopian feminisms. The Women's Scholars Program that Setaweet implemented in 2018-2019 with the support of the Deepening Democracy program at SOAS offered academic support to a selected group of Ethiopian women academics from five universities, many of whom shared their research findings at the first Ethiopian all-women academic conference held in November 2019. Building on the interest created by the conference and the demand for strategic support by Ethiopian women academicians towards publishing their research products, Setaweet has worked to create an Ethiopian feminist journal.

In an effort to advance gender equality and enhance research methodologies of all Ethiopian women, Setaweet has published the inaugural issue of Feminist Ethiopia journal in collaboration with Parliament 4 People program at SOAS university of London. The inaugural issue is a women-only issue. The journal offers a great opportunity to address existing gaps in research publishing in academia. As the Ethiopian academia is dominated by men, most of the research that is produced focuses on issues that only men deem to be important. Academic research about gender is almost nonexistent because gender, as a category of difference is not sufficiently politicized. As a result, gender inequality and its impact on social justice as well as gaps in economic and social development are rarely investigated. The scarcity in academic research and publishing has created gaps in Ethiopian women's learning and critical engagement towards gender.

Writing Our Rights consists of 10 academic articles that cover a wide array of contemporary gender issues that affect Ethiopian women such as culture of representation, history of exclusion and instability, Imagining deeper democracy through media and arts, and the relationship between Politics and Ethiopian Society. 9 of the articles are in English and the remaining one is in Amharic. This inaugural issue is a women-only issue, which means only women participated from the conception to the execution of the journal.





ADDOOYYEE:
ERADICATING GENDER-BASED
VIOLENCE THROUGH THE BOND OF
SISTERHOOD



Addooyyee: Eradicating Gender-Based Violence through the Bond of Sisterhood

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Abstract

Among the several institutions that make up the traditional Oromo society, the Addooyyee institution, made up of adolescent girls, is an important one. This institution is a voluntary sisterhood among girls of the same locality that is formed once prospective members pledge an oath. This sisterhood starts at adolescence and lasts until marriage. The institution is highly egalitarian and emphasizes solidarity above all else. It is a platform for the girls to discuss any problems they are facing or any major life decisions they must make. Marriage, personal issues, economic woes and family problems are all issues that the sisterhood is uniquely capable of solving along with serving as a safe space to discuss gender-based issues. In this space, the girls deliberate on issues they are interested in without fear.

The highly developed discussion mechanisms and the solidarity amongst the Addooyyees creates an atmosphere in which the girls uplift one another and count on each other unconditionally. It is an institution that we should strive to revitalize. The more that women and girls stand in solidarity, the easier it is for them to overcome the challenges and hurdles they face.

Key Words - Addooyyee, girls, safe space, sisterhood

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Introduction

Women and girls are the most vulnerable groups in most societies; they are considered weak compared to men. Such notions are the results of deeply rooted cultural practices that have existed for centuries, many of which are violent. These practices constituting violence against women and girls include acid throwing, breast flattening, cosmetic mutilation, dowry and bride prices, early/forced marriage and marriage by abduction/rape, female genital mutilation/cutting (FGM/C), ‘honor’ crimes, corrective rape, female infanticide, ritual sexual slavery, virginity testing, practices related to initiation or menstruation, particular widowhood rituals and accusations of witchcraft levied at older women.³ For the most part, these cultural practices are carried out without the consent of women, and especially without the consent of those women and girls who are the subjects of these practices. These cultural practices are condemned by human rights advocates for violating the fundamental rights of women.

To curb these and other forms of violence that women across the globe face, women and girls have been showing solidarity in different forms. Among these is a movement that started in the United States in 2016 called the #MeToo movement. Originally, this movement was coined by a black activist named Tarana Bark, a survivor of violence herself, to create universal solidarity among women who are subjected to different forms of abuse and attacks.⁴ The movement supports and gives power to survivors by encouraging women to speak up about sexual harassment and abuse and to expose perpetrators and hold them accountable for their actions.⁵ This long-lasting solidarity among women gives them the ability to stand together and share in each other’s pain.

In Ethiopia, one prime example of an institution based on sisterhood and solidarity is Addooyee, an Oromo sorority institution for girls to organize, unite, learn, acquire, and maintain their power to protect their rights and defend themselves.⁶ It is derived from the Gadaa system.⁷ The Addooyee institution has been a staple of the Oromo female experience for a very long time and was formed to strengthen the ties between girls who voluntarily join. With the freedom to organize in a safe space, the girls stand in solidarity in the fight against injustice and support each other economically, psychologically, emotionally, and socially.⁸

Addooyee Institution: An Embodiment of Sisterhood and Solidarity

Addooyee is a platform meant for unmarried girls in Oromo communities⁹ and goes by different names depending on the area. Some of the names of the institution include addaarroo, goshoo, daraboo, miilto and mari. Addooyummaa is the word for the friendship that the Addooyees form.

Girls are not born into the institution; they willingly become Addooyee at a certain age.¹⁰ The institution is formed solely by girls who are not married. The underlying base of the relationship is consent, genuine love, intimacy, understanding, and care.¹¹ The relationship can also be formed between girls who are related by blood. For Addooyee to be operational there must be a minimum of two girls with no limit to the maximum number of members.

3. UN General Assembly, Convention on the Elimination of All Forms of Discrimination Against Women, December 18, 1979, United Nations, Treaty Series, vol. 1249, p. 13, available at: <https://www.refworld.org/docid/3ae6b3970.html>

4. <https://www.hrw.org/news/2020/03/12/weinstein-rape-sentence-us-boosts-metoo-movement>

5. Megan Murphy (2019) Introduction to “#MeToo Movement”, *Journal of Feminist Family Therapy*, 31:2-3, 63-65, DOI: 10.1080/08952833.2019.1637088

6. Martha Kabite (July 2020), Addooyee, Ethiopian press Agency. Retrieved from <https://www.press.et/afanoromo/?p=8092#>

7. Ibid

8. Ibid

9. Martha Kuwee Kumsa (2013) *Songs of exile singing the past into the future*, Duudhaa Publishing, Ontario (revised edition), p.69

10. Supra note 7, p.65

11. Ibid

During the establishment of the Addooyyee institution, girls come together and make a promise of Addooyyummaa (friendship).¹² Addooyyee is a lifetime bond of sisterhood that is created after taking an oath marking the establishment of the institution.¹³ When the girls decided to form the institution they sit and discuss about what the institution should look like. They consult on how the institution is going to be effective and how it would support their growth. They also decide upon the cadence in which they plan to meet, where they will meet, discuss about their education, whom to be with, whom not to be with, etc.

After consulting on the details of the union, they go to a riverbank where the Callaadduu (tall grass) grows and uproot it independently.¹⁴ Then, they take the oath holding the Calladduu they uprooted.¹⁵ Although Addooyyees uproot the grass independently, they hold it together when they take the oath to reinforce their unity. The first oath they make is not to call each other by their formal names. The oath is as follows:

The first girl: "Addooyyee, Addooyyee"

The second girl: "Yes, Yes"

The first: "If I ever use your real name, may death call me"

The second girl: "May death call me as well"¹⁶

Depending on the number of girls, every Addooyyee will take the oath and repeat it one after the other. The oath takes place once at the beginning of the relationship.

Afaan Oromoo version is as follows:

Dubara isii duraa: Addooyyee, addooyyee

Dubara isii lammataa: Oo koo (yee)

Dubara isii duraa: Yoon lammata maqaa kee dhahe, maqaa koo duuti haa dhooftu.

Dubara isii lammataa: Koollee duuti haa dhooftu.¹⁷

The institution has then officially been initiated and the bond has now been formed. Now, they are called Addooyyee. They make the second oath to strengthen their relationship.

Walii kakanna, kakuu addooyyee	Let us take an oath, an oath of friendship
Kan hin banne hin cabne	One that shall not be lost nor broken
Akka calladduu kanaa	Like this Callaadduu
Waaqni Waliin nu haa bareechu	Let God make us beautiful together
Jaalalli keenya haa jiidhu, haa lalisu	May our love grow
Aannaniifi garaa nu haa godhu	Let it make us the milk and the stomach
Nuti ammaa booda addooyyeedha	We are Addooyyee from here on
Addooyyee jennee wal waamna	We shall call each other Addooyyee
Maqaa dhalootaa wal hin waamnu	We shall not call each other by our birth names

12. Megersa Regassa, Terefe Mitiku, Waktole Hailu, Addooyyee, (2019), Girl's Indigenous Friendship Institution in Oromoo, 6, Ethiopia, International Journal of multicultural and multi religious understanding.

13. Ibid

14. Ibid

15. Ibid

16. Supranote 4

17. Supranote 4

Nuti waliif saakuma, hiriyyadha

Saakumaa, foon keenya tokko

Dhiigni keenya tokko

Nu waliif addooyyeedha

Walitti hidhamneerra

Walitti makamneerra

Addooyyeen wal waamnaa

We are friends to each other

Our bones are one

Our blood is one

We are Addooyyees to each other

We are tied together

We are mixed

We shall call each other Addooyyee

Yeroo rakkinaas yeroo ballinaas

Wilbira dhaabanna, walhirkifna

Hirkoo walii taanaa

Wal bira nu haa bushu

Wal biratti nu haa tiksu

In times of difficulty and times of prosperity

We will support each other, lean on each other

We shall lean on each other

Let us live together

Protect us together¹⁸

Kan rakkoo walii qoodnuu

Kan icciittii walii eegnuu

Kan sinsinniifi nuffii hinqabne

Haalaafi yeroon kan hinjijjiirre

To share our burden

To keep each other's secret

Without jealousy or rivalry

Without changing with the times or situations¹⁹

Addooyyees take the oath once at the establishment of the institution. The oath that the Addooyyees take lasts forever. The oath unifies their souls. To signify this, they mark their union by saying 'we are tied together' and 'we are mixed'. They declare that Addooyyee has created a blood relation among them. In fact, in some areas, the children of two Addooyyee do not marry as the two Addooyyees are believed to be related by blood. Addooyyees promise to uplift, empower, and encourage each other. As stated in the oath, they promise to stand with each other in times of difficulty and in times of joy. Each Addooyyee is protected by all the other Addooyyees.

The name Addooyyees use to call each other is different in different parts of Oromia. These names include Kumudee, Hangugee, Bilillee, and Marii.²⁰ In the majority of cases, the girls call each other Addooyyee.

Fundamental Pillars of Addooyyee

Consultation

Consultation is a basic principle of Addooyyee. Addooyyees get together when they fetch water, collect firewood and on other such occasions²¹ and discuss issues such as their society, their families, national matters, and the different situations they face on a day-to-day basis. During the inception of the union, Addooyyees discuss how they can support one another.²² They inquire about each other and discuss any challenges they may be facing. They also share their plans and aspirations.

18. The majority of the Afaan Oromoo version of the oath is taken from Megersa that was conducted on four FGD in East Wollega Zone (two Gidda Ayyaanaa and Limmuu). The writer of this article did the English translation.

19. Supranote 10, p.311

20. Supra note 4

21. Supranote 10, page

22. Ibid

For instance, when an Addooyyee marries, the others prepare her for what is to come. They consult their Addooyyee on what to do, what not to do and how to live among the haalaga (strangers) of her future husband's gosaa (clan) and qoomo (sub-clan).²³ As the girl is transitioning to a new way of life, the Addooyyees prepare her psychologically.²⁴ Not only that, Addooyyees discuss several issues that might also arise within the marriage including how an Addooyyee should keep her family by being hardworking and respectful to her marriage.

Open discussion on all issues is a key principle of the relationship. They even discuss topics that are deemed to be taboo such as periods. This discussion in particular is vital. One of the ways in which societies oppress girls is when topics, such as their periods, are made taboo; further depriving the girls of essential information. To combat this, Addooyyees freely share their respective experiences in this regard.

Confidentiality

Confidentiality is another crucial element in the creation of the institution. Secrets are kept within the group. Addooyyees share their experiences and encounters without the fear of being exposed. This is a fact that is accepted by all of them when they take the oath to keep each other's secrets. In Addooyyee, no information leaks unless there are explicit recognition and authorization from the other Addooyyees. Addooyyees explicitly indicate confidentiality in their oath by the following phrases:

Kan rakkoo walii qoodnuu	To share our burden
Kan icciittii walii eegnuu	To keep each other's secret
Kan sinsinniifi nuffii hinqabne	Without jealousy or rivalry
Haalaafi yeroon kan hinjijjiirre	Without changing with the times or situations ²⁵

Economic and Psychological Support

Addooyyees empower each other economically. This is professed in the oath they take. It goes as follows:

Yeroo rakkinaas yeroo ballinaas	Both during difficulty and prosperity
Walbira dhaabanna, walhirkifna	We stand with each other, support each other
Hirkoo walii taanaa	We lean on each other ²⁶

They promise to be there for each other during happiness and difficulties. This usually manifests itself when one of their Addooyyee gets married. During her marriage ceremony, Addooyyees give ample gifts to their Addooyyee. These gifts include hodhaa (grass basketry), household items made locally from migira (grass). The hodhaa which Addooyyees give to each other are items such as sharfee, painted sharfee, gundoo, gilgili, mosobii, mudaaree, shillaawoo and others.²⁷ Addooyyees make these products by hand and gift them to the bride during the marriage ceremony.²⁸ Sometimes the amount of household items that a girl gets is an indication of the number of Addooyyees that she has. More gifts show that a girl has many Addooyyees and it is a sign that the girl has an honorable relationship with others.

Social Support

Addooyyees are there for each other in their daily lives. The social support is highly visible when their Addooyyee is about to marry. Starting from the proposal, Addooyyees are a part of the marriage activities. When a man approaches one of the Addooyyee and expresses his intention to marry, the Addooyyees get together and discuss the man's character to see if he is a good fit to marry their Addooyyee. They

23. Supranote 7, Page

24. Supranote 10, p. 315

25. Supranote 10, p.311

26. Megersa Regassa, Terefe Mitiku, Waktole Hailu, Addooyyee, (2019), Girl's Indigenous Friendship Institution in Oromoo, 6, Ethiopia, International Journal of multicultural and multi-religious understanding.

27. Supranoe 10, p.

28. ibid

assess if the potential husband is responsible enough and capable of being their Addooyee's husband. After the consultation, if they find the man an acceptable fit, the Addooyees give the green light for their Addooyee to marry him. If they do not find him to be fit, they put pressure on their Addooyee to reject the proposal. However, the ultimate decision rests on either the Addooyee or her family. If the man is accepted, the family is to decide the date of the wedding. Then, Addooyees start to sing and prepare for different ritual ceremonies two weeks before the big day. They sing different songs to will beauty and happiness in their Addooyee's marriage. The singing ceremony continues until the day of the wedding. Since their relationship began in their childhood or adolescence, losing their Addooyee can be a sad and painful. As a result, when a girl of their Addooyee marries and separates from the group to start her new life with her husband, the others feel grief.

They express their feelings through oral poetry:

Agadaa mataa shaashuree	Cane with a flowering head
Akkamiin cabsuree	How do I harvest it?
Addooyee marii yaadanii	Missing one's Addooyee,
Akkamiin obsuree	How to be consoled ²⁹

Although Addooyees beautify their Addooyee's wedding through their melody and songs, they don't like the fact that their Addooyee is going to be separated from them. Therefore, on the Jal-bultii (eve) ceremony, the Addooyees of the bride come together and praise their friend through seenaa dhaamu or mararoo (goodbye songs), while insulting the groom and his relatives for separating their Addooyee from them.

Cultural Values Transmission

Addooyee is an embodiment of Oromo culture. Through Addooyee, Oromo culture, psychology, and way of life are passed down to the next generation. Addooyee's gut-wrenching melodies, lyrics, oaths, and rituals all have their unique trans-generational values and strongly embody the culture.³⁰ Hence, all of the activities in Addooyee embody the cultural values of the Oromo society.

Freedom of Association

Addooyee is a clear manifestation of the freedom of association. It is a basic right that girls enjoy when they organize and gather in unity. Addooyees are fully empowered to set the rules and regulations that govern their relationship.

Every member of Addooyee is at liberty to share her views on issues that are brought to the table by one or more Addooyees. Adolescent girls organize in this union without needing authorization from anyone. For the union to be practical, the affection, care, and love that the girls have for each other is the only prerequisite. Various institutions exist for everyone in the the Oromo culture. For example, women have Siiqqee, girls have Addooyee and men have Gadaa.

Through Addooyee, the girls address a multitude of issues that arise as a consequence of the lack of access to resources and/or opportunities and lead to social inequality. Addooyees voluntarily form the institution for a common cause: to empower the group to collectively pursue a common agenda to address the challenges they face and opportunities in their society and to do so while being there for one another along the way.

29. Supranote 10, page

30. ibid

Addooyyee as a Weapon to Eradicate Gender-Based Violence

In most societies, with public spaces often times largely occupied by men, women have a limited space to meet. Traditionally, women's responsibilities include taking care of children, cooking, carrying out household chores, and looking after their family in general.³¹ Addooyyee is an exception in this regard as it allows women and girls to have their own separate and independent space. The platform creates a space for the girls to openly discuss social, cultural and economic matters.

The gatherings and the consultations that take place offer a great sense of protection and care to the members. The role that Addooyyee has played and the potential it has in eradicating gender-based violence is immense.

An Open Platform for Discussion

The advantage of Addooyyee is its ability to create a platform for discussion. Such a platform plays a crucial role in protecting girls from abuse and mistreatment. For instance, if an Addooyyee is approached by a man to marry her, she will share the idea with her Addooyyees and they will gather as much information as possible about him. The process is undertaken to make sure that their Addooyyee marries the right man. As indicated above, if the man is not fit enough for their Addooyyee, the ultimate decision rests on the Addooyyee who is going to marry and her family, but Addooyyee absorbs their perspective. Everything is subject to discussion and deliberation. Whatever the Addooyyees face is put on the table and dealt with as a group. Harassment of any kind and by anyone (family members, acquaintances, or strangers) perpetrated against an Addooyyee is discussed in confidence. Harassment or abuse is regarded as a breach of Safuu, the unwritten sacred rules and regulations set by the Oromo people, and failure to observe can result in punishment.³² If there is a breach that the Addooyyee cannot contain or resolve on their own, they will disclose the matter to elders who are both responsible and capable.

Moreover, the institution empowers Addooyyees to make an informed decision. The discussion forum gives Addooyyees a chance to discuss and make informed decisions on all social, economic, and cultural issues. Fertility, marriage, friendship, motherhood, health, etc. are discussed among the girls. Due to this, Addooyyees' choices and perspectives are results of in-depth discussions. Addooyyees do not reach a certain decision without consulting one another. Addooyyees share their experiences which are used as markers for the group when they are faced with similar issues.

A Foundation for Strong Leadership

The Addooyyee institution is also highly effective in terms of producing efficient and competent girls. The system does not empower girls to be themselves or express their desires without fear. As a result, girls around the world lack the opportunity to express themselves as they wish. Addooyyee empowers girls to take ownership of their lives by helping them make well informed decisions that are beneficial for them. Addooyyees raise ideas, give and receive consultation, and if the idea is perceived to have a negative affect then the idea is dismissed. The process produces competent leaders who can see beyond their immediate circumstances. The institution recognizes the strong participation of girls and women in a multitude of spheres where their talents are being utilized.

Addooyyee plays an important role in empowering girls to fully express themselves. It addresses issues involving the rights of girls and affirms the fundamental role that girls play in society. In Oromo culture, just like many other places, public spaces are predominately occupied by men and girls and women face discrimination for having a say over different issues that involve them. Addooyyee provides an opportunity

31. United nations population Fund, Women and Girls Safe Spaces retrieved from <https://www.unfpa.org/sites/default/files/resource-pdf/UNFPA%20UNFPA%20Women%20and%20Girls%20Safe%20Spaces%20Guidance%20%5B1%5D.pdf>

32. Supranote 7, page

for the girls to share their feelings, emotions, and most of all the wisdom which sustains them in their society. Addooyyee safeguards their right to reflect on different issues and enables them to express themselves to the fullest without the fear of being judged.

Strong Base for Siiqqee Institution

Siiqqee is a women's institution with numerous responsibilities. A siiqqee is a stick that a bride receives from her mother on the day that she gets married. It marks her transition from the girlhood of Addooyyee into the womanhood of Siiqqee.³³ A good Addooyyee is a perfect Haadha Siiqqee, a Siiqqee mother. Siiqqee is a reputable institution for Oromo women to take part in the different socio-economic and cultural spheres of their community. It is also a protection mechanism for women against abuse and violence. If a woman holds a Siiqqee in her hands then she is protected and respected. If anyone dares to touch or harm her, it is regarded as a transgression and that person will be subject to punishment.

Conclusion

Addooyyee is an ancient institution that has been a major part of the Oromo female experience for a very long time. It exists in all Oromo communities and has managed to survive rapid urbanization. This is all the more impressive given how much pressure the Oromo people have been under ever since the first imperial armies marched into Oromo land 150 years ago. Oromo communities have been under attack from the state for so many years, and yet this essential institution remains and is alive today for us to study and understand.

Addooyyee represents many of the ideals espoused by women's equal rights struggles all over the world. The right of women to organize, to be a part of decision-making in all spheres, especially on issues exclusive to women, to take equal part in the economic and social spheres of their communities, and to be protected from abuse are all pillars of Addooyyee. The Addooyyee institutions' solidarity between the girls that take part is unarguably its most important asset. This solidarity is translated into a platform for discussion, where the girls are comfortable to talk about anything that might befall them, anything they feel is relevant to their lives, and be counseled on it by their peers. This solidarity also means the removal of taboos on issues that affect girls.

Addooyyee is a union between equals who pledge by oath to one another. Addooyyee is also a community on its own. It is a community where the members are all equally valued and receive support from their peers. It is a community that supports each other and is there for each other in difficult times and in times of joy; it is the type of support that is critical for them to grow into their integral and powerful roles as members of society.

Addooyyee's service to girls also extends to protecting them from abuse. If the girls can talk about abusers and the abuse they have endured, then it is likely that they will be able to protect themselves and each other from what is considered a crime by the community at large.

Recommendations

1. The Addooyyee institution should be taken as an alternative mechanism to protecting girls from abuse by governments at all levels and included in the national gender policy.
2. There should be a comprehensive study of the Addooyyee institution all over Oromia.
3. Programs should be designed to revive the institution in urban areas.
4. The Addooyyee institution should be recognized as a major constituent of the rural Oromo experience and strengthened.

33. Kuwwee 61

5. An Addooyee-based movement to alleviate gender-based violence should be designed.
6. The institution should be studied in-depth to fit into the current condition of adolescent girls who are living in urban settings.

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- <https://www.unfpa.org/sites/default/files/resource-pdf/UNFPA%20UNFPA%20Women%20and%20Girls%20Safe%20Spaces%20Guidance%20%5B1%5D.pdf>





Gender-Based Violence against Women with Disabilities and Their Right to Access and Justice in Ethiopia



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Mahider Mulugeta¹

Abstract

Women with disabilities are highly vulnerable to gender-based violence (GBV) due to the intersection of gender and disability and face barriers in accessing justice. International human rights instruments, such as the Convention on the Rights of Persons with Disabilities (CRPD) and the Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), oblige governments to protect women with disabilities from GBV, as well as ensure their access to justice. Though Ethiopian laws provide some protection from GBV and access to justice, these laws do not explicitly and sufficiently address women with disabilities.

This paper argues that access to justice for women with disabilities who are victims of GBV can only be realized if meaningful legal and practical measures are taken to implement human rights obligations. The study was conducted to identify gaps, barriers and practical challenges in accessing justice for women with disabilities who are victims of GBV. It looks at international human rights standards, domestic legal frameworks as well as results from small scale field interviews to understand lived experiences.

The findings of the study revealed that women with disabilities face challenges in accessing justice for the following reasons: justice systems are not designed mindful of the needs of women with disabilities; absence of reasonable accommodation; lack of comprehensive services including a scarcity and inaccessibility of services to rehabilitate and reintegrate the victims; legal professionals' lack of knowledge about GBV against women with disabilities; low level of awareness among women with disabilities about their rights and how to access justice. The result of this is reinforced discrimination and unjust treatment. Therefore, legislative, and practical measures should be taken to remove barriers regarding access to justice for women with disabilities who are victims of violence.

Key words - access to justice, women with disabilities, gender-based violence, intersectionality

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Introduction

Access to justice for women with disabilities is crucial to protecting their human rights and effectively responding to GBV. This is a basic right and a means for protecting other rights.² International human rights instruments such as CRPD, CEDAW and the Declaration on the Elimination of Violence against Women (DEVAW) obliges governments to protect women with disabilities from GBV and all types of exploitation and ensure their access to justice. However, women with disabilities face challenges in accessing justice.

In Ethiopia, there is lack of sufficient research on access to justice for women with disabilities who are victims of GBV. Therefore, this paper tries to identify the gaps and seeks to provide insight for relevant government bodies and stakeholders on the areas in need of reform. Both primary and secondary data is used, obtained from both desk research and small-scale qualitative field research in Addis Ababa. Semi-structured interviews were conducted with women with disabilities, justice sector professionals, civil society organizations and others. The qualitative data obtained is not claimed to be representative of the whole country but simply to share both practical and lived experiences.

Operational Definitions

Access to justice - The protection of people with disabilities by the law. The ability to seek and use legal remedy through the justice system in the case of grievances. The ability to participate in all stages of the criminal justice system in line with human rights standards on an equal basis with others.

Gender-based violence – Any public or private act or threat committed by men without the consent of women that inflict or is likely to inflict physical, sexual, or psychological harm or suffering to a woman due to their gender.

Reasonable accommodation – Applying necessary and appropriate modifications and adjustments so as to not impose a disproportionate or undue burden, where needed in a particular case, to ensure that persons with disabilities enjoy and exercise full human rights and fundamental freedoms on an equal basis with others.

Intersectionality and Vulnerability of Women with Disabilities to GBV

Social factors, identity, or aspects such as poverty, disability, race/ethnicity and/or language, may have an impact on the level of exposure to the risk of violence against individuals or groups. The recognition of these facts is known as “intersectionality,” “multidimensionality,” or “multiple forms of discrimination”.³ This type of understanding is vital for the assessment of GBV committed against women with disabilities. A study on violence against women with disabilities has identified that “violence against women and girls with disabilities is not just a subset of gender-based violence; it is an intersectional category dealing with gender-based and disability-based violence” (International Network of Women with Disabilities).⁴

A study on women with disabilities in Ethiopia has identified that Ethiopian women with disabilities are more vulnerable to violence due to the intersection of gender and disability.⁵ For instance, a study conducted by Handicap International in Ethiopia surveyed 194 women with disabilities and found out that 46.4% were sexually abused.⁶

There are several factors that make people with disabilities vulnerable to violence. These include the stereotype that people with disabilities are not autonomous and cannot make decision by themselves. This

2. Ortoleva, Stephanie (2011). Inaccessible Justice: Human Rights, Persons with Disabilities and the Legal System, *ILSA Journal of International & Comparative Law* 17 (2), 282 – 320.

3. Ibid

4. International Network of Women with Disabilities (INWWD), (2010). Document on Violence against Women with Disabilities.

5. Katsui, Hisayo & Mina C. Mojtahedi (2015). Intersection of disability and gender: multi-layered experiences of Ethiopian women with disabilities, *Development in Practice*, 25(4), 563-573

6. Handicap International and Ethiopian National Association for Intellectual Disability Children and Youth, (2007). Summary Report of the Baseline Survey on Sexual Violence against Persons with Disabilities in Yeka Sub City, Kebele 01/02.

feeds into a belief or perception that the violence inflicted on women with disabilities is not as serious as violence committed against women without disabilities. Additionally, less credibility is given to their words.⁷ Women with disabilities are also exposed to a high risk of violence due to their impairment; they are less capable of resisting or fleeing from an attack. In a study carried out in Ethiopia among victims of sexual offence, 70% reported that their disability increased their risk to violence, 63.5% reported that they were unable to escape, 15.9% reported they were dependent on the abuser, and 11.1% reported they were unable to seek help because of communication barriers (Handicap International and Ethiopian National Association for Intellectual Disability Children and Youth, 2007). Moreover, disabled women are not presumed to be sexually active and are considered virgins, thus free from sexually transmitted diseases including HIV/AIDS, a factor that makes them a target for sexual exploitation.⁸

Women with disabilities are more likely to experience poverty and exclusion. This increases their vulnerability to violence and decreases the possibility of escaping the cycle of violence.⁹ Victims often times do not report violence to appropriate organs due to fear of losing financial support.¹⁰ Finally, stereotypes coupled with barriers to access justice that women with disabilities face, makes perpetrators believe that disabled people are unlikely to report their abuse, which in turn makes them a target for violence.¹¹

Importance of Access to Justice for Women with Disabilities

Access to justice is one of the basic rights that guarantees all other rights. Historically, persons with disabilities, particularly women with disabilities, face challenges in accessing justice. According to the International Disability Alliance,

“The act of lodging a complaint, seeking police assistance, engaging a lawyer, obtaining legal aid, testifying in court, participating in court proceedings or in investigations, among others, has, in most jurisdictions, been overwhelmingly frustrated by inaccessible mechanisms and procedures, lack of awareness and training of actors in the justice system, a lack of information, and general disability-based discrimination exercised in the law, policy and practice pertaining to the administration of justice.”¹²

The justice systems do not guarantee access to justice because it was not designed with consideration of the needs of women with disabilities. Stephanie Ortoleva describes law as a source of both “oppression and liberation.” Law can provide people equal access to all rights and may, on the other hand, encourage oppression. People with disabilities, historically, have been underserved by the justice system and it is a source of their exclusion.¹³ Hence, the existence of disability friendly justice system can help persons with disabilities realize their rights to effective access to justice, challenge exclusion and support their empowerment. This way, the law has the potential to serve as ‘source of liberation’.

Barriers to Access to Justice for Women with Disabilities

Despite the prevalence of violence against women with disabilities, the level of reporting is very low, mainly due to the barriers in accessing justice. Major barriers include legal barriers, stereotypes and

7. United Nations High Commissioner for Human Rights, (2012). Thematic study on the issue of violence against women and girls and disability, Report of the Office of the United Nations High Commissioner for Human Rights

8. Handicap International and Bureau of Labor and Social Affairs, (2011). Sexual Violence and Abuse Faced by Persons with Disabilities, Formative Research in Dire Dawa and Addis Ababa.

9. United Nations High Commissioner for Human Rights, (2012). Thematic study on the issue of violence against women and girls and disability, Report of the Office of the United Nations High Commissioner for Human Rights.

10. Powers and Oschwald, 2011

11. United Nations High Commissioner for Human Rights, (2012). Thematic study on the issue of violence against women and girls and disability, Report of the Office of the United Nations High Commissioner for Human Rights.

12. International Disability Alliance (IDA), (2013). submission to the CEDAW Committee's General Discussion on access to justice.

13. Stephanie Ortoleva and Hope Lewis, (2012). Forgotten sisters: a report on violence against women with disabilities: an overview of its nature, scope, causes and consequences, Northeastern Public Law and Theory Faculty Research Papers series no. 1

stigmas practiced by justice sector actors, the lack of accessible forms of communication, inaccessibility of information, barriers in the physical environment of courts, justice offices and police stations, the absence of accessible and integrated GBV services, the absence of training for justice sector actors and other professionals, and the low level of awareness among women with disabilities about their rights and where to access justice.¹⁴ A study conducted by Handicap International in Ethiopia on the prevalence of sexual violence against women with disabilities, reveals that 81.1% of victims of sexual abuse did not report the abuse and 68.5% of those who did not report stated the reason as being a lack of trust in responsible organs. Other reasons include victims' acceptance of the abuse or the lack of knowledge of available services, and the inability to communicate the violence, particularly knowledge amongst women with hearing impairments.¹⁵ Additionally, failure to provide effective access to justice and little to no critical police investigation to identify perpetrators discourages victims from reporting.¹⁶

International Legal Framework

Ethiopia ratified the CRPD and CEDAW, which both comprehensively address the rights of women and people with disabilities. The Conventions did not come up with new rights; they supplemented existing international human rights standards and set minimum standards that need to be met to promote human rights of women with disabilities.

General obligations provided under CRPD and CEDAW

Article 2 of CEDAW and Article 4 of CRPD have similar general obligations to promote, fulfil and protect the human rights of women and persons with disabilities without discrimination of any kind. Accordingly, both Conventions have enumerated general obligations such as the administrative and legislative measures that States shall undertake to implement the Conventions.¹⁷ States also have the duty to amend or eliminate existing discriminatory laws and practices concerning disability and women in par to the Conventions.¹⁸

The CRPD specifically stipulates that States need to mainstream the rights of persons with disabilities in all their programs and actions.¹⁹ States shall also provide training on the rights of persons with disabilities to professionals working with disabled people to ensure effective and efficient service delivery.²⁰ Judges, public prosecutors, and police are among the professionals that need training.

Obligation to Equality and Non-discrimination

Both CRPD and CEDAW affirm the principle of equality and non-discrimination and thus require States to provide effective protection from discrimination. According to the CRPD, the absence of reasonable accommodation is considered discrimination.²¹ Hence, States have the responsibility to take all appropriate measures to provide reasonable accommodation to “promote equality and eliminate discrimination”. Additionally, the CEDAW Committee, in the case of *Karen Tayag Vertido v. Philippines*, concluded that State parties are obliged to guarantee that all proceedings regarding sexual offences are “impartial and fair, and not affected by prejudices or stereotypical gender notions”.²²

14. Australian Human Rights Commission, (2013). Access to justice in the criminal justice system for people with disabilities, issues paper. & United Nations High Commissioner for Human Rights, (2012). Thematic study on the issue of violence against women and girls and disability, Report of the Office of the United Nations High Commissioner for Human Rights.

15. Handicap International and Bureau of Labor and Social Affairs, (2011). Sexual Violence and Abuse Faced by Persons with Disabilities, Formative Research in Dire Dawa and Addis Ababa.

16. Samrawit Dessie, Yirgashewa Bekele & Margarita Bilgeri (2019): Sexual violence against girls and young women with disabilities in Ethiopia, *Journal of Global Ethics*.

17. CRPD, 2008, Article 4(1); CEDAW, 1979, Article 2(a)

18. CRPD, 2008, Article 4(1)(e); CEDAW, 1979, Article 2(e)

19. CRPD, 2008, Article 4(1)(c)

20. CRPD, 2008, Article 4(1)(i)

21. CRPD, 2008, Article 5(3)

22. *Karen Tayag Vertido v. Philippines*, Committee on CEDAW, (Communication No. 18/2008), 16 July, 2010

Obligation to Protect Women with Disabilities from GBV

The CRPD is one of the conventions that is gender sensitive and acknowledges the element of gender in various provisions. The Preamble and Article 6 of the Convention clearly describes women with disabilities as susceptible to multiple forms of discrimination and requires states to diligently take all the necessary measures to ensure the promotion and protection of the human rights of women with disabilities on an equal basis with others.²³ Article 16 of CRPD makes a clear reference to exploitation, violence, and abuse against persons with disabilities and obliges states to take the necessary measures such as “legislative, administrative, social and educational measures” to protect women with disabilities from GBV. States have the duty to provide support for disabled people and their care givers to avoid any type of exploitation and violence against women with disabilities.²⁴

The CEDAW Committee, in its General Recommendation 19, urges States to take appropriate and effective measures (legal, administrative, and practical) to overcome GBV.²⁵ The Committee, in its General Comment no. 18 on disabled women, acknowledges that women with disabilities face double discrimination due to their specific circumstances and urges States to take special measures to address their vulnerability.

Obligation to Combat Stereotype and Raise Awareness

Both Article 8 of CRPD and Article 5 of CEDAW prescribe States the duty to curb negative attitudes, perceptions and harmful traditional practices towards people with disabilities and women by adopting effective and appropriate measures to raise the awareness of the society concerning women and people with disabilities and their rights (CRPD, 2008, Article 8(1)(b)). The support includes raising the awareness of women with disabilities and their caregivers on how to avoid, identify and report violence inflicted against disabled peoples (CRPD, 2008, Article 16(2)). Moreover, in the case of *R. P. B. v. Philippines*, the CEDAW Committee concluded that legal proceedings regarding violence shall be free from stereotypes and that failure of the State to take due diligence in abolishing gender stereotypes is a violation of the convention (2014). Thus, it recommends that States guarantee that the conduct of all GBV proceedings are fair and impartial without any prejudice or stereotypes and that they guarantee the provision of sufficient and regular training for police and legal professionals on CEDAW.

Obligation to Guarantee Effective Access to Justice

Unlike many other international instruments, Article 13 of CRPD specifically addresses the right of access to justice for people with disabilities. The provision obliges State parties to take measures to promote access to justice for disabled people “on an equal basis with others”. State parties also have the obligation to provide proper training on the rights of persons with disabilities and introduce effective communication mechanisms for professionals who provide services to people with disabilities. It further provides that States have the obligation to take necessary gender sensitive measures to protect, rehabilitate and reintegrate victims of violence. It outlines the need for States to enact legislation and policies to guarantee that violence and exploitation against disabled people can be “identified, investigated and, where appropriate, prosecuted”.²⁶

CEDAW does not have a specific provision on access to justice but the CEDAW Committee expressly addressed access to justice for women in its General Recommendation 33, where it urges States to “exercise due diligence to prevent, investigate, punish and provide reparation for all crimes committed against women”. In particular, it suggests establishing a supportive environment including an accessible physical environment for victims of GBV that encourages victims to report violence and actively participate in all stages of the criminal justice system. Furthermore, the committee recommended that shelters, psychosocial and counseling services should be available for victims of GBV.²⁷ The need to give special consideration of access to justice for women with disabilities and to eliminate discriminatory legislations, administrative

23. CRPD, 2008, Article 6(1)

24. CRPD, 2008, Article 16(2)

25. CEDAW Committee, 1992

26. CRPD, 2008, Article 16(5)

27. CEDAW Committee, 2015

measures, customs, and practices is also emphasized in the General Recommendation. The Committee also urges States to take appropriate measures to abolish gender stereotypes and mainstream gender in all stages of the justice system. Additionally, States should build the capacity of justice sector professionals on international human rights standards, particularly CEDAW.²⁸

Moreover, the CEDAW Committee, in its General Recommendation No. 19, prescribed States the obligation to ensure that laws provide adequate protection for all cases of GBV. Protective measures and support services, such as counseling and rehabilitation, shall also be provided for victims of GBV. States also need to provide “gender-sensitive training” for justice sector professionals for effective enforcement of the Convention.²⁹

Obligation to Ensure Accessibility and Reasonable Accommodation

Accessibility is included as one of the eight general principles enshrined in the CRPD. States are duty bound to take all necessary measures to provide equal access to services and facilities to persons with disabilities on an equal basis with others. These include access “to the physical environment, information and communications”.³⁰ These obligations include investigating and abolishing barriers to accessing buildings, information, and communication. Article 21 states that information should be accessible to people with disabilities and stakeholders should be trained concerning accessibility of services to persons with disabilities.³¹

The CEDAW Committee, in *R. P. B. v. Philippines*, held that failure of the government to ensure access to justice for victims of GBV, particularly by denying accessible and reasonable accommodation such as sign language interpretation, during investigations and court hearings is a violation of CEDAW (2014). The committee explained that provision of free sign language at the court hearing is important for guaranteeing effective protection against discrimination. Thus, the Committee urges States to incorporate the provision of free and sufficient sign language interpretation in all stages of legal proceeding and in its laws.³²

Declaration on the Elimination of Violence against Women (DEVAW)

DEVAW recognizes that women with disabilities are among the group of women who are more vulnerable to abuse³³. The declaration clearly specifies that States need to take all necessary actions immediately to abolish violence against women. According to the declaration, any type of religious practices, culture and custom cannot be justification for States to violate the rights of women.³⁴ Additionally, perpetrators shall be punished in accordance to national laws and States are under duty to take ‘due diligence’ to this end.³⁵ Article 4(d) provides access to justice for women who are victims of violence by calling on States to take appropriate sanctions for abuse of women and provide access to the mechanisms of justice. It also clearly provides that victims be given the means to get “just and effective” remedy. This provision further incorporates the need for States to educate women on how to access justice.

The declaration not only addresses the legal remedy for victims of violence but also provides, most importantly, the need to avoid secondary victimization of victims of violence as a result of genderblind laws, policies and practices.³⁶ Victims not only need legal services, but also need holistic services to aid in their rehabilitation and reintegration. Thus, it is specified that States have the duty to exert their maximum effort to provide victims of violence the necessary support to ensure their safety and both physical and psychological rehabilitation. Such services include “rehabilitation, treatment, counseling, and social

28. *ibid*

29. CEDAW Committee, 1992

30. CRPD, 2008, Article 9

31. CRPD, Article 9(2) (c)

32. *R. P. B. v. Philippines*, Committee on CEDAW, (Communication No. 34/2011), February 21, 2014

33. Declaration on the Elimination of Violence Against Women (DEVAW), 1993

34. DEVAW, 1994, Article 4

35. DEVAW, 1994, Article 4 (c)

36. DEVAW, 1994, Article 4 (f)

services, as well as support structures”.³⁷ States also have the obligation to train professionals on the needs of victims of GBV.³⁸ States should take all necessary measures such as legal reforms, training, and awareness raising campaigns to avoid patriarchal beliefs and attitudes.³⁹

Other Human Right Instruments

Access to justice is addressed in various international human rights instruments such as the Universal Declaration of Human Rights, International Covenant on Civil and Political Rights and African Charter on Human and Peoples’ Right. These international instruments do not explicitly address GBV against women with disabilities but incorporate elements that fulfill access to justice. These elements are equality before the law, the right to equal protection under the law, protection from violence and the right to be treated fairly by a tribunal or court.

National Legal System of Ethiopia

General Framework of Human Rights and Protection of Women with Disabilities

The foundation for the respect and enforcement of human rights of individuals in Ethiopia is the Constitution. International instruments ratified by Ethiopia are part of the law of the country.⁴⁰ Human rights provisions recognized in the Constitution should be interpreted in conformity to the principles set out in ratified international instruments.⁴¹ Since the CRPD and CEDAW are incorporated into Ethiopian law, the rights of women with disabilities should be construed in line with CRPD and CEDAW. However, the Ethiopian government has not enacted new laws to modify existing laws or to incorporate rights included in the CRPD and CEDAW sufficiently in its domestic laws.

The Ethiopian government enacted its second, four year (2016 - 2020) human rights action plan for the protection and promotion of human rights in international and national laws in a structural and comprehensive way. Some protections are provided to persons with disabilities in the action plan but there is no mention of women with disabilities in the document. The ongoing National Plan of Action of Persons with Disabilities (2012 – 2021) aims to create a more inclusive society; however, it mainly incorporates socio-economic rights and is silent on GBV against women with disabilities or access to justice.

Equality and Non-Discrimination

The Constitution affirms the equal and nondiscriminatory exercise of rights and fundamental freedoms.⁴² Sex is a prohibited ground for discrimination while disability is not expressly stated. However, it can be inferred from the word “other status” that disability is also prohibited grounds for discrimination. The constitution does not specify that failure to provide reasonable accommodation amounts to discrimination and does not specifically address the needs of women with disabilities and their vulnerability to violence.

Access to Justice

Access to justice is guaranteed in the constitution and is also applicable to women with disabilities. Article 37 of the constitution provides that everyone has the right to bring a justiciable matter to obtain a decision or judgment by a court of law or any other competent body. Laws in Ethiopia do not provide “disability

37. DEVAW, 1994, Article 4(g)

38. DEVAW, 1994, Article 4 (i)

39. *ibid*

40. Federal Democratic Republic of Ethiopia, Constitution, 1995, Article 9(4)

41. Federal Democratic Republic of Ethiopia, Constitution, 1995, Article 13(2)

42. Federal Democratic Republic of Ethiopia, Constitution, 1995, preamble

specific” procedural accommodation.

The Federal Courts Proclamation gives federal courts jurisdiction to address cases that arise under the constitution and international treaties and to consider international instruments in addressing cases.⁴³ Nevertheless, it is not clearly specified which level of court among the federal courts have the jurisdiction to address cases concerning human rights violations. For this reason, women with disabilities may not know which court to take their case. Moreover, data collected during the field interviews reveals that international instruments, particularly CRPD and CEDAW, were not used by legal professionals in their work.

The criminal justice policy specifies the need to train public prosecutors and police on investigation and all justice organs on their responsibility to create conducive and enabling conditions for the participation of women with disabilities.⁴⁴ However, binding laws are not enacted to effectively implement the policy. None of the legal professionals interviewed received training on GBV against women with disabilities or their access to justice. The research identified that there were few efforts to provide training on the rights of people with disabilities by government organs, however, none were linked to GBV against women with disabilities. Disabled peoples organizations and international organizations were more engaged in sensitizing legal professionals on CRPD than the Ethiopian government.

Accessibility and Reasonable Accommodation in Ethiopia

The right to obtain information is guaranteed by the Constitution⁴⁵, however, it fails to expressly guarantee information in accessible formats, such as Brail and sign language. The National Action Plan of Persons with Disabilities mandates that the Ministry of Labour and Social Affairs (MOLSA) identify key government services and make them accessible to people with disabilities, especially with relation to information about government services.⁴⁶ In practice, efforts to provide information on the rights of women with disabilities, the protection from GBV and how and/or where to access GBV response services to women with disabilities, specifically for women with hearing impairment, were all limited.

There is no domestic law or policy that clearly obliges justice sector professionals to make sign language interpreters available for victims that have a hearing impairment. As a result, the justice sector does not have dedicated staff for sign language interpretation. Thus, police and prosecutors mostly request sign language interpreters from disabled peoples organizations or use victim’s family members who can communicate with the victim. This is a burden for people with a hearing impairment as they do not get equal services as others and sometimes have to revisit offices due to a lack of access to sign language interpreters. One respondent said “A woman with a hearing impairment once came to my office. There was no sign language interpreter in the office. I tried to communicate with her in writing but it was not successful because she was illiterate. Finally, because we were unable to communicate, she left and did not show up again”.

The Ethiopian Building Proclamation is the major law that safeguards the right to physical accessibility for people with disabilities in courts, justice offices and police stations. It specified that buildings shall be accessible to physically impaired people, including wheelchair users and those who are unable to navigate staircases/steps.⁴⁷ The Building Regulation requires any building that is more than 12 meters in height to have accessible stairs, suitable elevators, parking lots, and toilets for people with disabilities. Buildings that are not accessible should be adjusted with consideration of the needs of people with disabilities. Little has been done by MOLSA to identify and rectify problems regarding accessibility of justice organs for people with disabilities.⁴⁸ Most of the courts, justice offices and police buildings are not accessible for the physically impaired, except for some newly constructed buildings which have ramps which often times are narrow, sloppy and unusable by wheelchair users. These buildings have been used for years but do not have functional elevators and the floor buttons inside the elevators are not available in braille.

43. Federal Courts Proclamation, 1996, Article 3(1) and 6(1)(a)

44. Criminal Justice Policy of Ethiopia, 2010

45. Federal Democratic Republic of Ethiopia, Constitution, 1995, Article 29(2)

46. National Action Plan of Persons with Disabilities, 2012

47. Ethiopian Building Proclamation, 2009, Article 36

48. Ethiopia Building Regulation, 2011, Article 28(8); Article 33(3)

Overall, the premises and building of courts, justice offices and police stations are not accessible for women with disabilities. One of the respondents shared a story of a woman she saw in a wheelchair get out of the chair and crawl her way up four flights of stairs to get service from a justice office because the elevator in the building was not working.

GBV against Women with Disabilities and Intersectionality

The Constitution safeguards the security of individuals by providing the right to protection against any kind of bodily harm or inhumane treatment (Constitution, 1995, Article 16 and Article 18). It is further provided that the state shall respect the right of women to be free from harmful traditional practices (Constitution, 1995, Article 35(4)). Even if there is no explicit provision on the rights of women with disabilities and protection from violence, women with disabilities also benefit from the above protections. However, the Constitution does not consider the double discrimination women with disabilities are facing.

The Ethiopian criminal law protects women from exploitation, violence and abuse. The Criminal Justice Policy demands special protection for women who are victims of GBV and calls for special investigation, prosecution, court proceeding and psycho-social support that is mindful of the vulnerability of women with disabilities to violence. It also requires justice organs, psycho-social service providers, national and international organizations to coordinate their activities, strengthen the capacity of organizations that give support to victims and protect the confidentiality and identity of victims.⁴⁹ Furthermore, the Investigation and Prosecution Guideline for cases of GBV was prepared by the Attorney General Office (AGO) in 2010 but failed to address intersectionality or mention women with disabilities.

Even though there is no domestic law that addresses the provision of psycho-social support, services are being provided mainly by non-governmental organizations in the country, although the services are inadequate. A national assessment on the rehabilitation and reintegration services for women and girls who are survivors of violence in Ethiopia identified that there were few shelters available in the country and the shelter services were not accessible to women with disabilities due to the fact that the shelters were located in regional capitals and had a restrictive eligibility criteria. Almost all shelters do not accept women with disabilities (particularly women with physical and mental disability) due to inaccessible environments/ services and capacity constraints in addressing their needs.⁵⁰ One respondent mentioned that a visually impaired rape victim was admitted to one of the shelters in Addis Ababa and released after few days with the reason that the shelter has limited human resource capacity to handle her special needs.

Due to the COVID 19 pandemic, many shelters were not accepting disabled women. The justification provided by the shelters was that COVID 19 safety measures, such as keeping distance, made them unable to give service to physically and visually impaired women with disabilities since assistance to these victims may require physical contact. Regarding coordination, the Ministry of Women, Children and Youth Affairs is currently working to establish coordination among various psycho-social service providers; however, no coordinated or formal referral system has been established between psycho-social service providers and justice organs.

Training and Awareness Raising

There are various ministries with mandate to engage in awareness raising campaigns. It is the Attorney General Office's duty to provide public legal education on human rights (Proclamation to provide for the definition of powers and duties of the executive organs of the Federal Democratic Republic of Ethiopia, 2018, Article 16(15)). Since protection from GBV and access to justice are components of human rights, the AGO has a duty to raise the legal consciousness of the community, particularly women with disabilities on such issues. Furthermore, the Ministry of Women, Children and Youth Affairs has the responsibility to raise awareness about women's issues, which include women with disabilities.⁵¹ This Ministry is expected

49. GBV against Women with Disabilities and Intersectionality

50. UN Women Ethiopia, 2016. Shelters for women and girls who are survivors of violence in Ethiopia, National Assessment on the Availability, Accessibility, Quality and Demand for Rehabilitative and Reintegration Services.

51. Proclamation to provide for the Definition of powers and duties of the Executive organs of the federal Democratic republic of Ethiopia,

to engage in extensive awareness raising programs about harmful traditional practices and the rights of women (National Human Right Action Plan of Ethiopia, 2016). MOLSA is mandated to raise the awareness of the public to reduce discrimination against people with disabilities.⁵² Besides, a few community awareness raising activities organized by the AGO that focused on the rights of women with disabilities with regards to GBV, there were no awareness raising campaigns organized by the responsible institutions.

Conclusion

Although Ethiopia ratified the CRPD in 2010, there are no laws that have been enacted to enact domestic laws regarding access to justice in line with CRPD, besides having some rights for women with disabilities incorporated in the Criminal Justice Policy.

There are few laws that deal with the rights of persons with disabilities. These laws were enacted before the CRPD and do not explicitly address women with disabilities. Ethiopian laws provide equal access to justice and physical accessibility to justice organs as well as protection from discrimination and protection from GBV. However, these laws have gaps and lack effective implementation. The several factors that laws do not take into account include: the vulnerability of women with disabilities to multiple forms of discrimination, the need for accessible information and communication, the implicit discrimination in the denial of reasonable accommodation, the necessity for justice organs to raise the awareness of women with disabilities and their caregivers about GBV and how to access justice, and the government's obligation to provide training to legal professionals on GBV against women with disabilities and their proper access to justice. The justice system tries to make women with disabilities fit into a system that is designed for people without disabilities.

Recommendations

Justice systems should be designed mindful of the needs, circumstances, and factors around the vulnerability of women with disabilities to GBV. In particular, I recommend the following:

- Legislative, administrative, and practical measures to enforce the safeguards provided by CEDAW and CRPD
- Enact a comprehensive policy and law that expressly addresses women with disabilities
- Establish a comprehensive and integrated GBV service delivery system that includes legal (special investigation, prosecution, court hearing), health, and psycho-social services mindful of the needs of women with disabilities
- Mandatory and regular training programs to build the capacity of justice sector professionals on GBV and rights of women with disabilities
- An awareness raising policy along with awareness raising events to raise the awareness of women with disabilities as well as caregivers about their rights, GBV, and where/how to access justice
- Taking legal and administrative measures to hold justice organs accountable for shortcomings and/or failjures to provide accessibility and deal with reported cases effectively

2018, Article 32(1)

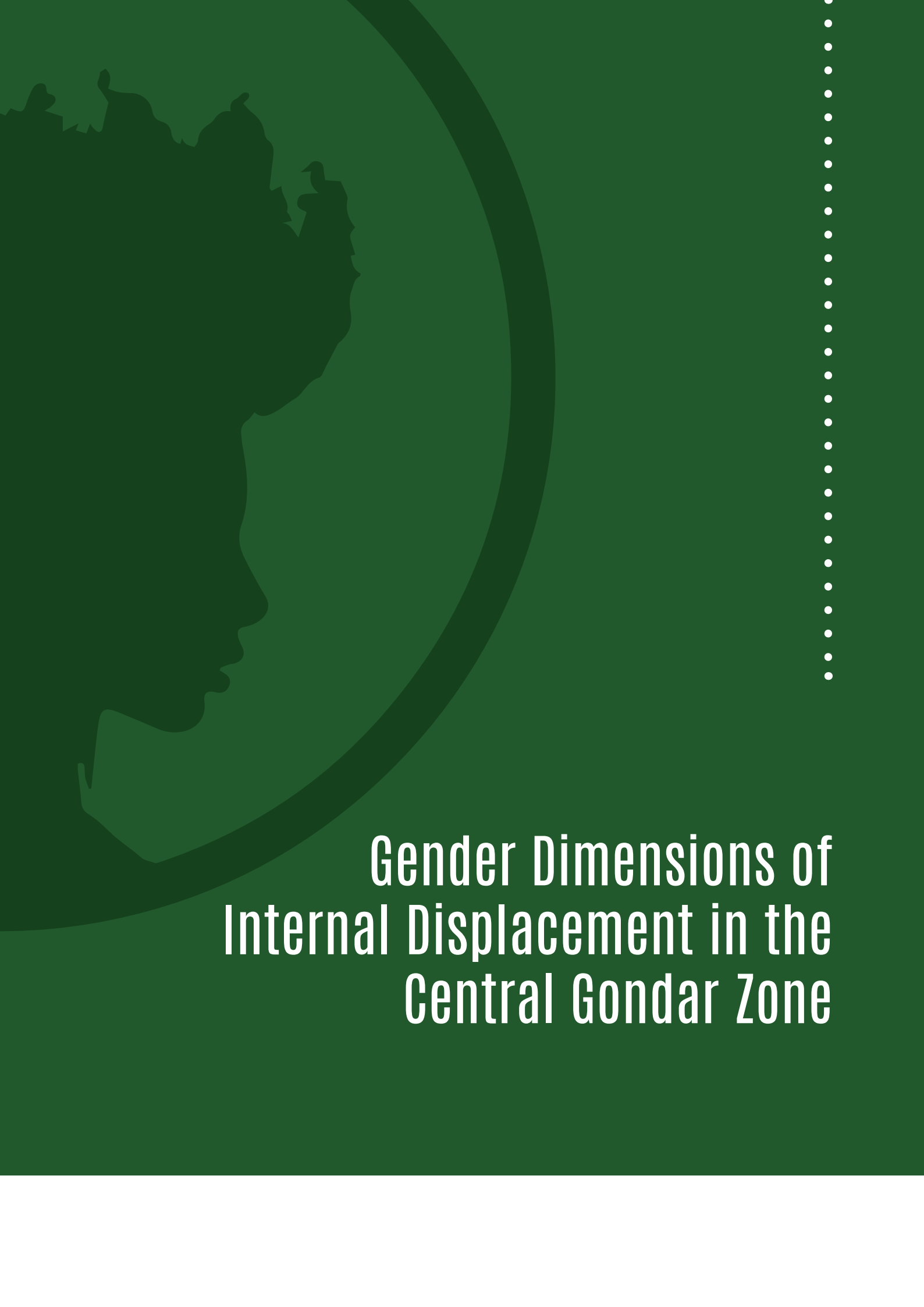
52. National Plan of Action of persons with disabilities of Ethiopia, 2012; National Human right action plan of Ethiopia, 2016

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Gender Dimensions of Internal Displacement in the Central Gondar Zone



Gender Dimensions of Internal Displacement in the Central Gondar Zone

Abebech Chekol¹

Abstract

In 2018, Ethiopia was among the top three countries in the world with the largest internally displaced populations due to conflict and violence, both of which are occurring in six regions, 19 zones & 42 districts. Chilga, East Dembiya and Armachiho districts have the highest population of internal displaced persons in the Central Gondar Zone. Because internal displacement affects men and women differently, the general objective of this study was to analyze gender dimension effects of internal displacement in the Chilga and East Dembiya districts in Central Gondar Zone. Both primary and secondary data sources were used. Primary data was gathered through questionnaires, and in-depth, key informants' interviews. The concurrent parallel design was used and 364 respondents were engaged. Quantitative data was analyzed through the use of descriptive statistics and qualitative data was analyzed through the use of narration and thematic analysis. The results showed that the major effects of internal displacement were insecurity (90%), loss of livelihood (84%), disruption of social life (74%), homelessness (70%), health issues (70%), damaged crops (62%), poor hygiene (58%), stress (57%) and increased gender-based violence (55%). Due to women's limited access to resources, information and mobility, as well as gender roles, women are disproportionately affected by these issues. Displaced women have greater exposure to gender-based violence, unwanted pregnancy, menstrual irregularities, stress, and depression. Not to mention that child birth is taking place in very complicated conditions. In general, internal displacement has economic, social, cultural, political and psychological effects on displaced persons, host communities and nations. However, the effects on women are compounded by their marginalization and the nature of their roles in society. Having noted this, it is recommended that the government take these realities into account and protect the human rights of internally displaced women accordingly.

Keywords - Internal displacement, Gender based violence, Effects and Human right

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INTRODUCTION

Background

Internal displacement is a global humanitarian, human rights, and security issue that poses major challenges for affected countries and regions. Internal displacement is the involuntary or forced movement or relocation of persons or groups of persons within internationally recognized state borders (Africa Union Convention on IDPs, 2009).² Internally displaced persons (IDPs) also means, according to the United Nations Guiding Principles, persons or group of persons who have been forced to leave their homes or places of habitual residence due to armed conflict, violations of human rights, natural or human made disasters, but have not crossed an internationally recognized state border (UN Guiding Principles on Internal Displacement, 1998).³

Globally, the forcibly displaced population increased by 2.9 million in 2017 with a global total of 68.5 million individuals displaced due to persecution, conflict, or generalized violence by the end of the year (UNCHR, 2017).⁴ About 30.6 million new internal displacements associated with conflict and disasters were recorded in 2017 across 143 countries and territories in developing countries (Internal Displacement Monitoring center, 2018).⁵ In 2018, Ethiopia had the largest percentage of IDPs in the world (Yigzaw et.al, 2019).⁶

According to several local and international reports, Ethiopia has topped all countries by recording the highest number of internally displaced people. For instance, a report from the Norwegian Refugee Council shows that conflict has uprooted about 1.4 million Ethiopians from their homes in Amhara, Somali, Oromia, and Southern Nations, Nationalities, and People's (SNNP) regions in 2018 alone (Norewegian Refugee Council, 2018).⁷ Similarly, the International Displacement Monitoring Center report indicated that a new conflict broke out in west Goji and Gedeo that caused more than a million new displacements in the first half of 2018 alone (Internal Displacement Monitoring Center, 2018).⁸

Internally displaced people are the most vulnerable groups worldwide as compared to refugees who have legal protection by international communities. In general, internally displaced people have less legal protection because of the relatively little attention paid to them by international communities (Michele, 2013).⁹ Internally displaced people go through different socio-economic problems which extend from displacement to the recovery phases. According to a report from the International Organization for Migration on Internal Displacement, many displaced people live in camps and camp like settings where they face challenges from host communities (discrimination, exploitation and severe deprivation) that increases their vulnerability to trafficking and risk of being recruitment into dangerous activities (International Organization for Migration, 2017).¹⁰

Generally, internal displacement can have severe adverse effects on the physical, social, emotional and spiritual well-being of a person. However, the conditions affect women and men differently. Internally displaced women face a range of protection issues on a daily basis, most notably, sexual and gender-based violence (Brooking Institution, 2014).¹¹ Therefore, this study is focused on the gender dimension of Internal Displacement and its specific effects on women in the East Dembiya and Chilga districts in the Central Gondar Zone.

2. Africa Union Convention on IDPs. (2009). Africa Union Convention for the Protection and Assistance of Internally Displaced persons in Africa (Kampala Convention).

3. UN Guiding Principles on Internal Displacement, 1998

4. UNCHR, 2017

5. Internal Displacement Monitoring center, 2018

6. Yigzaw et.al, 2019

7. Norewegian Refugee Council, 2018

8. Internal Displacement Monitoring Center, 2018

9. Michele, 2013

10. International Organization for Migration, 2017

11. Brookings Institution, 2014

Problem Statement of the Study

Internal displacement occurred in 6 regions, 19 zones and 42 districts in Ethiopia in 2018 and 2019 (Ministor of peace, 2019)¹². In September 2018, more than 90,000 IDPs were displaced in the Amhara region especially from Chilga No.1 and No.2, as well as in the Eastern Dembiya and Armachiho localities due to longstanding tensions and sporadic conflicts between the Amhara and Qemant communities (International Organization for Migration, 2019).¹³ Many of those displaced are sheltered near T/Dingay town and western Dembiya's Aymba kebeles (Amhara Region Report , 2019).¹⁴ According to a Chilga No.2 report, the homes and properties of around 17,000 internally displaced peoples who sheltered in Aymba and Azezo were damaged. That situation was especially difficult for women, children and elders who have limited mobility.

Studies have been conducted on health and internal displacement related issues in Africa. These studies cover the health and social assessment of IDPs (Etikan and Ogujesa, 2019),¹⁵ health risks among vulnerable groups of IDPs (Suleiman, 2018)¹⁶ and an assessment of symptoms among IDPs (Harry et al, 2016)¹⁷. However, they fail to show the gender dimension effects of internal displacement.

Although there have been many studies conducted in Ethiopia on the effects of internal displacement (Adisu, 2019; Dereje, 2019; Wakigril, 2019; Yigzaw et.al, 2019; Abdusalam and Belay , 2018; Habtamu and Jannel, 2017)¹⁸, none of these studies reflect on the gender dimension of internal displacement or the compounded effects of internal displacement for women. This study is an attempt to fill this gap.

Objective of the Study

The overall objective of this study is to assess the effects of internal displacement in Chilga and East Dembiya districts in the Central Gondar Zone using a gender lens. Specifically, the aim of the study is to identify the effects of internal displacement and its effects on women and men in the study area.

RESEARCH METHODOLOGY

Description of the Study Area

Chilga No.1 and Chilga No.2 districts are found in the Central Gondar Zone which is 52 km away from Gondar city. The districts are bordered by the Armachho district (north), Takusa district (south), Metema district (west) and the Dembiya district (east). Currently, Chilga No. 1 has 23 rural and 2 urban kebeles and Chilga No.2 has 16 rural kebeles.

East Dembiya is a district with 34 kebeles in the Central Gondar Zone of the Amhara Region of Ethiopia. It borders Central Gondar (east), Chuahet (west), Lake Tana (south), and lower Armachiho and Chilga (north) and is situated 35 kilometers away from Gondar city.

This study was conducted in Tereb Seroka and Eyaho Kebeles in Chilga No.1, Laza Kebele in Chilga No.2, and Shemano, Meqamiya and Aderjeha Kebeles in the East Dembiya District.

12. Ministor of Peace, 2019

13. International Organization for Migration, 2019

14. Amhara Region Report, 2019

15. Etikan and Ogujesa, 2019

16. Suleiman, 2018

17. Harry et al, 2016

18. Adisu, 2019; Dereje, 2019; Wakigril, 2019; Yigzaw et.al, 2019; Abdusalam and Belay, 2018; Habtamu and Jannel, 2017

Research Methods

Research Design and Approach

The study used a concurrent parallel design which is a single respondent at a single point in time while combining both quantitative and qualitative data gathering. The study also collected mixed research which is the use of both qualitative and quantitative data as a means to cross-check and verify the reliability and validity of the data collected (Meneill and Chapman, 2005).¹⁹

Sampling Techniques and Sample Size Determination

Probability and non-probability sampling techniques were used to select the study area, kebeles and respondents. For this, a multi-stage sampling procedure was employed. First, Chilga No.1, No.2, and East Dembiya districts were selected purposely as sample kebeles because the issue of internal displacement was high and spread out across too many areas to gather research from. Then, the simple random sampling technique was employed to select respondents. The sample from each kebele was determined based on proportion to allow for equal representation (Yemane, 1967; cited in Israel, 1992).²⁰ The sample size method is mathematically represented as:

$$n = N / 1 - N (e)^2$$

'n' designates the sample size; 'N' designates total number of households in all sample kebeles (4102); 'e' designates the maximum variability or margin of error 5% (0.05); and '1' designates the probability of the event occurring. Based on the formula above, the total of sample respondents is 364.

Data Sources and Data Collection Methods

This study used both primary and secondary data sources. Primary data was collected through surveys, in depth interviews and key informants' interviews. In depth interviews were held with internal displaced persons. Key informant interviews were held with district leaders and community representatives in the sample kebeles. Secondary data was gathered from books, reports, journals, policy and legal documents.

Methods of Data Analyses

After collecting the data, analysis was conducted through both quantitative and qualitative methods. The 20.0 version of Statistical Package for Social Sciences (SPSS) and Microsoft Excel was used to analyze and present the data.

Results and Discussions

Characteristics of the Respondents

Of the survey respondents, 54 % were male and 46% were female, about which 38% were literate and 62% illiterate (Table 1). From the results, it is evident that there is a high illiteracy rate among the respondents, especially amongst women. It is important to assess literacy because access to information and knowledge is critical in being able to make decisions, negotiate and to have ownership of one's life. Women are generally at a greater disadvantage because they have less access to educational opportunities than men.

19. Meneill and Chapman, 2005

20. Yemane, 1967; cited in Israel, 1992

Table 1: Sex and literacy of Respondents

Variables	Frequency (#)	Percentage (%)
Sex		
Male	197	54
Female	167	46
Literacy		
Literate - Male	87	63
Literate - Female	51	37
-Total	138	37.9
Illiterate - Male	51	22.6
Illiterate - Female	175	77.4
-Total	226	62.1

Source: Field Survey Result, 2019/2020

Effects of Internal Displacement

As presented in figure 1, the respondents stated that the major effects of internal displacement include insecurity (90%), loss of livelihoods (84%), disruption of social life (74%), homelessness (70%), health problem (70%), crop damage (62%), poor hygiene (58%), stress (57%) and gender-based violence (55%). These results were confirmed through key informant interviews and in-depth interviews.

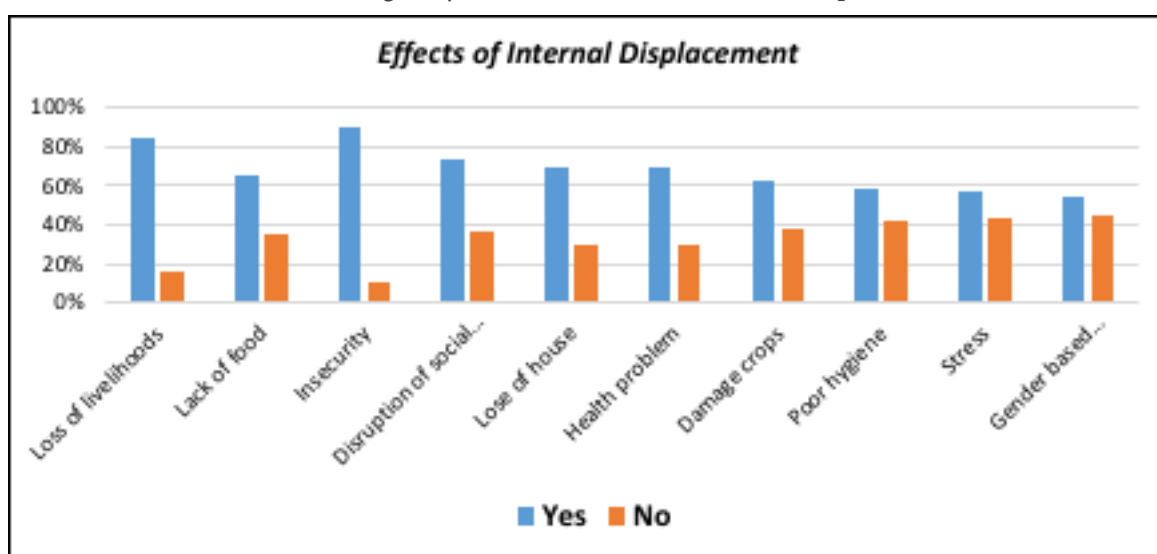


Figure 1: Effects of Internal Displacement in the Study Area (Multiple Response)

As noted, one of the respondents said:

“Internal Displacement has many negative effects. The major effects include homelessness, loss of livelihoods, loss of crops, loss of human life, violence, interruption of children’s education, food insecurity, family breakdown, stress and exposure to transmittable diseases.”

In addition to this, an in-depth interviewee added:

“Gender based violence, unwanted pregnancies, menstruation irregularity due to stress and depression, separation of family due to ethnic differences, insecurity, and limited mobility all increase women’s burdens.”

This implies that internal displacement has many negative effects including economic, social, cultural, political and psychological effects. The Internal Displacement Monitoring Center (2018) findings state that internal displacement affects the lives of displaced people and their host communities in different ways which can have significant and long-lasting effects on their socio-economics development. However, internally displaced persons are more affected by internal displacement than the host communities and refugees. According to Michele (2013), internally displaced persons are the most vulnerable groups worldwide, as compared to refugees, because internally displaced persons are given less priority and therefore receive less legal protection from international communities. Internal displacement affects the lives of displaced people in different ways according to the results and those results imply the violation of human rights.

Effects of Internal Displacement on Women & Men

The multiple effects of internal displacement affect women and men differently, especially considering insecurity, stress, gender-based violence, crop damage and poor hygiene (figure 2). This was confirmed in both in-depth and key informants interviews.

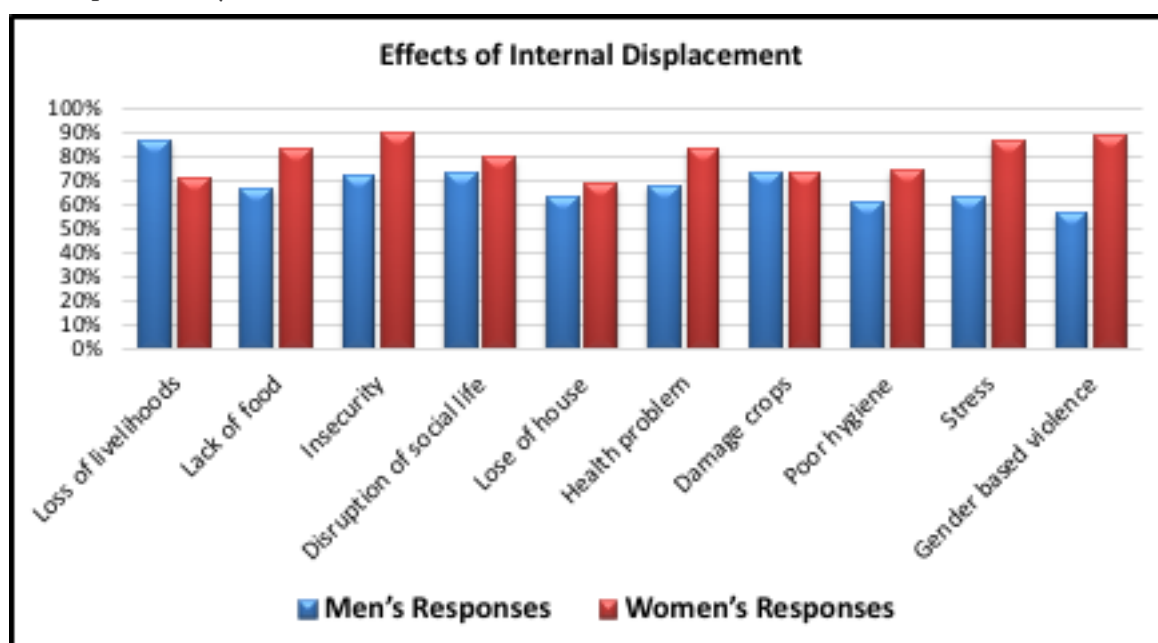


Figure 2: Effects of Internal Displacement on Men and Women (multiple responses)

An in-depth interview participant stated...

“Women are more affected because of the three roles they play. This includes being a productive member of society that can reproduce and is community service oriented while having limited access to resources and information, limited mobility and voice in community as well as gender-based violence. Women are exposed to physical, mental and emotional strain and tension caused by their multiple responsibilities and limitations that overworks both their mind and body.”

One of the key informants who was working in Aymba said

“People who live in Aymba received around 13,000 internal displaced persons who came from Chilga No.1 & 2. The problems displaced persons have been facing so far include the lack of access to housing, food, and water. The local communities have helped by providing housing and collecting clothes and food, however, the situation was very difficult for women and children, especially pregnant women.

Pregnant women have had to give birth under very complicated conditions with poor hygiene.”

The above narration highlights how internal displacement affects women and men differently, resulting in greater human rights violations experienced by women. For instance, displaced women face special challenges in accessing healthcare and have different needs, which, when not provided, can result in death, birthing complications, unplanned pregnancies and unattended childbirth (Brooking Institution, 2014; Mulugeta, 2010).²¹ Moreover, displaced women living in insecure shelters are at a higher risk of experiencing sexual violence.

Theoretically, different international treaties have centered equal rights for women and men around economic, social, cultural, political and civil rights. For instance, International Convention on Economic, Social and Cultural Rights in article (3) states that “the equal right of men and women to the enjoyment of all economic, social and cultural rights set forth in the present Covenant” (ICESCR, 1966).²² The International Convention on Civil and Political Rights (ICCPR) in article 3 indicated that “the right to equality between women and men in the enjoyment of their civil & political rights” (ICCPR, 1966).²³ Ethiopia ratified these international treaties and incorporated its ideals into the Constitution of the Federal Democratic Republic of Ethiopia. For example, in the constitution of FDRE in Article 9(4) it states that all international agreements ratified by Ethiopia are an integral part of the law of the land. In Article 35, the rights of women are referenced in the provision of economic, political, cultural, civil and political rights equal to that of men (FDRE, 1994).²⁴ However, women and men do not enjoy the economic, social, cultural, civil and political rights equally, especially those that are internally displaced.

CONCLUSION AND RECOMMENDATIONS

Conclusion

The overall objective of this study is to assess the effects of internal displacement along gender lines in the Chilga and East Dembiya Districts in Central Gondar Zone. The study identified the effects of internal displacement on women and men in the study area.

The result of the study indicated that the major effects of internal displacement including insecurity, loss of livelihoods, social life disruption, homelessness, health issues, crop damage, poor hygiene, stress, and gender-based violence, all of which affect both women and men, but affect women more and in a variety of ways due to gender roles. Insecurity, stress, gender-based violence, health issues, and limited access to resources and information disproportionately affect women.

Recommendations

The following are recommendations based on the conclusions:

- Government action to protect and ensure the human rights of internally displaced women
- Concentrated efforts to focus stakeholder’s (non-government organizations, the Government of Ethiopia, religious and higher education institutions) efforts on raising the community’s awareness about the effects of internal displacement on individuals, groups and the nation through trainings, conferences and extension services
- Investigative research on the causes of the disproportional effects on women and mechanisms to improve the situation that involve both men and women

21. Brooking Institution, 2014; Mulugeta, 2010

22. ICESCR, 1966

23. ICCPR, 1966

24. FDRE, 1994

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Right Based Approach to Women's Access to Clean Energy



Right Based Approach to Women's Access to Clean Energy

Filagot Tsefaye¹ & Mahlet Desalgn²

Abstract

In Ethiopia, 57% of households have access to at least one source of electricity and 43% have no access to any electricity source. 88% of people's energy source is from biomass and from this, the household sector accounts for 88.2% of total final energy consumption, the majority of which is collected and used by women. Ethiopian Women are more vulnerable to the lack of energy access as women are primary caregivers and providers of both food and fuel. The use of traditional wood-fired stoves and open fires cause indoor air pollution which can result in serious health problems, primarily for women and children who are primary users. The strenuous task of collecting firewood for cooking is usually carried out by women, which exposes women to the risk of injuries, pregnancy complications and even maternal mortality. In the rural areas of Ethiopia, women and children endure injuries due to kerosene burns. With only 24% of female Ethiopian Electric Utility employees, female participation and representation in the energy sector is very minimal as is women's representation in the energy sector. The lack of female involvement in the energy sector is holding back development.

Women can play a critical role in response to energy poverty by using their local knowledge and skills regarding sustainable resource management at the household and community levels. Incorporating female representation at the institutional and community level is crucial for women to ensure their access to clean energy. It is time for decision makers to find mechanisms to fully support women as important stakeholders in the energy sector and as citizens with the basic right to energy. Additionally, engaging more women as decision makers plays an important role in reaching female customers, creating employment opportunities and ensuring the sustainable utilization of technology.

Keywords - Clean energy, Women, Poverty, Representation, Rights

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Introduction

Today, more than 70% of the world live in the 20 most populous countries, of which Ethiopia is ranked 12th with a population of 115,485,981 (Country meter, 2020).³ In Ethiopia, 21.3% of the population lives in urban areas and 78.7% reside in rural areas where women carry out the majority of the household and agricultural labor. The work includes washing, cleaning, preparing of meals, child rearing and taking care of the family's needs. In rural communities, apart from their various household responsibilities, women are involved in tending to livestock for the purpose of land cultivation, harvesting, food storage, and construction of houses. On top of that, in many rural communities, girls are trained from a young age to assist with household responsibilities (Slmeida & Alphina, 1994)⁴. Women are producers, procreators and active participants in the community's social and cultural activities.

The development of a country is correlated to its consumption of electric power. A developed country consumes higher volumes of energy and underdeveloped countries have lower consumption rates. The quality of life also depends on the electric power infrastructure (Getie E. M., 2020).⁵ Ethiopia has abundant electric power resource potential with nonrenewable and renewable energy resources. However, 55% of the population use wood for food preparation and have no electrical infrastructure (IEA, 2019).⁶

All around the world, women's contribution goes largely unrecognized. They face restrictions on access to resources, participation in decision making roles, and engaging in income generating activities. Many women in developing countries like Ethiopia have direct contact with the natural environment as they collect essential items for their daily needs. In lower and middle class households and across rural Ethiopia, women use traditional open fires fueled by fire wood and charcoal.

Women have numerous responsibilities that are undeniably essential at the household, community and national levels yet they are denied the right to access energy. Women are vulnerable to lack of energy access due to their role as primary caregivers and providers of food and fuel. The indoor air pollution caused by the use of traditional wood-fired stoves and open fires expose women and children to serious health problems.

Access to Energy

Energy is crucial for socio-economic growth, the alleviation of poverty and the improvement of living standards. At the household level, energy is critical for basic functions, such as lighting, cooking, heating and the operation of appliances. Energy is needed to support livelihoods, education and overall wellbeing. There is no universally adopted definition of what 'access to energy' means, however, most definitions are aligned with the delivery of energy or electricity to safe cooking facilities and a minimum level of consumption (Ritchie & Roser, 2019).⁷ The International Energy Agency (IEA) definition entails more than just the delivery of energy to households, it specifies the minimum level of electricity that households need. The minimum level of electricity, although increasing overtime, is determined based on whether the household is in a rural or urban area. For rural households, the minimum threshold is 250 Kilowatt (Kw) per year and for urban households it is 500 Kw per year (International Energy Agency, 2019).⁸

Access to energy is increasingly being recognized as a key enabler of economic growth, sustainable development and poverty reduction. So much so that it is a stated goal in the UN Sustainable Development Goals (UN SDGs). However, despite significant progress in recent years, the world is falling behind in meeting the global energy targets set in the UN SDGs for 2030 (World Bank, 2019).⁹ According to a new report produced by a cohort of international energy experts, ensuring affordable, reliable, sustainable and modern energy for all by the year 2030 is still possible. However, it will require more sustained

3. Country meter, 2020

4. Slmeida & Alphina, 1994

5. Getie E. M., 2020

6. (IEA, 2019)

7. Ritchie & Roser, 2019

8. International Energy Agency, 2019

9. World Bank, 2019

efforts to reach some of the world's poorest populations and to improve energy sustainability. The report stating this was produced by the International Energy Agency (IEA), the International Renewable Energy Agency (IRENA), the United Nations Statistics Division (UNSD), the World Bank and the World Health Organization (United Nations, 2019).¹⁰

Energy poverty is pervasive. One in five people in Africa and South Asia do not have access to electricity. Close to 3 billion people (40% of the global population) burn solid fuels like wood, charcoal, animal waste or crop residue in open fires or sub-par stoves for their daily cooking and heating needs (United Nations Development Programme, 2017).¹¹ The electrification rate in Africa increased by 12.9% (to 43%) in the 20 years from 1990 to 2010 going from 186 million to 444 million people with access to electricity with the increase of 12.8 million people gaining access per year. However, the total population during the 20 year period increased annually by 20.65 million, outpacing electrification efforts (UNECA, 2018).¹² Between 2010 and 2012, the electrification rate in Africa increased to 45.1% with 25 million people gaining access to electricity per year while the total population grew by 27.5 million per year (IEA, 2019).¹³ From 2012 to 2014, the electrification rate in Africa continued to grow, reaching 46.9%, while the global average was 85.6% (ECA, 2017).¹⁴

Sub-Saharan Africa (SSA) has the lowest energy access in the world. Electricity reaches only about half of its people, with one third of the population cooking with clean energy and roughly 600 million people cooking with traditional fuels (International Energy Access, 2018).¹⁵ A World Bank Sustainable Energy for All 2020 report shows that in 25 sub-Saharan countries including Ethiopia, less than 50% of the country has access to energy; in 5 countries, it is below 25%.

Ethiopia has a final energy consumption of around 40,000 GWh, whereby 92% is consumed by domestic appliances, 4% by the transport sector and 3% by industrial sector. Most of the energy supply is bioenergy, which in the case of domestic use, usually comes from unsustainable sources (Energylopedia, 2020).¹⁶ Ethiopian households that have access to at least one source of electricity account for 57% of the population. 88% of people's energy source comes from biomass and from this the household sector accounts for 88.2% of total final energy consumption, the majority of which is collected and used by women (Hossain, Elizabeth, Claudia, Mekonnen, & Rosegrant, 2018).¹⁷ Ethiopia is now focused on utilizing hydropower as the main source of energy. Nevertheless, political issues with neighboring countries that have been dependent on the Nile river, with 85% of its water source coming from Ethiopia, have made the Ethiopia's plans precarious and unpredictable (Mukum, 2020).¹⁸

Access to Clean Energy

Clean energy is energy that will not pollute the environment. Also referred to as renewable energy, it is energy that does not incur environmental debt by using up resources that cannot be replaced or severely damaging the environment so that the future generation must solve problems created today (Christensen, 2020).¹⁹ The basic forms of clean energy are energy sources that are generated from water, wind or solar. Clean energy works to combat climate change by creating little to no emissions that pollute the environment.

Access to clean energy is essential to the modernization of energy and public health services. Additionally, access to clean energy is necessary to reducing gender inequality and mitigating environmental impacts for poorer populations (The Research and Data Section of UN Women, 2014).²⁰ The use of traditional

10. United Nations, 2019

11. United Nations Development Programme, 2017

12. UNECA, 2018

13. IEA, 2019

14. ECA, 2017

15. International Energy Access, 2018

16. Energylopedia, 2020

17. Hossain, Elizabeth, Claudia, Mekonnen, & Rosegrant, 2018

18. Mukum, 2020

19. Christensen, 2020

20. The Research and Data Section of UN Women, 2014

biomass (wood, charcoal, and dung) in open fires or sub-par stoves for cooking and heating compromises the indoor air quality. Indoor smoke contains a variety of pollutants that, when inhaled, can lead to adverse health effects, especially for women whose lungs consume it most.

Ethiopia is facing the dual challenge of limited access to modern energy and a heavy reliance on traditional biomass energy. Access to clean cooking solutions is still very limited throughout the country (Ministry of Water, Irrigation and Energy, 2020).²¹ Despite the country having a rich endowment of renewable energy sources and having achieved almost total access to electricity in urban areas, access in rural areas is still limited to zero.

With the goal of becoming a middle-income country by 2025, Ethiopia is making major strides to promote clean and sustainability energy. As part of its Growth and Transformation Plan (GTP), the Ethiopian government is working on a variety of clean energy projects and initiatives to build clean energy production. Currently, Ethiopia's main source of clean energy is hydropower; however, the government is expanding its thermal, solar and wind energy. (Bykov, 2019).²²

Lack of Access to Energy

Energy is arguably one of the major challenges the world faces today that touching all aspects of our lives. For those living in extreme poverty, the lack of access to modern energy services dramatically affects their health, limits the number of opportunities to create jobs and generate income, limits sustainable development and widens the gap between the haves and have nots (WHO, 2009).²³ The immediate obstacle to access to energy for many poor households and governments in developing countries is the lack of financial resources. Where access to energy is lacking, the needs of other urgent human and societal needs are often not met, meaning that energy needs must compete with other priorities (Ahuja & Tatsutani, 2009).²⁴

Ethiopia has tremendous advantages. The country has the second highest installed and available capacity for electricity generation in Sub-Saharan Africa, at 4.5 Giga Watt (IRENA, 2012).²⁵ It has a well developed transmission and distribution network, with nearly 80% of the population living within proximity of medium-voltage transmission lines (IRENA, 2012).²⁶ It has abundant sources of renewable energy just waiting to be tapped. The wind, solar and geothermal energy possibilities are enough to easily supply the entire country's power needs. It is one of the few countries in the world where the electric grid is nearly 100% supplied by renewable sources.

These advantages, however, stand in contrast to the realities on the ground. About 70% of the population lives without electricity. The lack of power also impacts basic services with only 24% of primary schools and 30% of health clinics having access to electricity. This discrepancy between abundant resources and unmet needs points to the need for a radical new approach (The World bank, 2018).²⁷

The lack of access to modern energy poses significant economic, environmental, and social challenges. Affordable and clean energy services are critical in supporting the provision of basic needs such as food, light, utilities, water, sanitation, essential health care, education, communication and transportation. These services also have impacts on income generation and productive activities such as agriculture and industry; this means that a lack of access to energy leads to increased poverty and inequality.

21. Ministry of Water, Irrigation and Energy, 2020

22. Bykov, 2019

23. WHO, 2009

24. Ahuja & Tatsutani, 2009

25. IRENA, 2012

26. ibid

27. The World bank, 2018

Impacts of the Lack of Energy Access on Women

Energy poverty has a female face. Men and women use energy differently and therefore have different levels of access to it. While men are the beneficiaries of energy, women are the primary energy users and the most vulnerable to the lack of energy access. With limited or no energy access, they are the one responsible for finding alternative energy sources to meet their daily needs; they work in the home where they prepare food, wash clothes and carry out other household activities. They depend on small-scale agriculture and locally available resources to support their daily needs. Even where infrastructure is physically available, women are often hindered in gaining access to the available energy sources due to the lack of finances, appliances, information, training and education (International Network on Gender and sustainable energy, 2020).²⁸ The lack of access to clean energy also has a huge impact on climate change and air pollution.

Every day, women around the world face the consequences of not having access to modern energy. The use of electricity has a gendered impact on labor supply and labor demand, leading to different income generation outcomes for men and women. Because women are the primary energy users, it is their time that is spent finding alternative energy sources such as collecting and hauling firewood, charcoal, and animal dung. Energy access can affect the opportunities that the labor markets have to offer women when it comes to income generation (Winther, Matinga, Ulsrud, & Standal, 2017).²⁹ When health facilities do not have energy, they cannot pump water for patients which cost of the lives of pregnant women during delivery. The lack of energy for water pumping forces women to travel long distances to fetch water which lessens their productivity by causing them to spend a significant amount of their energy on getting water alone. Traveling far distances to fetch water also makes them vulnerable to violence and abduction, especially if there is a scarcity in water sources in their area.

Women in rural areas usually spend hours each day searching for fuel wood or resort to collecting and using various forms of biomass, dead wood, grass shrubs, saw dust, wood chips, trimmings, twigs, animal dung, crop residue and other plant materials (Olugboji, 2016).³⁰ Urban women, however, rely on firewood merchants. In addition to the daily struggles that women face in finding sufficient firewood for their energy needs, the smoke and residue from open fire stoves pose grave dangers to their health (Olanike, 2020).³¹ Women and children, particularly in rural areas, face the risk of injuries and kerosene burns.

Access to modern energy services play a key role in facilitating access to basic necessities such as clean water, sanitation, health, cooking, mechanical power, transport and telecommunication services (Habtezion, 2013).³² Access to clean energy directly benefits women's health and wellbeing.

Women's Participation in the Energy Sector

Women represent the majority of the Ethiopian population at 50.2% of the population (United Nation , 2017).³³ However, Ethiopia has one of the lowest gender equality performance indicators. The 2010 Global Gender Gap report ranks Ethiopia at 121 out of 134 countries in terms of the magnitude and scope of gender disparities. Contrary to Ethiopia's progress in achieving many of the Millennium Development Goals (MDGs), improvement in women's empowerment (MDG-3) is minimal (UN Women, 2018).³⁴ Women are strongly disadvantaged compared to men in several areas. They are restricted from making decisions on matters that pertain to their interests and are disproportionately excluded from social, economic and political spheres (UN Women, 2018).³⁵ In 2016 a report revealed that only 48% of married women between the ages of 15–49 were employed in the 12 months leading up to the survey while 99% of married men in the same age group were either employed or had been employed in the last 12 months. In terms of earnings,

28. International Network on Gender and sustainable energy, 2020

29. Winther, Matinga, Ulsrud, & Standal, 2017

30. Olugboji, 2016

31. Olanike, 2020

32. Habtezion, 2013

33. United Nation, 2017

34. UN Women, 2018

35. *ibid*

58% of women earn less than their husbands while 16% of women earn more than their husbands (CSA and ICF , 2016).³⁶ Marriage also plays a huge role in hindering women from gaining an education. Women have a high drop-out rate from school after marriage; 25% of women were attending school when they got married and 75% of these women stopped going to school after they married (CSA and ICF , 2016).³⁷

Efforts to address gender in energy at the household and community level is often focused on women's access to energy sources and clean cookstoves, enhancing women's economic situation, or building women's entrepreneurship skills in the energy market (Elwell, Mershon, & Aguilar, 2014).³⁸ However, gender issues are not addressed enough in policy making or at the higher levels of the energy industry.

Women's participation and representation in the energy sector is very minimal. Globally, the National Association of Regulatory Utility Commissioners (NARUC) has observed disproportionately low levels of female participation in energy regulation and also noted the need for a resource that can inform and provide guidance to energy regulators on gender equality. In the local setting, a recent World Bank study indicated that only 24% of Ethiopian Electric Utility employees are female. In Ethiopia, a web of contributing factors such as harmful cultural practices and gender norms prevent women from joining the formal workforce, particularly from joining the male dominated energy sector. This industry is one of Ethiopia's key growth areas and the exclusion of women from opportunities in this market deepens Ethiopia's gaps in gender equality (USAID , 2020).³⁹ When women are employed in energy enterprises, social norms may confine them to more transient, lesser paid positions. Gender biases also limit the participation of women in technology design, making systems less attuned to the needs of the primary energy users, women (Baruah 2015). These biases can also hinder the information women receive on new or updated forms of energy or energy technology (ESMAP, 2013).⁴⁰ Discriminatory social norms and practices can limit opportunities for different demographics and socio-economic classes (Nelson & T.Kuriakose, 2017).⁴¹ The lack of female involvement in the energy sector is holding back the development of the energy sector.

There are grave consequences of policies and investments that do not take into account of the needs of women in regards to energy access. Since women often make decisions at the household level about energy use and are the primary users of energy, energy policies can tap into the social implications by better understanding the needs of women. When women serve as policymakers, executives, employees, and entrepreneurs, evidence shows that energy policies are more effective, energy related products have higher sales, and utilities have higher returns on equity and investment (USAID, 2020).⁴² Gender equity in energy enables economic prosperity for all citizens. In addition to empowering and supporting women as employees and policymakers, the inclusion of women can reduce the negative impacts that regulatory policies have on energy users as well as the negative impacts of infrastructure projects by helping redirect those projects to improve the livelihoods of vulnerable populations (USAID, 2020).⁴³

Conclusion

Access to clean energy is a woman's right. Energy allows women to engage in and have access to knowledge, finance, socio-economic development, economic independence and growth. Women and men face different challenges in the use of energy and in their access to energy. Women are energy producers and consumers which means that the lack of access to energy impacts women's health, productivity, development and growth.

When women have access to energy it contributes to poverty reduction. Energy access saves women a great deal of time, substitutes the need for arduous manual labor and eliminates the drudgery of fetching

36. CSA and ICF , 2016

37. Ibid

38. Elwell, Mershon, & Aguilar, 2014)

39. USAID , 2020

40. ESMAP, 2013

41. Nelson & T.Kuriakose, 2017

42. USAID, 2020

43. Ibid

fuel wood and water. Access to energy frees up women's time for income generating activities. When energy forms such as wood fuel and kerosene stoves that generate pollution are replaced by improved clean energy access, it reduces indoor air pollution levels and therefore improves the health of women and children. Women can play a critical role in responding to energy poverty by using their local knowledge and sustainable resource management skills at the household and community level.

Recommendations

The following recommendations are based on the findings of this study and provided to ensure women's right to energy access.

- Women should be encouraged and given the space to participate in making of policy regulations in the energy sector. The inclusion of women in energy access activities is critical in understanding the barriers and special use cases for women in relation to energy access.
- Gender balance should be ensured in each phase of energy projects. This can be done by intentionally including the perspectives of women as both beneficiaries as well as active participants in the design and implementation of the projects.
- Women should gain access to economic independence and work in energy sector related business opportunities in their communities.
- The government should encourage and invest in renewable energy technology and encourage women to use the generated energy to generate income through businesses such as barber shops, recreation centers, poultry, sewing, etc.

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**The Construction of Masculinity
and the Attitude Boys Have Towards
Violence Against Girls and Women:
The Case of Mekelle University
Community High School**



The Construction of Masculinity and the Attitude Boys Have Towards Violence Against Girls and Women: The Case of Mekelle University Community High School

Tsigereda Tefera¹

Abstract

In a patriarchal society where men's dominance over women prevails, violence against women and girls is inevitable. Harmful masculine behavior learned from boyhood contributes to the prevalence of violence against women and girls. This research explores the construction of masculinity and the attitude high school boys from different backgrounds (rural/urban and two-parent households/single-parent households) have towards violence against women and girls. Multiple qualitative case study research approaches were employed. Data was collected through four (4) group discussions with thirty-six (36) high school boys in each group. The findings indicate that married couples tend to discourage their sons from playing roles that are traditionally done by women. On the contrary, boys from single-parent households, in both rural and urban areas, are encouraged to take on roles traditionally assigned to women. Even though the boys had different backgrounds that either conformed with or challenged traditional masculine roles, when it came to violence against women and girls, all of the participants exhibited similar attitudes. They appeared to know about violence against women, yet many normalize and justify the violence. Therefore, to end violence against women and girls in the future, there is a need to educate boys on challenging violence against women and girls and its inhuman justifications.

Key words - Masculinity, gender-based violence, boys, rural, urban, two-parent households and single-parent households

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Background of the Study

Masculinity functions as an identity and is based on norms assigned to males;² it is a prescription of how boys and men should act. Harris (1995) contends that masculinity is learned rather than inherited. Parents, teachers, media, movies, preachers, celebrities, and warriors all have the potential to define masculinity to young boys. In contrast, essentialists such as Freud believed that masculinity is biologically, not socially, constructed.³

For validation, boys behave in ways perceived to be masculine, even if it is morally unacceptable or threatens their health. For instance, as Amin et al (2018) described, boys can be physically violent towards one another and take risky actions such as driving fast, using drugs, starting sexual relations at an early age, having unsafe sex, and being physically or sexually violent towards girls. In some instances, if boys are unable to display these behaviors, then they can suffer bullying or rejection from their friends.⁴

Gender norms that shape the construction of masculinity among boys are not universal. They vary from culture to culture and from place to place. However, little has been said on this area. Amin et al (2018) pointed out the lack of studies on the different groups of boys (village and city, single and married households, etc) and how their varied orientations around masculinity might affect their attitude towards violence against women. This study explores the urban and rural construction of masculinity and the attitudes of adolescent boys, from both single-parent and two-parent households, towards violence against girls and women. The study was conducted with Mekelle University Community High School.

The findings in this study provide insight to stakeholders working on the prevention of violence against girls and women and serves as a starting point for larger-scale studies on similar topics.

Methods

The purpose of the research was to explore the constructions of masculinity and the attitude of boys towards violence against girls and women. The research process included a multiple case studies research design with a qualitative approach. Thirty-six (36) high school boys from Mekelle University Community High School, ages ranging from fifteen to seventeen years old, were purposively selected for this study. The school in comparison with other schools in Mekelle, Mekelle University Community High School has a diverse student population coming from both the village and the city. The boys were selected based on their differences in background. Mekelle has different demographics: on the outskirts, there is a semi-agrarian society where their livelihood is based on both agriculture and informal employment, such as day laborers, security guards, etc. These areas are referred to as the village. The rest of the city usually has good access to infrastructure and information and residents can earn income by either employment in private/public sectors or through self-employment. These areas are referred to as the city.

To collect data, a focused group discussion was used. Discussions were carried out with four separate groups: single-parent households from the city, two-parent households from the city, two-parent households from the village, and single-parent households from the village. After the data was collected, it was transcribed and translated to English, then analyzed and interpreted thematically.

2. UNESCO, 2000

3. Person and Ovesey, 1983

4. *ibid*

Results

Construction of Masculinity

Definition of masculinity

According to the research participants, the definition of masculinity is a juxtaposition to the traditional role of women. For example, a participant that came from two-parent households and villages defined masculinity as “men performing the work that women cannot do, for example, farming.” Another participant defined masculinity as “someone whose work is different from that of women, especially heavylifting work that women cannot do” (single-parent household; city). Masculinity was also described as being “the breadwinner for his family” – tenkiro yemiyastedadir (married household; city), the traditional gender role assigned to men. In terms of characteristics, respondents also described masculinity as “the one who does not give up; the one who respects women” (married couples; city) and a “hero” (single-parent household; city). The respondents general defined masculinity is generally as a sign of physical strength that takes on the role of being the breadwinner.

The perceived ideal of masculinity affects the construction of masculinity among boys. As the participants of the study described, boys with an ideal display of masculinity are those who respect elders and parents, who perform well in school and do not have conflicts with friends, who are peacemakers, sociable, strong, clean, dress well and do not have a girlfriend. They also mentioned that a boy who assists his mother in doing household chores is considered a good boy. “A boy who performs household chores such as gathering wood for fuel, washing clothes and who do not care if doing this means being called a sissy boy” (single-parent household; village) said one participant. It can be concluded from the group discussion that ideal masculinity is made up of three major characteristics: respectable and presentable behavior, educated, and controlled sexuality.

Sources of masculinity

Masculinity is learned from different sources. Most of the teenagers who came from the married household noted that they were taught about masculinity from their fathers, mothers, grandfathers, male peers and/or older male siblings. Although both parents have a role in educating their male children on gender norms, the role of the father appears more pronounced. “My mother encourages me not to give up” said one respondent. In line with this, boys from married households in the villages reported that they were taught and expected to imitate the role of their father; “my father teaches me how to farm and slaughter sheep.” This means that although both parents contribute to the construction of masculinity, the father’s role is more dominant in this regard.

On the contrary, since boys from single-parent households are raised by their mothers, they do not have male figures in their homes. They believe to have constructed their masculine identity based on alternate sources. Some assumed that it is genetic; “my family told me that I have the same behavior with my dad even though I do not live with him”. Some also mentioned that their mothers contributed to the construction of their masculinity; “I learned about masculinity from my mother. She raised me to be patient, strong and do household chores.” Others said that school teachers, men in their community, and/or peers taught them masculine behaviors; “I learn from observing what my peers are doing.”

Parental Influence on the Construction of Masculinity

The expectations that parents place on their male children have a strong influence on the idea and construction of masculinity boys adopt into manhood. When asking the parents of the boys what they expect of their sons as a boy/a man in the house, the four groups of parents each responded differently. The boys from two-parent households in villages were expected to perform the traditional male gender role which includes tasks such as farming, building houses, and herding cattle. However, boys also from the village but raised in single-parent households were expected to play the role of the breadwinner. They earn

money in their spare time as well as participate in household chores such as cleaning the house, cooking meals, and other tasks traditionally assigned to women and girls.

In the city, boys from single-parent households were expected to assist their mothers when needed for difficult tasks such as lifting or carrying heavy items from one place to another. Boys from the city and two-parent households were expected to have less participation in the division of labor at home.

Each focus-group discussion of parents was asked about the constant pressure from parents for the boys to be what and how the parents demand. For example, two-parent households tend to discourage their male children from playing the traditional role of a woman. Fathers say things like “setaset (sissy boy), get out of the kitchen” and mothers instruct their sons to “imitate your father” (two-parent household; village). If and when boys take on traditional female roles in the home, they are called seto or sissy boy, rimitimit, or told “you are messy, you do not look like a man” (two-parent household; village). If and when boys come home crying after getting into a fight, they are not met with comfort but instead harsh words like “boys don’t cry, you’re supposed to be strong and hit back” (two-parent household; city). Interestingly enough, boys from single-parent households, whether from the city or villages, were not as pressured to meet the standards of boyhood, rather, they were encouraged to take on traditional female gender roles. “My mother is so happy when I help her with household chores like washing clothes or cleaning the house” said one young participant (single-parent household; village). The influence of parents has a big impact on their son’s construction of masculinity and gender norms.

Division of labor

The division of labor commonly falls along gender lines: there is what men do and then there is what women do. The public and private sector’s division of labor seems more rigid in two-parent households than in single-parent households, in both city and village areas. Outdoor chores are for the fathers and boys. In the village, fathers are usually agrarians and fathers who live in the city have formal jobs. City boys are mainly expected to study and do small outdoor activities like going to the shop to buy goods or deliver massages. Their fathers follow up on the progress of their children’s education when they come home from work. However, when it comes to boys in the village, they herd cattle, farm, and then study.

In the case of a single-parent household, especially if the boy is an only child, he usually participates in household chores like cleaning, cooking, and washing. “I work as much as my mother in doing household chores. I gather animal waste for the fuel, for example” said one participant (single parent household; village). They also play the role of the father in substitution of their father. “I do the heavy household chores such as picking up stones and slaughtering sheep” said another participant (single-parent household; village).

When it comes to mothers and girls, they usually perform household chores traditionally assigned to women such as cooking, cleaning, and washing.

“Fathers farm, build homes (ginibegna). Boys herd cattle, feed cattle, and help their fathers. Mothers cook food, make injera, and wash clothes. Daughters do what mothers do. They gather wood, clean the house, fetch water, wash clothes, and make coffee in assistance of their mothers” (two-parent household; village)."

In conclusion, boys who live in two-parent households, especially in villages, do the chores that are traditionally assigned for men such as farming, herding cattle, and delivering messages. Yet, boys from single-parent households perform both traditional male and female roles like cleaning the house, cooking, and slaughtering sheep. This shows that the division of labor on gender lines varies from single-parent households to two-parent households. Boys from single-parent households are more liberal to engage in different gender roles than those from two-parent households. The latter adhere more to traditionally male gender roles. This might be attributed to the influence of their fathers restricting them from engaging in the traditional feminine roles.

Understanding violence against girls and women

When it comes to violence against girls and women, these high school boys were well informed about what constitutes gender-based violence. Some defined it as discrimination based on gender; others mentioned sexual harassment, battering, rape, demeaning behavior, ruining one's reputation, abduction, and female genital mutilation.

Most witness violence against women in their communities, especially concerning domestic violence. They saw husbands come home drunk and batter their wives. There are even instances of domestic abuse cases amongst their age group. "I saw a boy slap his girlfriend because he saw her with another boy and I think it is her fault" said one participant (two-parent household; city). "I once saw a boy attack a girl who declined his love request" said another (single-parent household; village).

Attitudes of boys towards violence against women and girls

The majority of the study participants normalized and justified violence against girls and women. The boys who were bystanders when the girl was attacked when she declined a boy's courting request said "I saw and I did not do anything to stop the violence, but I said 'ese' (meaning, 'good,' or it is just) because he loved her and she did not love him back" (single-parent household; village). Participants tended to believe that it is just for men or boys to physically abuse a woman or a girl if she is seen with another guy or if she declines a repeated courting request. A few of the participants felt empathy for the victims of violence when thinking of them as one of their family members. "I once saw a husband batter his wife because she was seen with another man. I felt bad for her as if she were my sister" (single-parent household; city). In general, it seems that these boys are being raised in a culture that practices and supports violence against girls and women, and thus, they develop attitudes that normalize and support violence against women.

When the boys were asked they recommend what women/girls should do to avoid violence at the hands of boys/men, most of the respondents were convinced that women should tolerate insults, being battered, and catcalled because they believed these to be minor types of violence. They said *ayiletefibatim* (single-parent household; city) which means, it does not stick on her or it does not last. They also suggested that women should protect themselves from violence by tolerating the bad behavior from their intimate partner. They suggest that women keep silent or ignore bad behavior, including in the instance that they see their partner flirt with other women, discipline their children using emotional or physical violence, spend money on alcohol, come home drunk and/or if he spreads rumors about her. A woman should keep quiet and avoid violence by being submissive and preparing meals before their husbands come home, avoiding coming home late herself, and never being seen with another. In other words, men's misbehavior should not be challenged because when they are challenged by women/wives/intimate partners, violence is inevitable and justifiable. It also implies that as long as a woman maintains her submissive and caring position, violence is preventable.

When it comes to sexual harassment amongst their age group, they suggested strategies girls can use to avoid violence. Of these suggestions were that girls should not wear western-style clothing such as miniskirts or trousers and should instead wear long dresses. She should give consistent warnings to the harasser and threaten to report them if repeated. They also recommend that girls should be serious or "*fit alemasayet*" (single-parent household; city) and do not engage in non-verbal acts that attract men like "*menged lay wedia wedih alemalet*" (single-parent household; city) meaning to not sway or walk in a way that attracts attention. Tolerating the harassment until society changes its attitude is the overall recommended strategy by the respondents. Here, we can see how patriarchy controls female sexuality: what she should do and what she should not. If she does something in contrary to the recommendations listed above, she is responsible for any violence committed against her.

Attitudes regarding the causes of violence against girls and women

When the boys were asked about the causes of men's violence towards women, they gave various responses according to different contexts. They believed that if a boy sexually harasses a girl, it is because of men's

traditional and sexist attitude and the notion that men are superior to women. They also added that such violence could be the result of a boy's physical attraction and sexual desire for a girl with the assumption that girls enjoy sexual harassment (ex. catcalling or repeated courting requests). They added that sometimes it could be the result of a boy wanting money from a girl.

With regards to domestic violence against women, the boys suggested that it usually occurs if food is not ready when her husband comes home or if the husband comes home to a burned dish, if a mother interferes when a father physically abuses the child, if the husband comes home drunk, if she nags him, if she leaves the house without his permission or if he sees her with another man. The respondents also mentioned that women are traditionally considered the property of their husbands. They also stated that sometimes these violent acts are considered an act of love. In general, if a woman fails to perform the traditional gender roles according to the norms (ex. not preparing food, burning a dish, challenging her husband's authority, etc), then she becomes the target of violence.

Discussion

UNESCO (2000) defines masculinity as an identity that is oriented towards dominance, which is expressed through physical toughness, power, and competitiveness. Raewyn (2005) suggests that masculinity is one's behavior, for instance, masculine behavior as being aggressive or violent. Masculinity in many ways is an identity given to men that is the opposite of femininity.

Some scholars argue that masculinity is inherent, while others believe that it is learned.⁵ A study by Eckman et al (2007) indicated that both private and public domains are the areas where boys learn masculinity. In private domains, learning takes place through parents and siblings, and in public spheres, school peers are found to be a strong contributor for shaping and reshaping socially acceptable displays of masculinity. The study also states that peer pressure to meet the standard of being "a real man" has a great impact on the construction of masculinity. This study with boys from Mekelle indicated that some believe that they learned about masculinity from the male figures in their lives while others were certain that it is in their genetic make up, especially the boys raised by single mothers.

While the standards of masculinity may differ from place to place, the common characteristics include being a husband, father, breadwinner, protector of loved ones, sexually active and heterosexual.⁶ Eckman et al (2007) also confirmed in her study that boys are expected to have limited household chores, with the exception of those that women are unable to perform. This traditional division of labor by gender has a stronger hold in the villages than the city. Across the board, parents reinforced masculine standards with messages like "don't be a sissy boy" if they were seen doing chores traditionally allocated for women. The father's role in the construction of masculinity is more prominent than mothers. In contrast to the findings mentioned above, this study found that boys raised by single mothers faced relatively loose expectations in meeting the standards of masculine norms. They are not shamed of participating in activities traditionally assigned to women.

Masculinity differs from one man to another, from culture to culture and place to place. One standard of masculinity can be oriented towards dominance while another is not.⁷ Hegemonic masculinity is manifested through aggression and dominance. Men who are aligned with this type of masculinity often use violence and crime to maintain their dominance in the community.⁸ This kind of masculinity is also linked to negative behaviors like the abuse of women and children, substance abuse, and risky sexual behaviors.⁹ The other type of masculinity, as described by Suwada (2017), is caring masculinity. It is centered on the ethics of care and not the principle of dominance or violence. Caring masculinity has contrasting perspectives around gender, gender roles, gender relations, masculinity, and femininity. It values relationships and interdependence. In this study, it was found that boys, whether they grow up in

5. Person and Ovesey, 1983; Harris 1995

6. Heilman & Barker, 2018

7. UNESCO, 2000

8. Seidler, 2010

9. Morrell et al, 2012

single-parent or two-parent households, have similar attitudes towards violence against women. They tend to justify and normalize the act of violence rather than argue against it. This attitude is the result of society's patriarchal culture where men dominate the social, economic, and political spheres. As Demetriou (2001) reviewed Connell's work on gender relations, it was found that men have easy access to dominate public spheres (ex. education, economics and politics) as a result of the patriarchal divide. Their dominance is also maintained in the private sphere by subjugating women to subordination through the use of violence. Thus, it can be concluded that all boys in the study share a common construction of hegemonic masculinity that is reinforced by the patriarchal divide system.

The attitude of boys or men towards violence against girls and women is determined by several factors. According to Demetriou (2001), since hegemonic masculinity is based on male superiority, it undermines the value of partnership and equality in relationships with women. Therefore, most men who adhere to this masculinity tend to engage in violent and criminal behavior including violence against girls and women.¹⁰ For example, if they believe that they have failed to meet the standards of what they perceive it means to be a man, they tend to use violence against girls or women to reaffirm their masculinity.¹¹ Hegemonic masculinity is embedded in the patriarchal culture and grants men power over women causing women to become victims of violence. Heilman & Barker (2018) stated that a man's supportive attitude towards violence against girls and women can be the result of childhood socialization. While girls usually stay at home boys are exposed to the outside world through competitive sports or gang activity, including violence. For example, girls are given objects to care for while boys are given toy guns to play.

According to the Ethiopian Demography Health Survey (2016), 28% of the men surveyed in Ethiopia believe that intimate partner violence is justified if and when the wife burns their food, leaves the house without notifying her partner, refuses to engage in sexual activities or argues with her husband/partner. The report adds that men in villages have higher tolerance for violence towards intimate partners than men in cities. This study on boys in Mekelle revealed that most participants tend to justify or support violence against women and girls, regardless of the participant's background. For instance, they believe that it is okay for a man to physically abuse his wife if he is not pleased with her performance. Even those who empathized with women put the onus on women to protect themselves from violence. This kind of attitude is a result of childhood socialization, a general orientation towards hegemonic masculinity, and the patriarchal culture that prevails in Ethiopia.

Conclusion

Boys from different backgrounds (city/village or from single-parent/two-parent households) have different perceptions of masculinity. In general, the data showed that those raised by single mothers tend to be more flexible in sharing household chores, while boys who live with both parents adhere to normative masculinity. The latter are more pressured to meet traditional standards of boyhood, including doing chores traditionally assigned to men and taking on "masculine" traits like being strong, not crying, etc. However, when it comes to attitudes towards violence against girls and women, most boys from different backgrounds tend to justify and normalize violence against girls and women and blame women and girls for the violence committed against them. This shows how violence is embedded in the social structure and manifested into the boys' attitude. Therefore, in order to prevent violence against girls and women in Ethiopia, intervention for boys should take place at an early age.

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10. Seidler, 2010

11. Heilman & Barker 2018

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The Origins of The Original Sins of Federalism: A Feminist Perspective



The Origins of The Original Sins of Federalism: A Feminist Perspective

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Abstract

For a very long time, mainstream political conversations, debates, and critiques of ethnic federalism in Ethiopia have been centred on identity-based questions and subjective interpretations of Ethiopian history. Underneath these questions lies a history of state violence, erasure of history, and prejudice throughout the eras. The topic of women has been included in larger “national” questions. Little attention has been given to how the rigid patriarchal constructions of identity denies women’s contribution to the formation of one’s identity in Ethiopia and leads to the erasure of female ancestors in individual and group identity. As it stands, the legal identification of our Ethiopian heritage is weaved through the masculine and patriarchal ideas of belonging and identity. This article unpacks how the institutional fixation on patrilineal lineage and the androcentric analysis of ethnic identity has robbed nations and nationalities of Ethiopia from embracing their multiple identities and multicultural heritages. We argue that the origin of the ‘original sin of federalism’ in Ethiopia is the way in which ethnic federalism was shaped which completely erased the population’s agency in determining their ethnic identity. We investigate how different our understanding of ethnic and national identities in Ethiopia would be if we discredited the deep-rooted norm to only acknowledge patrilineal identity.

Keywords - Ethiopia, federalism, ethnicity, gender, women, patrilineality

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Introduction

Question: Dear reader, if we were to ask you who your great grandmother's mother is and where she is from, would you have answers?

The title of this paper was inspired by Yonatan Fessha's publication entitled "The Original Sin of Federalism in Ethiopia" (2017). In this paper, Fessha disentangles issues of ethnic-based federalism from ethnocentric ideology, raises the issue of cultural assimilation and proposes a federal arrangement that is based on territorial locations. His criticism and intervention is centred on communities that are situated in a peculiar, in-between locations made up of citizens that were born and raised in a certain federal state but whose blood-line is not from that ethnic group. He also focuses on those who are born into inter-ethnic households. He highlights the danger of "ethnogenesis" or the foundation of ethnic identity that seeks to form a "pure" or homogeneous identity without due recognition of sub-ethnic identities.

Reading through the article, one can easily see how Fessha⁴ wrestled with making sense of the complexities of ethnic-based federalism, which is also true for many other scholars of federalism. However, we question the incongruity that exists in the idea of increasing multi-nationality in regional states without recognizing the full extent of ethnic diversity born within each individual citizen. We are mainly concerned with the perpetual polarization of ethnic identity debates between majority and minority groups that exclude other parameters like the omission of gender as a determinant of ethnic identity. In present day Ethiopia, political unrest, conflict, and the mass killings of minority or 'minoritized' ethnic groups have become a common reality. This predicament emerges from a political impasse of Ethiopian federalism, which favours the expression of multinational and diverse identities by ending the notion of a unified Ethiopia.

In much of the discourse and critique on Ethiopia's ethnic federalism, there is a disturbing absence of discussion on gender as a framework in which to think through individual and communal identity. This paper aims to bring the "woman question" back to the centre of Ethiopia's political debate, to critique the basis of its absence and to see gender as an instrument for rethinking Ethiopia's ethnic-based federalism. We argue that the woman question has been and continues to be understood as a subset of other more pressing national questions. In Ethiopia, Women are a means to an end. Women's political demands are co-opted by developmentalist notions of woman empowerment in which women's demands are limited to socio-economic spheres in which women are mobilised by the state to serve with a predefined end.

In rethinking Ethiopia's federalism from a feminist perspective, this paper entertains the legitimacy of Ethiopian women's identity as a political subject, particularly in reference to the current debate on the application of Ethiopia's ethnic-based federalism. In this analysis, we borrow various concepts from our different professional backgrounds and provide a multidisciplinary view on the Ethiopian federation by weaving a feminist analysis into political science and legal studies. As authors, our position is not that of an insider or expert of federalism. However, as Ethiopian women, with acknowledgment of our class privilege and differences, we have experienced and been affected by the current division of federal states that ignore gender analysis. Thus, we address the topic from our personal lived experiences as well as with the perspective we gain from our combined expertise on gender studies.

This paper is based on the desk research of existing literature regarding the "woman question" in Ethiopia, ethnic-based federalism, and the impacts of the social construction of gender identity. The body of literature on this topic is largely from political science and legal studies and lacks insight from feminist, sociological and anthropological research. The legal learnings on federalism are rich, however, it is lacking an analysis of the complexities of customary law in Ethiopia and how it can co-exist with the civic and criminal laws

4. The Original Sin of Federalism in Ethiopia, Yonatan Fessha (2017)

of the land. Furthermore, the literature lacks a multidisciplinary look into class and how it affects the way people exercise their individual and community rights, as well as how people understand their own identity. The absence of these factors in literature also affected the extent to which we could explore this subject. Nonetheless, this paper sets out to resurface the woman question in our present day affairs to show the linchpin that is missing from our perception of ethnic federalism in Ethiopia.

Decentering Ethnicity: Women as political subjects

As a school of thought, feminism primarily focuses on bringing the voice of women and marginalized groups from the margins to the forefront. Fundamentally, the pursuit of feminist scholars is to counter hegemonic patriarchal ideologies with the lived experiences of women. Vickers⁵ argues that “incorporating gender offers significant benefits to federalism studies by bringing new concepts, questions, and hypotheses to enrich the field’s debates”. Therefore, understanding federalism from a women’s standpoint and adding the woman question to the perplexing concept of ethnic-identity is essential for the theory and practice of federalism.

Philosopher and gender theorist Judith Butler’s framing of “politics of representation” can be instrumental. “What sense does it make to extend representation to subjects who are constructed through the exclusion of those who fail to conform to unspoken normative requirements of the subject? What relations of domination and exclusion are inadvertently sustained when representation becomes the sole focus of politics” says Butler.⁶ Ethiopia’s federal system relates to this thinking in that it wants to expand the politics of representation in Ethiopia by altering structural power asymmetries among ethnic groups to create equal space and visibility for diverse nations and nationalities. However, when expanding the politics of representation, this identity-based federalism failed to consider women as legitimate political subjects by basing the criterion in a deep-rooted androcentric, ethnic foundation. This effectively endows men as the sole identity-givers and identity-holders, worthy of the making and unmaking of a nation state, while women play no such role. Therefore, the unspoken application is that women’s ethnic identity is both unthreatening and undeserving of equally contributing to the formation of a person or collective’s identity.

The federation’s approach to women as political subjects and right holders (or the lack thereof) is a critical conversation to have in order to reshape Ethiopia’s contemporary political atmosphere. However, the current debate on women and politics or women and Ethiopian federalism is fixed on a discussion around the inclusion and/or exclusion of women from politics. It rarely questions the dismissal of women as political subjects whose ethnic identity is rendered irrelevant in Ethiopia’s ethnic federalism.

From a feminist perspective, the topic of gender and women’s representation can provide a fresh outlook and challenge the status quo in Ethiopia by deconstructing the idea of “pure ethnicity” identity. We argue that the current understanding of ethnic federalism endorses a culturally accepted identity structure without scrutiny. The core of identity and belongingness is formed by an ideology based on patrilineal lineage that designates men, or Adam, as the origin of humankind.

Assumptions of gender neutrality in Ethiopia’s constitution: a blind spot?

The 1995, the FDRE constitution brought a fundamental transformation in Ethiopia’s political philosophy. In stark contrast to Ethiopia’s socialist and dictatorial past with stable centralized governments, the ethnic-based federal system decentralized power and formalized ethnic politics. The new system adopted the Marxist-Leninist principle of the ethnic right to self-determination up to secession (Article 39(1) as a response to the longstanding National Question formulated in 1969 and as a response to prolonged ethno-nationalist conflicts in Ethiopia).⁷

5. Vickers, J. (2013). Is federalism gendered? Incorporating gender into studies of federalism. *Publius: The Journal of Federalism*, 43(1), 1-23.

6. Butler, J. (2011). *Gender trouble: Feminism and the subversion of identity*. Routledge.

7. Vaughan 2003:169; Tsegay 2010:85

It gives power and sovereignty to “nations, nationalities and peoples” in Ethiopia but does not offer explicit definitions for the terms independently. Rather, it collectively defines a nation, nationality or people as “a group of people who have or share a large measure of a common culture or similar customs, mutual intelligibility of language, belief in common or related identities, a common psychological makeup, and who inhabit an identifiable, predominantly contiguous territory”.⁸ However, the terminology Nations, Nationalities and Peoples (NNP) is not clear and hence raises questions regarding the definition and the potential structural hierarchy between the different categories.⁹ There is no discussion around gender power dynamics underneath the nations, nationalities and people’s category, nor is there any consideration of how women, as historically oppressed subjects whose emancipation cannot be addressed through the right to self-determination of the ethnic groups they belong to, relate to these categories.

Granted, the FDRE constitution, along with international conventions to which Ethiopia is a signatory (ex. Convention on the Elimination of all forms of Discrimination against Women (CEDAW)), guarantees women equal rights and protection from discrimination (Article 25). The constitution even elaborates on how women are discriminated against and have traditionally been viewed as inferior (Article 35).

While the constitution is progressive in how it empowers ethnic groups, it addresses the rights of women separately from ethnicity and the question of nations, nationalities and peoples. The constitution has a gender-neutral determination of ethnic identity in Ethiopia, but in reality, it is gender blind. Meaning it fails to anticipate how systemic gender asymmetries could affect identity determination. The constitution fails to clearly enact women’s equal rights in ethnic identity determination and, in failure of doing so, gives the traditional norm of patrilineal identity determination space to prevail. Hence, the constitution, in all of its progressiveness, fails to rectify the exclusion of women from identity determination.

This discrepancy presents two key challenges to the FDRE constitution approach. The first is that the system assumes the notion of individuals and groups being from a single ethnic group and does not account for the substantial portions of the population that have mixed backgrounds and do not or can not identify with just one specific ethnic group. The ethnic-based federal structure as an assemblage of distinct ethnic groups with distinct territories is problematic¹⁰ because individuals and groups from various ethnic groups have become interspersed through long-standing patterns of settlement.¹¹ In this regard, Assefa argues that there has been a long process of inter-ethnic integration in Ethiopia leaving a considerable proportion of Ethiopian peoples of mixed ethnic backgrounds.¹²

The second is that the FDRE constitution does not provide any additional details on the determination of ethnicity. This raises questions about the constitution’s gender neutrality. Does the law presume individuals will have the choice to identify with ethnic groups of their choice or heritage without inhabiting the territory of the ethnic groups they belong to? Does the constitution presume that the constitutional equality of women will enable determination of ethnic identity with consideration of both patrilineal and matrilineal lineage in practice? Or does the constitution assume that the culture, language and territory into which one is born determines one’s ethnicity? The constitution states that women are to enjoy equal rights in all aspects of their lives. It therefore assumes that women will partake in the collective formation of ethnic identity. While this is the constitution’s assumption, the practice, in reality, is far removed.

The consequence of this discrepancy has manifested in the practice of ethnic identity determination at the local government level: woredas in Addis Ababa and kebeles in regional states. In Ethiopia, local governments have a level of autonomy within the regional laws and policies.¹³ For instance, when identification cards are issued at the kebele level, the determination of one’s ethnic identity is done through verbally asking citizen’s what their ethnicity is or referring to their father’s ethnic identity. To the best of our knowledge, an individual’s ethnic identity being recorded based only on one’s own verbal confirmation is

8. FDRE Constitution: Article 39(5)

9. Alem, 2005; Assefa, 2007

10. Halabo, 2019

11. Clapham 2002; Vaughan 2003

12. Assefa, 2007

13. Ayele, 2014

not a standardized practice. In most cases, patrilineal lineage is confirmed through public documents or by the kebele or woreda official. Matrilineal lineage is not referred to in this process.

Patrilineal lineage and gender: Unwritten social contract that threatens ethnic federalism

Although bitterly debated, Ethiopian federalism structure is proclaimed to be a context-specific framework that is designed to fit the uniqueness of Ethiopia's nations and nationalities. Perhaps, the critical question here is, if Ethiopian federalism is progressive and shaped to be compatible with the country's historical, social and political context, then how did it miss the opportunity to look into the gendered formation of ethnic-identity? We argue that Ethiopian federalism is victim to an unwritten social contract that is ingrained in the social fabric.

Hussen¹⁴ argues that one of the direct impacts on the making of a nation-state is that "every ethnic group has distinct cultural practices of gender identity construction, gender roles and power dynamics of gender relations". One of these social codes is the association of patrilineal lineage and bloodline as the genealogical foundation of identity. This unwritten social contract and cultural norm grants men the right to define and defend ethnic-based territorial political discourse. Thubauville and Gabbert (2014: 140) describe patrilineality as follows,

*Patrilineality appears to have many advantages for men, especially when looking at the processes of identification. In patrilineal and virilocal societies, identification through social and local relations seems to be more coherent for men than for women. While men can steadily build up solid identities, women carry the burden of readjusting theirs continuously, as is the case when they marry into a new patriline.*¹⁵

The value of patrilineality as a social contract is absorbed in the ethnic-based federalism as one's ethnic identity is determined by her/his father's ethnic identity. The patrilineal lineage not only defines an individual's identity but the collective ethnic identity. It effectively side-lines the constitutional right to have agency over choosing the ethnic group with which one identifies. On the contrary, matrilineal lineage in the Ethiopian context rarely seems to impact the discourse of ethnic identity. While men are positioned as identity-holders, identity-givers, and identity-receivers, women are positioned as identity-receivers only and have no role in the informal, collective identity formation. In fact, matrilineal lineage is generally considered taboo. This can be seen with the use of derogatory terms such as *ye set lij* which suggests the absence of a father and paternal lineage. When claimed, matrilineal lineage, at best, is used as the joker in a card game. It is the card one can pull to get out of a tight spot by associating with a certain ethnic group for political purposes. At worst, the matrilineal lineage is raised to question the "purity" or legitimacy of an individual's ethnic identity with the intent to exclude them from the "pure" community.

The contemporary political discourse on the federal system of governance fails to recognize women as political subjects and identity givers as well as failing to have meaningful exchange regarding the consideration of matrilineal lineage as an equally viable determinant of one's ethnic identity. From this point of view, we argue that the origins of the original sin of federalism in Ethiopia is in the shaping of ethnic federalism alongside the complete erasure of half of the population's agency as holders of and contributors to the determination of one's ethnic identity. As a result of its patrilineal view, Ethiopian federalism has been blindsided by the population's diversity and its complexities. In practical terms, the conceptualization of diversity, while excluding gender as a variable factor, assumes individual's homogeneous identity and ethnically pure communities. As a result, it fails to recognize individuals, diverse communities and sub-communities that identify with multiple ethnic groups.

14. Hussen (2009): 94

15. Thubauville and Gabbert (2014: 140)

The cumulative effect we observe is an entrenched double standard that emanates from gendered power relations. This dynamic puts women at a disadvantage by giving them no say in their individual identity or in their community's ethnic foundation. This exclusion of women is also broadly visible in Ethiopian politics and is directly linked to the lack of women's involvement and women's limited representation in politics and positions of power.

The current status of women's rights is entangled in the legal, political and historical realities that continue to exacerbate the already compromised position of women as equal political subjects; a major contributor being the unexamined and oppressive patriarchal practices impacting social, political, and cultural realms. In the following sections, we will analyze historical and legal contributors to showcase the genealogy of intersecting layers of deeply gendered systemic structures. We explore norms and double-standards that ignore the woman question in the conception and constitutional design of ethnic federalism.

“Hand me down” patriarchal ideologies: Historical overview of the instrumentalization of the woman question

The contribution of women and the instrumentalization of the woman question has been a key contributing factor in the formation of the Ethiopian state. There have been numerous missed opportunities to address the woman question in pivotal points of Ethiopian history. Failing to identify patterns of handing down the woman question from one political era to another has led to the reproduction of similar methods that disregard women entirely. Ethiopia's transition from the feudal system to socialism, socialism to social-capitalism, and social-capitalism to now the seemingly neo-liberal capitalist system, has impacted the individual's, in this particular case women's, ability to access their right to exercise and negotiate belongingness. Through these historical periods, class differences coupled with the patriarchal social construction of gender directly influenced society's power structure and the place of women in the making of a nation-state.

Besides women being seen as powerless and unthreatening, women's class position is also a determining factor in their marginalization. Certainly, we are not suggesting that a change in women's class position will change the political status quo. However, it is the intersection of multi-layered ostracization of women that amounts to the lack of consideration of women in the structural design of federalism we see today. The shaping of women's lives, identity, and belongingness is therefore decided upon by the political elite men. The marginalization of women is evident in historical documentation of Ethiopian political history, which largely overlooks the role of women. When documented, historical sources often times define women in relation to their male relatives and portray women as subordinate to men and having influence that is limited to private and social spheres.¹⁶

While Ethiopian history has a number of iconic women who have left their mark in formation of the state in the 19th and 20th centuries, women's overt political participation in modern Ethiopia was prominent in the 1960s during the Ethiopian Student Movement (ESM). Gender equality was one of the issues raised at the time. Ethiopian student activists abroad and in Ethiopia formed the movement that deliberated the woman question through a Marxist-Leninist lens. Women's collective gender consciousness was, however, limited in the movement and only gained traction in the 1970s.¹⁷

The ESM is also where the question of ethnicity in Ethiopia was brought to center stage by Walleign Mekonnen's essay entitled “On the Question of Nationalities in Ethiopia” in 1969. It challenged the notion of Ethiopia as a nation-state. Later, the question of nationalities, as well as the class struggle, got more recognition than the woman question. In fact, women's emancipation was assumed to be a direct result of class and ethnic liberation. This subsumption of the woman question into the class and ethnic struggle can be partly explained by the fact that there were far fewer female students in the movement. The other reason is the fact that the movement and the study groups entertained the woman question from a highly

16. Hussen 2009, Kinfe 2019

17. Biseswar 2008)

theoretical point of view focusing primarily on Marxist-Leninist ideological underpinnings instead of the socio-cultural and economic realities of women in Ethiopia.¹⁸

Women's demand for gender equality and political rights continued in subsequent political regimes. In 1974, the Derg, a military junta, orchestrated a coup against the then sitting Emperor Haileselassie I, declaring Ethiopia as a socialist state with the slogan Ethiopia Tikdem (Ethiopia First). The Derg considered the woman question and had its own agenda for women. During its reign, its interpretation of women's struggle went from one that emphasised the intersectionality of women's oppression as workers and as women (until 1977)¹⁹ to one that framed gender oppression as a subset of class oppression, following the Russian interpretation of the same issue.²⁰

In 1989, the Derg disbanded a few of the existing women's associations, which were socio-economic self-help or charity in nature, and established the Revolutionary Ethiopian Women's Associations (REWA). In reality, however, the REWA had a mandate to promote Derg's ideology among women, more so than expand the space for women's equality in Ethiopia (Burgess 2013). In doing so, the Derg co-opted the cause with the promise of equal rights and gender emancipation, whereas all REWA did was mobilize women to promote Derg's political endeavors. The women, for example, galvanized conscripts for Derg's multiple wars, namely in Eritrea and with Somalia, and prepared food for the armed forces.

Nonetheless, with all of its weaknesses, Derg's emphasis on education for all through anti-illiteracy campaigns and an emphasis on a socialist revolution that needed the support and participation of all members of the society, regardless of age and gender, challenged existing cultural norms that constrained women's participation in education and in the public domain. The youth's engagement in politics and the commitment to a revolutionary socialist ideology challenged the notion that politics is a male domain and helped create political consciousness among women who, for the most part, were excluded from political and public servant roles.

Ethno-national armed forces ousted the Derg in 1991. The leading force among these armed groups is the Tigray People's Liberation Front (TPLF), which took to armed struggle in 1975 to liberate Tigray from the authoritarian Derg regime. This movement grew in momentum expanding the scope of their liberation agenda to the whole of Ethiopia by forming alliances with other armed groups. They took over the country in 1991.

While in armed struggle, the TPLF had a strong ideology rooted in Marxism-Leninism and a well-established party structure. The Front had hesitations around recruiting female fighters at first, however, its 1976 manifesto deemed that class struggle was an avenue through which women's emancipation could be achieved, and started recruiting female combatants in 1977.²¹ The Front had a code of conduct to ensure the equal treatment of male and female combatants and encouraged female fighters to establish both internal and external associations for mass-outreach in ways that prioritized the party's goals.²² At its height, the Front had a significant number of female fighters. Some accounts claim that one-third of the force was made up of women.²³ However, the proportion of women involvement did not carry over once TPLF took central power in Ethiopia.

TPLF, alongside three other ethnic-based parties from Oromia, Amhara, and the Southern regions, collectively known as the Ethiopian People's Revolutionary Democratic Front (EPRDF) coalition, became the governing party in 1995. Once in power, EPRDF introduced a political and state overhaul by establishing

18. Biseswar 2011; 36

19. The earlier mention of the women's question and thought leadership on the emancipation of women was largely led by the Ethiopian People's Revolutionary Party (EPRP), which was one of the prominent political and revolutionary forces of the Ethiopian Student Movement. 1977 marks the beginning of the 'Red Terror', a campaign carried out by the Derg to 'cleanse' or 'save' the revolution from 'anti-revolutionary' forces, through which Col Mengistu Hailemariam eliminated political contenders and opponents within and outside of the Derg. The Red Terror killed hundreds of thousands of Ethiopian intellectuals and thinkers, suspected and actual EPRP members, practically decimating the EPRP.

20. Kinfe 2019

21. Teklu, 2015

22. Teklu, 2015

23. Burgess 2013

an ethnolinguistic based federal system of governance giving sovereignty to the “nations, nationalities and peoples” of Ethiopia. The Constitution of 1995 adopted the Soviet practice of categorizing ethnic groups into “nation”, “nationality” and “people” with no clear definition or criteria by which these categories were formed.

This system is based on the assumption that ethnonational oppression or “the national question” is the primary source of oppression and state destabilization in Ethiopia. The ethnonational federation rejects the notion that Ethiopia is a nation-state and reasons that Ethiopia is rather a state of nations, nationalities and peoples, each of which should have a right to self-determination. While there are merits to EPRDF’s ethnic federal system, particularly in terms of recognizing and celebrating Ethiopia’s diverse languages and cultures and providing space for ethnonational groups to exercise self-rule, it also has serious flaws.

While ethnicity is indeed a point of oppression in Ethiopia, it is not the only point of oppression. Fessha²⁴ argues that the current ethnic-based federalist approach in Ethiopia “overlooked the consideration of another historically and politically relevant identity, namely ‘provincialism’, in designing the territorial structure of the state. By doing so, “it [Ethiopia’s federalism] denied itself an opportunity to respond to ethnic concerns without freezing ethnicity as an exclusive political identity”. In his argument, Fessha identifies the importance of “historically and politically relevant identity” but refers only to provincialism. Although valid, neither ethnic federalism or Fessha’s critique of ethnic federalism pay attention to the gender power relations or how patriarchal values influence the formation of a federal state.

Vickers writes that while Ethiopia’s ethnic federalism poses as gender-neutral and sensitive to ethnic identity, it is rather oblivious to the social values that are embedded in gender identity (Vickers 2012; 1). This oblivion to gender manifests in many ways. Making ethnocultural repression the main socio-political vice in Ethiopia, and reconfiguring the political landscape and state structure to address it, glosses over women’s oppression across ethnic groups. By rendering ethnic-identity as the single mode of political mobilization, the viability of gender as a collective and political identity is denied which in turn hampers women from organizing politically.

Moreover, women’s political identity, representation and activism gets even more complicated in the context of ethnic minorities that are marginalized and already have grievances of being treated as second-class citizens in the making of federal arrangements. This is particularly problematic when ethnonational communities invoke gendered cultures and norms as identity markers that set them apart from other ethnonational groups in terms of women qualifying for and exercising their right to self-determination. For example, in the Gurage zone, the customary law of Kitcha is used by the Sebat-Bet Gurage to mediate family matters (ex. marriage, divorce, inheritance, etc.). While this is in line with the idea of self-governance and self-determination for ethnonational communities, some of these customs contradict women’s civic and constitutional rights. “In a tradition where the group’s decision is considered more important, the individual’s right, particularly a woman’s, seem to be insignificant” stated Hussien.²⁵ Elder’s, who are always men, are the decision-makers and enforcers of the customary laws to which women are subjected. In these particular cases, women could become a minority group within a minority ethnic group.

Dressing progression through “State feminism”

In the context of Ethiopia, ethnic-federalism is not the only factor that undermines women’s political mobilization by reinforcing their political exclusion or delaying a genuine redress to the woman question. EPRDF’s vanguardism, on everything from the country’s economic and development agenda to the emancipation of women to ethnonational rights, gave rise to a narrow political space that had little tolerance for civil and political activism outside of the party structure.²⁶ This is particularly true after 2009 when the government passed a proclamation that made it extremely difficult for civil society organizations, including women’s organizations, to operate in legal or advocacy work. This had an adverse effect on the then-

24. Fessha (2017:2)

25. Hussien puts it, “in a tradition where the group’s decision is considered more important, the individual’s right, particularly a woman’s, seems to be insignificant” (2009: 6)

26. Bisewar 2008

budding women's movement, as seen in the case of the Ethiopian Women Lawyers Association (EWLA). EWLA's legal assistance and advocacy made significant contributions; they helped shape the 1996 Revised Family Law and the 2004 Criminal Code, however, after 2009, EWLA had to cut down its operations. Other civil society organizations working on women's rights either closed down or tried to operate under strict conditions that significantly hampered their ability to enrich women's political, economic and historical place in the society.

Furthermore, EPRDF's experiment with revolutionary democracy in which all attention was directed at "development" and its practice of "democratic centralism" was characterized by a chain of command within the party that was strictly observed. This party culture meant that the few women who took influential positions following EPRDF's gender-quota set in 2005 were there to represent the party and not question its approach to women or gender relations.²⁷ As a result, rather than challenging the gendered power distribution within the party, state or the society at large, the women of the party, regardless of their powerful positions, were responsible for responding to the needs and decisions of their respective parties.

Led by Prime Minister Abiy Ahmed, the current administration came into power in 2018 promoting gender balance. However, the gender balance is limited to high-level federal positions such as the cabinet, the National Election Board and the Federal Supreme Court, with the two latter entities being led by women. There is little evidence that the high-level appointments carry an impact beyond inspiring the young girls and women of Ethiopia. The representation of women in the legislative, executive and judiciary wings of the federal government leaves much to be desired. This proves that the supposed regard for women as political subjects with rights to political representation is superficial. This recurring problem is a result of the lack of critical reflection on the historical and political past, specifically on the treatment of women and the lack of space given to deliberate the woman question.

Concluding remarks

Today, the woman question continues to be depoliticized, erased and substituted by a development laden framing that impedes women's rightful place in the shaping of Ethiopia's socio-political destiny. The shortfall of Ethiopia's governance system in addressing the issues women face is not due to the elusiveness of the woman question or a lack of women's activism. Rather, it is a result of a use and throw approach to the question in which women are instrumentalized to bring about political change then later excluded from the negotiation table once the change is attained. Without a deliberate and critical reflection on the historical and political past, it is impractical to resolve the deep-rooted patriarchal practices that rule the country. In this paper, we attempt to shift the current conceptualization of ethnic federalism. Through the lens of gender, we suggest reframing the determination of gender in a way that will steer ethnic federalism away from the current state of affairs in which threats of conflict and unrest has become the norm.

As of today, the FDRE constitution and ethnic federalism has failed to remedy historical injustices and manage Ethiopia's diversity through federalism. With a constitution that was conceptualized on patriarchal norms and the assumption that communities are homogenous, there is little room for women in identity making as well as limited space for diverse "other" groups, including those of mixed heritage.

As a result, Ethiopian women are situated as second-class citizens who cannot legitimately pass along their ethnic identity. As a result, women carry the burden of undoing this patriarchal structure by challenging the erasure of women as political subjects. Interestingly, we are seeing that the system, which excluded matrilineal ethnic identity from the determination of one's ethnic identity, is adversely impacted due to the polarization that emerges in search of (or the presumption of) 'ethnic purity' based on one's patrilineal lineage. This is a costly assumption as it views identity through a narrow lens. If the fact that matrilineal lineage, an equally valid identity determiner, was to be considered, it can provide a more broadened perspective around the plurality of identities and belongingness one person has and, on a larger scale, has the potential to make waves across entire communities. Due to cultural beliefs, formally recognizing matrilineal ethnic identity may not be automatically welcomed by the public, however, is not

27. Biseswar 2011; 192-195

an extraordinary request. Given that political elites²⁸ at times invoke their matrilineal identity to pacify public anger or discredit accusations of being biased, it is not outside of the scope of possibilities to legitimately recognize the ethnicity of one's matrilineal lineage. Redesigning an ethnic federal state that considers both patrilineal and matrilineal lineage as determinants of ethnic identity is a counterintuitive, feasible and desirable alternative.

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28. In fact, in different historical moments, we have witnessed politicians, like Meles Zenawi, Jawar Mohammed, and Abiy Ahmed, instrumentally invoke their matrilineal identity to assuage public suspicion of bias.

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The Protection of Women and Girls with Intellectual Disabilities from Violence under the Ethiopian Legal System



The Protection of Women and Girls with Intellectual Disabilities from Violence under the Ethiopian Legal System

Tefesehet Hailu¹

ABSTRACT

According to a 2019 study done by the World Health Organization (WHO), 200 million people in the world have intellectual disabilities; other studies show that women and girls with intellectual disabilities are more susceptible to violence.² Victims of violence with intellectual disabilities face serious challenges when it comes to expressing and communicating what has happened to them. Given the lack of attention given to this vulnerable group of people, this article seeks to analyze how women and girls with intellectual disabilities are protected from sexual violence under the Ethiopian legal system. Taking into consideration the importance of this issue, this article engages the current policies, laws, regulations and other documents that are guiding the protection of women and girls with intellectual disabilities. This article critically reflects on domestic laws regarding the protection of women and girls with intellectual disability under the auspices of international instruments (such as the United Nations Convention on the Rights of Persons with Disabilities, the Convention on the Elimination of all forms of Discrimination against Women and the Convention on the Rights of the Child). After identifying the gaps in the legal framework, this article provides policy recommendations to assist all branches of the government in protecting women and girls with intellectual disabilities from any form of violence.

Key words - intellectual disability, violence, Ethiopia, human rights.

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2. Davis, Leigh A. 2011. "People with Intellectual Disabilities & Sexual Abuse." The Arc. <https://deldhub.gacec.delaware.gov/pdf/Intellectual20Disabilites20and20sexual20violence.pdf>

1. Introduction

As a developing country, Ethiopia is home to an estimated 15 million persons with disabilities, representing close to 18 percent of the country's population.³ Various studies confirm that the prevalence of violence amongst persons with disabilities is higher than those without disabilities. The reality has only further deteriorated for this vulnerable group with 95 percent of persons with disabilities living in poverty and dependent on a family member or friends for a living⁴. This is especially true for women and girls with disabilities, who are not only victims of double the discrimination but are also susceptible to violence given their socio-economic situation. Although evidence shows that violence against women is endemic in Ethiopia, little has been done to assess the experiences of female victims with disabilities. This shows that people with disabilities have been left behind in both research as well as in key interventions that target gender-based violence. Although some aspects of Ethiopia's legal framework seeks to protect the human rights of those with physical disabilities, a closer inspection of these instruments would indicate that the law clearly overlooks persons with intellectual disabilities.

In addition to facing various forms of discrimination, women and girls with intellectual disabilities also face social and cultural stigmas as well as barriers to exercising their civil, political, economic, social and cultural rights. The social and cultural stigma mostly comes from the lack of awareness of the disability, as there is a tendency to conflate intellectual disability with mental illness. However, mental illness is an illness that can be cured, whereas an intellectual disability is a life-long condition and, depending on its cause, can either be non-progressive or worsen overtime. Furthermore, an intellectual disability is a condition in which people have significant difficulties in intellectual functioning (judgment, learning, retaining information and problem solving) as well as adaptive functioning (communication and independent living)⁵, leading to challenges in their daily activities. Therefore, depending on the severity, people with intellectual disabilities should get the necessary support to live a normal life.⁶

Environments that lack the necessary legal and social protections significantly increase the exposure women and girls have to violence and abuse. In particular, sexual abuse by its nature is a hidden act where the perpetrator does their very best to make it inscrutable; the added shame and guilt experienced by victims may inhibit them from speaking out about their experiences. Coupled with the communication barriers women and girls with intellectual disabilities face, perpetrators can repeatedly target them because they believe that the victim is unable to report the abuse. Furthermore, given that women and girls with disabilities are wrongly perceived as non-sexual beings, their lack of sexual education and awareness makes it difficult for them to distinguish between a normal sexual experience and inappropriate or abusive behavior.⁷

Hence, it is crucial to assess those national laws that aim to safeguard women and girls with intellectual disabilities from violence. Even though it is recognized that all persons with disabilities, including men, may experience some forms of violence, this article will exclusively focus on the protection of women and girls under the Ethiopian legal system. In doing so, particular references will be made to those international human rights instruments ratified by Ethiopia that have established clear principles regarding the rights

3. International Labour Organization and Irish Aid, Fact Sheet, Inclusion of People with Disabilities in Ethiopia. https://www.ilo.org/wcmsp5/groups/public/@ed_emp/@ifp_skills/documents/publication/wcms_112299.pdf

4. WHO. 2015. "Violence Against Adults and Children with Disabilities." <http://www.who.int/disabilities/violence/en/>.

5. Some of the most common known causes of intellectual disability that happen before birth, according to the Center for Disease Control (CDC), are - Down syndrome, fetal alcohol syndrome, fragile X syndrome, genetic conditions, birth defects, and infections. <https://www.cdc.gov/ncbddd/developmentaldisabilities/facts-about-intellectual-disability.html>

6. The support that is required for their intellectual functioning varies based on the classification of intellectual disabilities that is grounded on IQ scores, 50 -69 (Mild), 35 - 49 (Moderate), 20 - 34 (Sever) and < 20 (Profound). Nevertheless, the IQ score must be interpreted in the context of the person's difficulties, in general, mental abilities and with an examination of adaptive functioning (conceptual skills, social skills, and practical skills). The International Classification of Diseases produced by the World Health Organization, available at <https://www.who.int/classifications/icd/en/>,

7. United Nations, General Assembly, Thematic study on the issue of violence against women and girls and disability Report of the Office of the United Nations High Commissioner for Human Rights, Annual report of the United Nations High Commissioner for Human Rights and reports of the Office of the High Commissioner and the Secretary-General, A/HRC/20/5 (30 March 20212), available from <https://digitallibrary.un.org/record/724782?ln=en>

of persons with disabilities. Specifically, the legal frameworks examined herein will focus on a number of specific legal obligations that signatories of these international human rights instruments have agreed to; including taking legislative, administrative and judicial measures to prohibit and prevent violence or the obligation to punish acts of violence and provide effective redress to victims. This article will further examine Ethiopia's obligation and diligence in protecting women and girls with intellectual disability and safeguarding their right to non-discrimination, equality before the law, right to education, access to justice, the right to legal aid, accessibility of and access to information, and procedural and age-appropriate accommodation.

2. The existing Human Rights Framework

2.1. Intellectual disabilities and human rights

It is quite clear that people with intellectual disabilities have historically been treated in a manner that violates their dignity and disregards their rights: including their community rights, the right to education, reproductive rights, the right to marry and in some cases they are denied the right to receive life-saving medical treatment.⁸ To see how this vulnerable group was exploited throughout history, one may look into how people with intellectual disabilities were kept indoors, shackled, enslaved, and used as objects of perverse entertainment or as a source of labor. We see evidence of this not only during Europe's industrialization era⁹, but also during social movements in Europe and the United States¹⁰ where the eugenics movement perpetuated the notion that the way to improve human existence was to eradicate genetic predispositions that resulted in disabilities. As a result, this movement drove the "forced sterilization legislation" which forced the sterilization of over 64,000 people in the United States and contributed to the devastating atrocities committed against disabled persons during the holocaust.¹¹

What is observed from these historical trends is that the perception towards those with disabilities was highly influenced by social changes. Different theories evolved around the rights of persons with intellectual disabilities leading us to where we stand today. Through time, intellectual disability evolved from being recognized as an individual impairment to an ecological concept that understands disability as the interaction between the individual and the environment.¹² This evolution did not only strengthen the commitment of nation states and international organizations on the issue of disability rights, but also contributed to the growth of self-advocacy movements that seek to uphold the fundamental rights of people with intellectual disabilities.¹³

Along with this paradigm shift, international law also recognized that persons with intellectual disabilities have fundamental rights not because of their disability, but by virtue of being human. Therefore, when examining the progress of international law on the human rights of persons with intellectual disabilities, one should start from the Universal Declaration of Human Rights (UDHR). Adopted in 1948, the UDHR recognizes the inherent dignity and inalienable rights of all human beings. Given that the UDHR provides a general framework for respecting human rights, the International Covenant on Civil and Political Rights (ICCPR) and the International Covenant on Economic, Social and Cultural Rights (ICESCR) were adopted in 1966 in order to expand on the UDHR. The ICCPR ensures equality before the law, the right to liberty and security, protection from cruel, inhumane or degrading treatment, the right to physical and

8. Griffiths D., Owen, F., Gosse, L., Stoner, K. et al. (2003) 'Human rights and persons with intellectual disabilities: An action research approach for community-based organizational self-evaluation. *Journal on Developmental Disabilities*, 10, 2, Page 25-42.

9. Frances Owen and Griffiths D. edited by Endicott O. (2009), 'Challenges to the Human Rights of People with Intellectual Disabilities'.

10. Lombardo, Paul. "Eugenic Sterilization Laws." *Eugenics Archived*. 07 May 2014. <<http://www.eugenicsarchive.org/html/eugenics/essay8text.html>>.

11. An estimation of 90,000 people with disabilities were killed. Brown, I. and Brown, R. I. (2003) *Quality of Life and Disability; an Approach for Community Practitioners*. London: Jessica Kingsley Publishers; Scheerenberger, R. C. (1983) *A History of Mental Retardation*. Baltimore, MD: Paul H. Brookes Publishing Co.

12. Litvak, & Enders, (2001). Support systems: the interface between individuals and environments. In G. Albrecht, K. Seelman, & M. Bury (Eds.), *The handbook of disability studies* (pp. 711–733). Thousand Oaks, CA: Sage Publications.

13. Ibid. See 4

moral integrity as well as prohibiting any kind of discrimination.¹⁴ The ICESCR provides for the right to education, the right to a quality life, social protection, the right of access to the highest standard of mental and physical health that a society can provide, and guarantees the right to enjoy these rights without any kind of discrimination.¹⁵

The latest instrument that was adopted by the General Assembly is the United Nations Convention on the Rights of Persons with Disabilities (UNCRPD) and its optional protocol. Adopted in 2006, it serves as a binding international human rights instrument¹⁶ that promotes, protects and defines, with greater clarity and detail, how human rights and fundamental freedoms apply to persons with disabilities. It is important to note that the UNCRPD also clearly articulates the obligations of States to promote the enjoyment of all human rights by persons with disabilities.

Although one must assess such legally binding international human rights instruments, it is important to also consider those non-binding instruments that have been adopted under the auspices of the United Nations. Whether they are declarations or guidelines, the fact that they are not binding in nature does not make them irrelevant; they directly influence how international human rights instruments are developed and interpreted. Among the important non-binding instruments are the Declaration on the Rights of Mentally Retarded Persons¹⁷ and the Declaration on the Rights of Disabled Persons¹⁸. Both of which are important for the topic at hand as they call for the treatment and respect for the inherent dignity of persons with mental illness and persons with other disabilities.¹⁹ Following the assertion of these two declarations, the General Assembly also adopted other important non-binding instruments, such as the Principles for the Protection of Persons with Mental Illness and the Improvement of Mental Health Care²⁰ and the Standard Rules on the Equalization of Opportunities for Persons with Disabilities.

2.2. The protection of women and girls with intellectual disabilities within the framework of international human rights instruments

It is important to note that the discrimination towards women and girls with intellectual disabilities are twofold: the discrimination faced by women in a patriarchal society combined with the discrimination towards people with disabilities. In fact, it is further recognized under the preamble and Article 6 of the UNCRPD that women and girls with disabilities are often at a greater risk of violence and subject to multiple discriminations.²¹ The combined discrimination of gender and disability makes women and girls with intellectual disabilities more susceptible to violence while having limited access to protective services. Given the negative social perception of women and girls with mental disabilities as well as the grave challenges they face in reporting sexual violence, this sub-group is particularly targeted by perpetrators of violence.²²

In the assessment of laws protecting women and girls with intellectual disabilities from violence, it is important to also explore the issue through the lens of relevant international instruments. In addition to the international standards of legal protection from violence, various human rights instruments provide for rights and freedoms that specifically protect women and girls with intellectual disabilities from any kind of

14. See Article 2, 6, 7 and 9 of the International Covenant on Civil and Political Rights (ICCPR), adopted by General Assembly resolution 2200A (XXI) of 16 December 1966, and entered into force March 23, 1976.

15. See Article 2(2) of the International Covenant on Economic, Social and Cultural Rights (ICESCR), adopted by General Assembly resolution 2200A (XXI) of December 1966 and entered into force January 3, 1976.

16. The United Nations Convention on the Rights of Persons with Disabilities and its Optional Protocol were adopted by the UN General Assembly, A/RES/61/106, adopted December 30, 2006, opened for signature on March 30, 2007 and entered into force on May 3, 2008.

17. Declaration on the Rights of Mentally Retarded Persons, adopted by the UN General Assembly resolution 2856 (XXVI) of December 20, 1971.

18. Declaration on the Rights of Disabled Persons adopted by the General Assembly, resolution 3447 (XXX) of December 9, 1975.

19. See Article 1, Declaration on the Rights of Mentally Retarded Persons. "The mentally retarded person has, to the maximum degree of feasibility, the same rights as other human beings".

20. Principles for the protection of persons with mental illness and the improvement of mental health care adopted by the UN General Assembly Resolution 46/119 of December 1991.

21. The Committee on the Elimination of Discrimination against Women also stated in its general recommendation No. 18 that disabled women suffer from double discrimination.

22. Fact Sheet: Violence against Women and Girls, Plan International (February 2013), the 57th Session of the Commission on the Status of Women.

violence. Although not explicitly mentioned in the principle of equality and non-discrimination provisions in some of the international human rights instruments, it is apparent that persons with disabilities are entitled to all the rights provided under those instruments²³. As such, intellectually disabled persons are entitled to the rights enshrined under the UDHR, which affirms the principle of non-discrimination and proclaims that all human beings are born free and equal in dignity and rights. Similarly, they are also entitled to the rights recognized under the ICCPR and ICESCR as well as all of the protections agreed upon by the State Parties to the UN Convention on the Elimination of all forms of Discrimination against Women (CEDAW).²⁴

As defined under the UN Convention on the Elimination of all Forms of Discrimination Against Women (CEDAW), violence against women and girls includes physical, sexual and psychological violence that could occur in the family and the general community. This includes rape, sexual abuse, sexual harassment, intimidation at work or in educational institutions, traditional practices that are harmful to women, and violence related with exploitation, trafficking and forced prostitution.²⁵ These acts result in the violation of women and girl's human rights and fundamental freedoms in the political, economic, social, cultural, civil sphere.²⁶ CEDAW states that governments are to ensure and promote the full realization of human rights and fundamental freedoms for women. Furthermore, governments are obliged to establish legal protections for the rights of women equal to that of men and ensure the effective protection of women against acts of discrimination through competent national tribunals and other public institutions. To that end, the CEDAW states that governments that have ratifying the convention have the legal obligation to prevent and eliminate violence against women.²⁷

In recognition of the fact that women and girls with disabilities have a greater risk of experiencing violence, the UNCRPD requires states to consider gender-based factors when taking legislative, administrative, social, and educational measures to protect women and girls with disabilities from any form of exploitation, violence or abuse. Furthermore, the Convention calls upon States to put in place legislation and policies that are not only focused on women and girls, but also ensure that instances of exploitation, violence and abuse against women and girls are identified, investigated and prosecuted.²⁸

As a result, the UNCRPD seeks to ensure that protection services provided by States to prevent all forms of exploitation, violence and abuse must be sensitive to age, gender and disability. As noted above, exclusion and the stigma around disability is intrinsically connected with gender inequality as well as with the vulnerability of children. Therefore, in assessing the rights of women and girls with intellectual disabilities, one should also look into both the gender and age aspects of this issue. To that end, the Committee on the Rights of the Child (CRC) has noted that girls with disabilities are even more vulnerable to discrimination and has requested that State Parties take extra measures to ensure that girls with disabilities are well protected, have access to all services and are fully integrated into society.²⁹

Furthermore, the CRC explicitly includes disability under the provision that safeguards the principles of

23. The United Nations Committee responsible for compliance to the Covenant on Economic Social and Cultural Rights made an explicit statement on the Matter: "...since the Covenant's provisions apply fully to all members of society, persons with disabilities are clearly entitled to the full range of rights recognized in the Covenant. In addition, in so far as special treatment is necessary, States parties are required to... enable such persons to seek to overcome any disadvantages...flowing from their disability". (ICESCR) 1994, para.5.

24. Convention on the Elimination of All Forms of Discrimination against Women (CEDAW), adopted by the General Assembly resolution 34/280 of December 1979 and entered into force September 3, 1981.

25. See Article 2 of the Declaration on the Elimination of all forms of Discrimination against Women, proclaimed by the UN General Assembly resolution 48/104 of December 20, 1993.

26. The term "discrimination against women" is defined under the Convention on the Elimination of all forms of Discrimination against Women, adopted by the UN General Assembly resolution 34/180 on December 18, 1979 as "...any distinction, exclusion or restriction made on the basis of sex which has the effect or purpose of impairing or nullifying the recognition, enjoyment or exercise by women, irrespective of their marital status, on a basis of equality of men and women, of human rights and fundamental freedoms in the political, economic, social, cultural, civil or any other field" under the Declaration on the Elimination of all forms of Discrimination against Women, proclaimed by the UN General Assembly resolution 48/104 on December 20, 1993.

27. General Recommendations adopted by the Committee on the Elimination of Discrimination against Women Eleventh Session (1992), General Recommendation no. 19, Paragraph 9 https://tbinternet.ohchr.org/Treaties/CEDAW/Shared%20Documents/1_Global/INT_CEDAW_GEC_3731_E.pdf

28. See Article 16 of the CRPD (2007), and entered into force on 3 May 2008.

29. Committee on the Rights of the Child, General Comment No. 9, CRC/C/GC/9, para. 10.

equality and non-discrimination of each child in enjoying the rights provided under the Convention. In addition to this, under the CRC, State Parties are required to take all appropriate legislative, administrative, social and educational measures to protect children from all forms of physical or mental violence, including sexual abuse. The Convention also requires State Parties to recognize that a mentally or physically disabled child should enjoy a full and decent life in conditions that ensure dignity, promote self-reliance and facilitate the child's active participation in their community.

2.3. Violence against women and girls with intellectual disabilities and African Human Rights Instruments

As the region's most prominent human rights instrument, the African Charter on Human and Peoples' Rights (the African Charter) has been signed by all members of the African Union with the exception of Morocco. It provides a robust assortment of enforceable legal rights.³⁰ Similar to the global human rights legal framework discussed in the previous sections, the principles of equality and non-discrimination on the basis of, *inter alia*, sex or other status is also acknowledged under Article 2 of the African Charter.³¹ Furthermore, as an institution that is comparable to the United Nations Committee on Economic, Social and Cultural Rights (CESCR), the African Commission on Human and Peoples' Rights (ACHPR) includes persons with intellectual disabilities in the protections provided under Article 2; although Article 2 does not explicitly include disability as one of the 'listed' grounds for protection, the phrase 'or other status' implies that it is not a closed list.³² Therefore, the African Charter in its entirety applies to persons with intellectual disabilities and entitled them to all the rights listed under the Charter.

Besides the insertion of a vague provision stating that "the aged and disabled have the right to special measures of protection in keeping with physical and moral needs", the rights of persons with disabilities were not prioritized in Africa during the adoption of the African Charter.³³ The reading of this provision is ambiguous and unclear; the provision fails to clarify the distinction between the aged and the disabled. It could be presumed that it is either conflating the rights of the elderly with those of persons with disabilities or that it is only addressing the elderly with disabilities.

The lack of clarity around the inclusion of persons with disabilities within the African Charter and the delay in responses given to the rights of persons with disabilities, it can be said that the acknowledgment of human rights for persons with disabilities was gradual in Africa and it was mostly impacted by the international community's recognition of disability rights.³⁴ Notably, at the regional level, a particular focus was given to the rights of disabled persons in the 1980's, when African leaders started to have lively conversations and recommendations on how to best protect the rights of disabled persons. The first step was undertaken by Member States of the Organization for African Unity's (OAU) when the African Rehabilitation Institute (ARI) was established in 1985.³⁵ The purpose of the ARI was to promote and develop training and research programs in the field of rehabilitation and disability prevention in Africa.³⁶

30. The African Charter and Peoples' Rights was adopted in 1998 and entered into force in 2005 "List of Countries which have Signed, Ratified/Acceded to the African Charter on Human and People's Rights" (African Union, 2020) available at https://au.int/sites/default/files/treaties/7770-sl-african_charter_on_human_and_peoples_rights_2.pdf (accessed 28 July 2020).

31. See Article 2 of the African Charter on Human and Peoples' Rights 'the Banjul Charter', adopted by the Organization of African Unity (OAU) in Nairobi, Kenya on 27 June 1981 and entered into force on 21 October 1986. "Every individual shall be entitled to the enjoyment of the rights and freedom recognized and guaranteed in the present Charter without distinction of any kind such as race, ethnic group, colour, sex, language, religion, political or any other opinion, national and social origin, fortune, birth or other status."

32. The recommendation was given in the *Purohit & Another v The Gambia*, AHRLR 96 (ACHPR 2003), <https://www.achpr.org/sessions/descions?id=144>.

33. See Article 18(4) of the African Charter on Human and Peoples' Rights 'the Banjul Charter'.

34. Helen Combrink. (2013), *Disability Rights in the African Regional Human Rights system during 2011 and 2012*, Africa Disability Rights Yearbook.

35. Resolution CM/Res.375 (XXXVII) adopted by the OAU Council of Ministers at its Thirty-Seventh Ordinary Session and endorsed by the Assembly of Heads of State and Government at its Eighteenth Ordinary Session held in Nairobi, Kenya in June 1981. ARI is a specialized agency of the OAU, headquartered in Harare, Zimbabwe with regional offices located in Dakar, Senegal (for West Africa) Brazzaville, Congo (for Central Africa) and Harare (for Southern Africa).

36. Agreement for the Establishment of the African Rehabilitation Institute (ARI), adopted on July 17, 1985 and entered into force on December 2, 1991, signed by 31 states and ratified by 28. (African Union, 2020). Available at <https://au.int/sites/default/files/treaties/36391-sl-AFRICAN%20REHABILITATION%20INSTITUTE%20%28ARI%29.pdf> (accessed July 29, 2020).

The second step towards improving the lives of disabled persons was through the declaration of the African Decade for Persons with Disabilities by the OAU Assembly of Heads of States and Government in 1999.³⁷ Later, it was formally adopted as the Declaration on the African Decade of Disabled Persons (1999 – 2009) by the OAU Council of Ministers which called upon Member States and all stakeholders to take all of the necessary measures to implement its provisions.³⁸ In the African Member States' attempt to adopt global solutions, they decided to take a local approach and initiated the declaration in response to the United Nations Decade of Disabled Persons (1983-1992) which failed to accommodate the political and socio-economic realities of developing countries and emerging democracies.³⁹ In efforts to ensure the full participation, equality, inclusion, and empowerment of people with disabilities in Africa, the decade was extended to 2010 – 2019 under the auspices of the Continental Plan of Action for the African Decade of Persons with Disabilities.⁴⁰

While undertaking this plan of action, Member States were committed to correcting the shortcomings of the African Charter by adopting new human rights instruments that take into account the socio-cultural and economic realities of Africa. Accordingly, the adoption of the African Charter on the Rights and Welfare of the Child (ACRWC) is an extension of this new approach; it provides for a special measure of protection for mentally or physically disabled children.⁴¹ The ACRWC is the only children's rights treaty that provides a way for any individual, group or non-governmental organization recognized by the AU, a Member State or the UN, to petition the Committee of Experts on the Rights and Welfare of the Child (ACERWC) regarding the infringement of children's rights by a State Party.⁴²

Contrary to the African Charter, the Maputo Protocol, the protocol to the African Charter on Human and Peoples' Rights of Women in Africa, separates the concept of "aging with a disability" from "disability with aging".⁴³ Although it includes the provision for the protection of disabled women from violence and recognizing the normative equality between women with disabilities and women without disabilities - the Protocol fails to address the type of double discrimination that not only affects women with disabilities but also makes them susceptible to violence.⁴⁴

As part of the responsibility given to the AU Commission and ACHPR under the Plan of Action for the Decade⁴⁵, the draft Protocol to the African Charter on Human and Peoples' Rights of Persons with Disabilities in Africa was submitted to the AU Assembly and adopted in 2018. The protocol addresses issues that persons with disabilities face in Africa, such as systemic discrimination, increased rates of poverty, and risk of violence and abuse, particularly for those with albinism and women and girls with disabilities⁴⁶.

37. The declaration is not mentioned under the list of declarations proclaimed during the 35th Session held in Algiers, Algeria in July 1999, AHG/Decl. 1-2 (XXXV), https://au.int/sites/default/files/decisions/9544-1999_ahg_dec_132-142_xxxv_e.pdf. However, it is stated under the preamble of the Continental Plan of Action for the African Decade of Persons with Disabilities.

38. See CM/Dec. (LXXII) Rev.1, adopted by the Council of Ministers Seventy-Second Ordinary Session/July 6-8, 2000 in Lome, Togo. https://au.int/sites/default/files/decisions/9625-52com_2000b.pdf.

39. The Continental Plan of Action for the African Decade of Persons with Disabilities. The plan of action also identified other problems/ shortcomings of the UN Decade of Disabled Persons, such as the lack of publicity, funds were not adequately monitored which resulted in the ineffectiveness of some programs and the lack of funding.

40. The extension of the decade was considered at the 1st AU Conference of Ministers of Social Development in Windhoek, Namibia, October 27-31, 2008 and adopted by Executive Council Decision EX.CL/Dec.473 (XIV) in Addis Ababa, Ethiopia, January 26-30, 2009.

41. See Article 13 of the African Charter on the Rights and Welfare of the Child, "Every child who is mentally or physically disabled shall have the right to special measures of protection in keeping with his physical and moral needs and under conditions which ensure his dignity, promote his self-reliance and active participation in the community." The Charter was adopted in July 1990 in Addis Ababa, Ethiopia and entered into force in November 1999, signed by 44 Member states and ratified by 49. It is available on https://au.int/sites/default/files/treaties/36804-treaty-african_charter_on_rights_welfare_of_the_child.pdf.

42. The African Committee of Experts on the Rights and Welfare of the Child draws its mandate from articles 32-46 of the African Charter on the Rights and Welfare of the Child, which was adopted by the Heads of State and Government of the OAU on July 11, 1990 and came into force on November 29, 1999. <https://www.acerwc.africa/>

43. See Article 22 and 23 of the Protocol to the African Charter on Human and Peoples' Rights of Women in Africa, adopted by the 2nd Ordinary Session of the Assembly of the Union in Maputo on July 11, 2003.

44. Ibid, Article 23

45. Continental Plan of Action for the African Decade of Persons with Disabilities 2010 – 2019, "Organize broad-based and inclusive discussions for the development of the Africa specific disability rights instrument, the Protocol on the Rights of People with Disabilities." It is available at https://au.int/sites/default/files/pages/32900-file-cpoa_handbook_audp.english_-_copy.pdf.

46. International Justice Research Center, African Commission Adopts Draft Protocol on Persons with Disabilities' Rights. <https://ijrcenter.org/2016/04/20/african-commission-adopts-draft-protocol-on-persons-with-disabilities-rights/>.

The Protocol was able to address some of the missing gaps in the Maputo Protocol by stating the concerns regarding the multiple forms of discrimination, exploitation, neglect and abuse that women and girls with disabilities face. It stipulates specific provisions regarding the protection of girls and women with disabilities that requires State Parties to not only protect them from sexual and gender-based violence but to also provide rehabilitation and psychosocial support to victims of sexual and gender-based violence.⁴⁷ However, despite of having developed a very comprehensive human rights instrument on the rights of persons with disabilities, only nine (9) Member States have signed the Protocol since its adoption in 2018; it is yet to be ratified by those that have signed it.

3. The protection of women and girls with intellectual disabilities from sexual violence under the Ethiopian legal system

In different parts of Ethiopia, intellectual disability or any other disability is often attributed to the misdeeds of parents or ancestors, supernatural forces such as demons/spirits, punishment, or fate. Ethiopia has ratified almost all of the international human rights instruments mentioned in the previous sections, including the UN Convention on the Rights of Persons with Disabilities (UNCRPD). In fact, the House of Peoples' Representatives ratified the UNCRPD by a proclamation publicized on June 1, 2010⁴⁸, making the convention part of Ethiopia's legal system.⁴⁹

It is important to note that the commonality between all of the international human rights instruments ratified by Ethiopia is the obligation placed on the Ethiopian government to ensure and promote the human rights and fundamental freedoms of vulnerable groups of society. Furthermore, each instrument provides for a monitoring mechanism that follows up on the implementation of the instruments by State Parties. In this respect, the UNCRPD has established the Committee on the Rights of Persons with Disabilities, a body of independent experts that monitor the implementation of the Convention by the State Parties. As such, the Convention requires State Parties to report to the Committee within two years of ratifying the Convention and every four years thereafter.⁵⁰

Accordingly, the Ethiopian government submitted its first report to the Committee in January 2013, expounding on how the government is implementing the rights listed in the Convention. The Committee examined the report and gave suggestions and general recommendations.⁵¹ Given that the 2013 report is the only report submitted by Ethiopia, the following section will utilize the 2013 report in an effort to analyze the Ethiopian legal system's protection of women and girls with intellectual disabilities from violence. It will also identify rights that are closely connected with the protection of women and girls with intellectual disabilities and examine the laws of Ethiopia as per the equality and non-discrimination framework of the UNCRPD.

3.1. Equality and non-discrimination

As one of the prominent instruments for disability rights, the UNCRPD emphasizes the need for viewing persons with disabilities as subjects of rights and the obligation of State Parties to ensure the realization of those rights. In safeguarding these rights, the Convention prohibits "all forms of discrimination" towards persons with disabilities. Amongst the prohibited discriminations are direct and indirect discrimination

47. See Article 27, African Charter on Human and Peoples' Rights of Persons with Disabilities in Africa, Adopted by the 30th Ordinary Session of the Assembly held in Addis Ababa, Ethiopia. Signed by 9 Member States and ratified by 0. Available at <https://au.int/en/treaties/protocol-african-charter-human-and-peoples-rights-rights-persons-disabilities-africa>. Accessed on July 31, 2020.

48. Proclamation No. 676/2010, Proclamation to Ratify the Convention on the Rights of Persons with Disability. See Article 11 of Proclamation No. 1024/2017, International Agreements Making and Ratification Procedure Proclamation.

49. See Article 9(4) of the Constitution of the Federal Democratic Republic of Ethiopia (FDRE).

50. See Article 34, United Nations Convention on the Rights of Persons with Disabilities.

51. The report submitted by Ethiopia and the Committee's recommendation are available at: https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=CRPD%2fC%2fETH%2fQ%2f1%2fAdd.1&Lang=enArticle

and structural or systemic discrimination⁵², including disability-based violence.⁵³ It is important to emphasize that indirect discrimination pertains to laws, policies or practices that read as neutral, but have a disproportionate impact on persons with intellectual disabilities. The Convention, in its equality and non-discrimination provision, prohibits discrimination within the substance of the law and by members of the executive organs of the States.⁵⁴ Hence, States are required to ensure that national legislation does not contain direct or indirect discriminatory provisions with respect to persons with intellectual disabilities. Persons with intellectual disabilities have the right to be protected from discrimination when practicing their legal rights. States are also required to extend the same grounds for protection that are recognized under domestic laws for ‘other persons’⁵⁵ to persons with intellectual disabilities.

When it comes to structural or systemic discrimination, the Convention emphasizes the obligation that States have to take all appropriate steps to ensure that ‘reasonable accommodation’ is provided. Although the obligation of reasonable accommodation was introduced as a human rights concept in the 1960s, the UNCRPD is the first human rights instrument to explicitly define the denial of reasonable accommodation as a form of disability-based discrimination; it defines reasonable accommodation as the “necessary and appropriate modification and adjustments not imposing a disproportionate or undue burden, where needed in a particular case, to ensure to persons with disabilities the enjoyment or exercise on an equal basis with others of all human rights and fundamental freedoms”.⁵⁶ The Convention redefined the obligation as the promotion of equality and the elimination of discrimination. Therefore, States have the responsibility of ensuring reasonable accommodation in national legislation and policies as well as guaranteeing that private and public entities comply. Furthermore, the Convention stipulates ‘universal design’, which obligates State Parties “to design products, environments, programs and services to be usable by all people, to the greatest extent possible, without the need for adaptation or specialized design”.⁵⁷

It is important at this stage of the analysis to underscore the distinguishing features that characterize the implementation of these two important obligations: the promotion of equality and the elimination of discrimination. While reasonable accommodation is individualized and limited by its disproportionality⁵⁸, universal design has the objective of ensuring maximum accessibility for all individuals, regardless of their type of disability. Thus, these two obligations can be linked and supplement one another. If equality is not achieved even when universal design is being enforced, reasonable accommodation “can be used as a means of ensuring accessibility for an individual” in the meantime.⁵⁹

In addition to this, similar to instruments protecting certain portions of society, the UNCRPD puts in place the ‘positive action measure’⁶⁰ or ‘affirmative action’. Positive action measures are permitted under

52. See comment of the Committee on the Rights of Persons with Disabilities, general comment No. 3 (2016), para. 17. <https://www.ohchr.org/en/hrbodies/crpd/pages/gc.aspx>

53. See, CEDAW Committee, General Recommendation No. 19 on gender-based violence against women, eleventh session (1992), Paragraph 1 https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolNo=CEDAW/C/GC/35&Lang=en

54. See Article 5(1) of the United Nations Convention on the Rights of Persons with Disabilities, “States Parties recognize that all persons are equal before and under the law and are entitled without any discrimination to the equal protection and equal benefit of the law.”

55. Ibid, Article 5(2), the Convention prohibits all discrimination on the basis of disability and requires states to “guarantee to persons with disabilities equal and effective legal protection against discrimination on all grounds”

56. See Article 2, Paragraph 3 of the United Nations Convention on the Rights of Persons with disabilities (UNCRPD), “...It includes all forms of discrimination, including denial of reasonable accommodation.” The Office of the United Nations High Commissioner for Human Rights (OHCHR) (December 2010) on its thirty-fourth session compiled the following non-exhaustive list of examples of reasonable accommodations: making existing facilities and information accessible for the person concerned in a particular situation; adapting or acquiring equipment; reorganizing activities; re-scheduling work; customizing learning materials; adapting curricula to the capabilities of the person; adjusting medical procedures; implementing specific communication modalities; and enabling access of support personnel to facilities restricted to the public, UN Doc. A/HRC/34/26, para. 28.

57. See Article 2 Paragraph 5 and Article 4 (1)(f), States Parties undertake to ensure and promote the full realization of all human rights and fundamental freedoms for all persons with disabilities without discrimination of any kind on the basis of disability. To this end, States Parties are “to undertake or promote research and development of universally designed goods, services, equipment and facilities, as defined in article 2 of the present Convention, which should require the minimum possible adaptation and the least cost to meet the specific needs of a person with disabilities, to promote their availability and use, and to promote universal design in the development of standards and guidelines.”

58. See comment of the Committee on the Rights of Persons with Disabilities, general comment No. 3 (2016), para. 33.

59. See Committee on the Rights of Persons with Disabilities, general comment No. 2 (2014), para. 26.

60. Positive action measure is consisting of proportionate measures undertaken with the purpose of achieving full and effective equality in practice for members of groups that are socially or economically disadvantaged, or otherwise face the consequences of past or present

the Convention to accelerate or achieve de facto equality for persons with disabilities and to enable persons with disabilities to take part and contribute in mainstream society.⁶¹ However, it should be noted that reasonable accommodation should not be confused with the provision of support, accessibility, specific measures and procedural accommodation.

Within the anti-discrimination framework, the UNCRPD also highlights the multiple forms of discrimination faced by women and girls with disabilities.⁶² This multi discrimination provision can be interlinked with the provision of violence against women with disabilities. To this end, while CEDAW failed to make any specific reference to violence against women with disabilities, the Committee on the Elimination of Discrimination Against Women (the CEDAW Committee) has, on different occasions, recognized that gender-based violence is a form of discrimination against women.⁶³ As such, States are required to enforce the obligations stipulated under the equality and non-discrimination provision that are not only intrinsic parts of the duty, but are also essential for the protection of women and girls with intellectual disabilities from violence.

The demographics listed under the equality and non-discrimination provision of the Ethiopian Constitution is not an exhaustive list, however, the inclusion of “any other status” can be interpreted as implicitly covering disability discrimination. It is important to evaluate the implementation of those rights that are found in various legislations and policies that safeguard women and girls with intellectual disabilities from violence and discrimination in Ethiopia because having an implicit insertion of a non-discrimination provision is not enough.

3.2. Terms used in legislations

The lack of understanding and awareness of intellectual disabilities and the misconception concerning its cause amongst the community gives way to derogatory terms that further propagate the prejudice towards persons with intellectual disabilities; these terms are even repeatedly used in the country’s laws and policies. These derogatory terms include labeling persons with intellectual disabilities as a person of an unsound mind, feeble-minded, retarded, mentally ill, insane, or mental infirmity; these terms are still used today and can be found in the 1960 Civil Code, Criminal Code of Ethiopia and the Civil Procedure Code of 1965⁶⁴. Such derogatory terms are mostly linked with the social stigma that promotes discrimination and instigates violence and ultimately influences legal decisions. State Parties are required by the UNCRPD to take all appropriate measures, including enacting, modifying or abolishing existing legislation, regulations, customs and practices that are discriminatory against persons with disabilities.

The Committee on the Rights of Persons with Disabilities expressed its concerns that the legislation and policies of Ethiopia continue to prescribe derogatory terms in reference to persons with disabilities. The government has yet to remove derogatory terms from the above-mentioned legislations by way of an amendment.

3.3. Equality before the law

Given the vulnerability of women and girls with intellectual disabilities, it comes as no surprise that they experience higher rates of gender-based violence and sexual abuse than the general population. Violence against intellectually disabled women and girls could occur in the home, in schools or even in health institutions. It is important to also note that the perpetrators of such violence are most often family members, teachers, caregivers, and strangers. In this respect, the initial report submitted by the Ethiopian

discrimination or disadvantage. Source: International Perspectives on Positive Action Measures, A comparative Analysis in the European Union, Canada, the United States and South Africa (2009), University of Bradford and European Communities.

61. See Article 5(4) of the United Nations Convention on the Rights of Persons with Disabilities.

62. Article 6 of the Convention on the Rights of Persons with Disabilities

63. See, CEDAW Committee, General Recommendation No. 19 on gender-based violence against women, eleventh session (1992), Paragraph 1 and General Recommendation No. 35, on gender-based violence against women updating General Recommendation 19, (2017) https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=CEDAW/C/GC/35&Lang=en

64. See Article 339-350 of the 1960 Civil Code of Ethiopia, Order 31 of the 1965 Civil Procedure Code and Article 588, 589, 620 and 623 Proclamation No.414/2004, The Criminal Code of the Federal Democratic Republic of Ethiopia 2004.

government to the Committee on the Rights of Persons with Disabilities stated that the government has made efforts to decrease violence towards persons with disabilities by increasing the criminal sentencing for the crimes of gender-based violence.⁶⁵ Although such penalties are important, they do not fully protect women and girls with disabilities that have been victimized because the perpetrators mostly commit such violence on intellectually disabled women and girls with the assumption that victims will not be able to seek justice. Therefore, if the violence committed cannot be brought before a court of law, having severe penalties associated with gender-based violence is immaterial. As holders of rights and duties under the law, it is important to look into the legal capacity of women and girls with intellectual disabilities.

According to the Committee on the Rights of Persons with Disability's interpretation, legal capacity has two components: legal standing and legal agency. "Legal standing" entitles persons with disabilities to be holders of rights and receive 'full protection of their rights by the legal system'. "Legal agency" empowers the person 'to engage in transactions, to create and modify legal relationships'. The Committee stated that the two components need to be respected, protected and fulfilled in order to fully enjoy the right to legal capacity. The Committee further distinguished the disparity between legal capacity and mental capacity and stated that any restriction on legal capacity based on mental capacity negates the principle of equality, equal recognition before the law and non-discrimination.⁶⁶ In the report submitted to the Committee, the Ethiopian government mentions that the legal capacity of persons with a mental disability will be restricted to protect their own interest, however, in the same report, the government argues that there is no legislation that restricts legal capacity on the grounds of disability.

Confirming what is stated in the report, the Civil Code of Ethiopia put an exception to the general rule stating that a person is able to enjoy all civil life aspects until he/she is declared incapable.⁶⁷ The Civil Code explicitly states that mental disability is one of the grounds for deeming one incapable. The code boorishly refers to persons with a mental disability as 'insane persons'.⁶⁸ It stipulates that the legal capacity of a person can be removed in the circumstance of notorious insanity, when the person is an "inmate of a hospital or an institution for insane persons or of a nursing home" or when "the family of that person, or those with whom he lives, keep over him a watch".⁶⁹

Additionally, the Civil Code recognizes juridical interdiction as grounds for declaring a person incapable. This can be when the application for interdiction is made by the 'insane person' himself or by his/her relatives.⁷⁰ In doing this, the court has to check the requirements and establish the necessity of the interdiction. In addition to this, there is a procedural requirement before such an interdiction where the court is required to see the person in question. If that is not possible, the court may proceed with the case in the presence of a representative or by appointing an expert.⁷¹ If these requirements are met, the court will order a judgment of interdiction and a guardian will be appointed by the court.⁷²

It is important to note that throughout this procedure, the interdicted person will not be a part of the decision-making process ultimately restricting the person with a disability from performing juridical acts. This model, as adopted by the Civil Code, completely disregards the primary purpose of guardianship, that is, to defend and protect the person's rights and interests. In this case, the appointment of a guardian results in the annulment of one's rights instead of the fortification of one's rights.

In contrast, the Criminal Code of Ethiopia, while expanding on criminal responsibility and irresponsibility, designates mental disability as grounds for irresponsibility.⁷³ While the criminal procedure code requires the court to provide interpreters for those who do not understand the language⁷⁴, it is silent in respect

65. Committee on CRPD, General Comment No.1, Article 12: Equal Recognition before the Law, CRPD/C/GC/1.

66. Ibid Para. 13

67. Ibid, Article 192 and 193 of the 1960 Civil Code of Ethiopia.

68. Ibid, Article 339(1).

69. Ibid, Article 342.

70. Ibid, Article 353.

71. Ibid, Article 354.

72. Ibid, Article 358 & 359

73. See Article 48 & 49, Criminal Code of the Federal Democratic Republic of Ethiopia (2004)

74. See Article 27(4), Criminal Procedure Code of Ethiopia.

to the type of assistance that needs to be given to persons with disabilities. In the report that Ethiopia submitted to the Committee on the Convention on the Rights of Persons with Disabilities, it states that “if the suspect is a person with hearing impairment and/or speech difficulties, the court assigns a sign language interpreter”. However, these laws requiring the court to assist persons with a hearing impairment and/or speech difficulties are only applicable when the disabled person has a physical disability. Moreover, the evidence law of Ethiopia is not comprehensive and scattered in different substantive laws. There is nothing that regulates the assistance given to persons with disabilities to exercise their legal capacity. However, the draft evidence law states that children or persons with a mental defect are generally competent if they understand the questions they are asked and are able to provide a rational answer.⁷⁵ Although one could argue that such an article clearly distinguishes legal capacity from mental capacity and can therefore be implemented, the fact that the House of People’s Representatives (HoPR) has not adopted this law makes it void of any real authority.

From the above analysis, one can reach the conclusion that there is neither a clear guideline for regulating the implementation of reasonable accommodation nor the adoption of a universal design that can assist, support, or enable women and girls with intellectual disabilities to exercise their legal capacity fully and effectively. The model adopted in the Civil Code diverges significantly from the provision of the UNCPRD that requires State Parties to fully recognize the right to equal enjoyment of legal capacity by persons with disabilities.⁷⁶ On the other hand, the criminal justice system is silent and completely disregards the support that is required under the Convention in the exercise of the legal capacity by persons with disabilities.⁷⁷

3.4. The right to education

Due to stigmas and discrimination, children with intellectual disabilities may be secluded, hidden and excluded from educational opportunities. For that reason, in most cases, they are precluded from activities that teach them about the nature of healthy relationships. Thus, when they face violence or sexual harassment, they may not understand the act or know how to respond. Denying education for girls with intellectual disabilities is not only a violation of their right to education, but also has the added consequence of undermining their safety and exposing them to violence.

Even though there is no specific provision on the right to education under the Ethiopian Constitution, it stipulates that children shall not be subject to exploitative practices and shall not be required or permitted to perform work which may be hazardous or harmful to their education.⁷⁸ This provision implies that any hurdle that could hinder the child’s educational development is prohibited. Furthermore, the Constitution also provides that every Ethiopian national has the right to equal access to publicly funded social services⁷⁹ and, to the extent that the country’s resources permit, universal access to education.⁸⁰ This obligation also emanates from the ICESCR, which states that primary education shall be compulsory, available and free to all.⁸¹ In addition, the ICESCR Committee has obliged member states to make primary education available, accessible, acceptable and adaptable.⁸² The government has the obligation to make schools accessible and available for children with intellectual disabilities and, in doing so, fulfil the four elements suggested by the ICESCR Committee. This is further enhanced by the UNCPRD, which recognizes the right to education for persons with disabilities and requires that State Parties ensure an inclusive education⁸³ system at all levels.⁸⁴ Both the UNCRC and ACRWC also stipulate that State Parties have a responsibility (subject to

75. Law of evidence, Ethiopian legal brief, <https://chilot.files.wordpress.com/2011/06/law-of-evidence>

76. See Article 12(1), United Nations Convention on the Rights of Persons with Disabilities

77. Ibid, Article 12(2).

78. See Article 36(1), Ethiopian Constitution

79. Ibid, Article 41

80. Ibid, Article 91

81. Article 2 (a), International Covenant on Economic, Social and Cultural Rights (ICESCR)

82. ICESCR Committee, General Comment No.13, twenty first session

83. Inclusive education refers to an education system that is open to all learners, regardless of poverty, gender, ethnic background, language, disabilities, or impairments. Exclusion must be tackled by ‘addressing and responding to the diversity of needs of all learners through inclusive practices in learning, cultures and communities and reducing exclusion within and from education.’

84. See Article 24(1), United Nations Convention on the Rights of Persons with Disabilities.

available resources) to provide free special care to those children that require such assistance.⁸⁵

Given that the aforementioned international human rights instruments are considered as part of Ethiopian law, girls with intellectual disabilities living in Ethiopia have the right to enjoy all of the rights under those instruments. In an effort to enforce the aforementioned international principles, the government of Ethiopia has recognized the right to education for persons with intellectual disabilities by adopting laws, policies and strategic action plans.⁸⁶ In fact, if one takes a closer look at the various policy documents and strategies, it can be observed that the government has made an immense improvement when it comes to adopting an inclusive education strategy.

Nevertheless, all of these documents⁸⁷ have failed to present an inclusive educational system that is accommodating to the educational needs of girls with intellectual disabilities. In fact, all of the instruments, whether it is the Special Needs/Inclusive Education Strategy (2012) or the Guideline for Inclusion of People with Disabilities in TVET, overlook the intersection between gender and disability and fall short of analyzing the intersectional marginalization that girls with disabilities face. In addition, if one were to look at the national policies related to inclusive education, there is no mechanism in place to regulate the protection of children with disabilities from abuse, neglect, violence or exploitation within school compounds. Such gaps in policy, coupled with the lack of awareness in the community on the capacity of girls with intellectual disabilities to learn, causes girls with intellectual disabilities to be restricted from joining schools and ultimately results in their low attendance rates. As per the Ministry of Education's Statistics Annual Abstract (2017), there has been a 67% decrease in the number of girls with intellectual disabilities enrolled in middle school (grades 5-8) compared to the number enrolled in elementary school (grades 1-4).

3.5. Access to justice

The Constitution of Ethiopia guarantees everyone the right to bring a justiciable matter to a court of law and obtain a decision or judgment by the court of law or any other competent body with judicial power.⁸⁸ However, access to justice is particularly a challenge for persons with disabilities in Ethiopia; they may be denied physical access to the institutions or face communication barriers when interacting with court officials. After learning of the challenges that persons with disabilities face, one would expect that the government include mechanisms to tackle the limitations persons with disabilities have keeping them from pursuing their right to access to justice. Nevertheless, Ethiopia's National Plan of Action of Persons with Disabilities (2012 – 2021) failed to include access to justice to its list of priority sectors.

As previously mentioned, the recognition of the right to legal capacity is crucial for an individual's ability to exercise his/her right to access justice. To this end, the Committee on the Convention on the Rights of Persons with Disabilities noted that "in order to seek enforcement of their rights and obligations on an equal basis with others, persons with disabilities must be recognized as persons before the law with equal standing in courts and tribunals". Along with equality before the law, access to justice encompasses effective access to information, procedural accommodations, legal aid and the right to claim justice and stand trial. This section will discuss how the government's failure to fulfil these components results in the violation of the right of access to justice for women and girls with intellectual disabilities who are victims of violence.

85. Article 23 of the Convention on the Right of the Child and Article 13(1) of the African Charter on the Rights and Welfare of the Child.

86. Education and Training Policies of Ethiopia ETP (194), the Millennium Development (MDGs) and Education for All (EFA) goals, Growth and Transformation Plan 2010/11-2014/15 (GTP), the Education Sector Development Program (ESDP) 2005–2011, 2011–2015 and 2016–2020, the higher order objective for the General Education Quality Improvement Programme GEQIP II (2013–2018), The Higher Education Proclamation NO. 650/2009 of Ethiopia, Special Needs Education Program Strategy in 2006, The Special Needs/Inclusive Education Strategy published in 2012, Learning for Life: Master Plan for Adult Education in Ethiopia 2010/2011–2019/2020, The National Policy Framework for Early Childhood Care and Education ECCE in Ethiopia 2010, The Guideline for Inclusion of People with Disabilities in TVET. Ministry of Education, Education Statistics Annual Abstract (2017). <http://www.moe.gov.et/web/guest/statistics>

87. Ibid

88. See Article 37(1), the FDRE constitution

3.5.1. Accessibility and access to information

It goes without saying that, as victims of violence in search of justice, women and girls with intellectual disabilities will be in contact with multiple actors in the criminal justice system. Whether it is the police, prosecutors, court registrars, court clerks, or judges, engaging with these actors can be difficult for those with intellectual disabilities as they may face communication barriers that could hinder their access to information, their understanding of the criminal justice procedure as well as their ability to obtain remedies. Therefore, women and girls with intellectual disabilities need support in order to understand and defend their rights. This issue is also raised in the UNCRPD; it “calls upon States Parties to promote accessible legal information to persons with disabilities and to society at large by using the full and varied range of formats and modes of communication”.⁸⁹ It was also noted by the Committee on CRPD that new technology could potentially play a role.⁹⁰

However, as discussed in the previous section, the law lacks resolutions for removing communication barriers in cases where persons with disabilities are victims. The law only considers language barriers as a communication barrier and provides translators to assist defendants appearing before the justice system.⁹¹ The only instrument that explicitly addresses persons with disabilities is the Draft Evidence Law which has not yet been formally approved by House of People’s Representatives (HoPR).

The existing accessibility legislations, motivated by the ratification of the United Nations Convention on the Rights of Persons with Disabilities, are sensitive to disability, however, these legislations are limited to physical impairments and do not target all types of disabilities. The accessibility of the Convention itself has been under scrutiny due to the fact that the full text of the Convention was not included in the official gazette publication in Negarit Gazette. Instead, what was sent and ultimately published by the Ethiopian government was only the notice that the Convention was ratification. Therefore, the HoPR should consider the full text publication of the of the Convention in the official gazette as well as ensure the availability of the Convention in Amharic.

According to international standards, the government is expected to adopt a universal design that can accommodate all users, including persons with intellectual disabilities. Given that the government has the obligation to make proper accommodations for the special needs of specific individuals, it is of paramount importance that the Ethiopian government implements a robust universal design whilst providing technical assistance for individuals with intellectual disabilities. This is especially important when the broad accessibility standards do not account for an individual’s impairment.

3.5.2. Procedural and age-appropriate accommodation

As stated in the annual report of the United Nations High Commissioner for Human Rights, procedural accommodations not only serve as a means to effectively ensure the right to a fair trial or the right to participate in the administration of justice, but are also an intrinsic component of the right of access to justice.⁹² It is further stated under the report that the Committee on the Rights of Persons with Disabilities (CRPD) has yet to define the practical processes related to providing procedural accommodation.⁹³ However, in various observations of the CRPD, it has been indicated that procedural accommodations should be provided based on the “free choice and preference” of the person concerned.⁹⁴

89. Article 9(2) United Nations Convention on the Rights of Persons with Disabilities.

90. See general comment No. 2 (2014) on accessibility, para. 22.

91. Rules dealing with court interpreters do not explicitly mention persons with disabilities in general. See FDRE Constitution, Article 20(7) states: (the accused) have the right to request for the assistance of an interpreter at state expense where the court proceedings are conducted in a language they do not understand Federal Courts Proclamation, Proc. No 25/1996 (Article Art 25) ‘The Court shall provide an interpreter to a party who does not understand Amharic’, Criminal Procedure Code (Art 27 (4)) states: “Where the arrested person is unable to properly understand the language in which his answers are to be recorded, he shall be supplied with a competent interpreter who shall certify the correctness of all questions and answers.”, and Article 126 (2) of the same stipulates; “Where an interpreter is required for the purposes of any proceedings, the court shall select a qualified court interpreter. Where none is available it will select a competent interpreter but no person shall be selected who is a relative to the accused or prosecutor or is himself a witness”.

92. Human Rights Council, Thirty-seventh Session, Report of the Office of the United Nations High Commissioner for Human Rights, on the right to access to justice under Article 13 of the Convention on the Rights of Persons with Disabilities, A/HR/37/25.

93. Ibid, Para. 25

94. See CRPD/C/ARM/CO/1, para.22; CRPD/C/BIH/CO/1, para.25; and CRPD/C/SRB/CO/1, para.24. Cited in the A/HR/37/25

The reading of Article 13(1) of the CRPD states that “states must ensure effective access to justice for persons with disabilities on an equal basis with others, including through the provision of procedural and age-appropriate accommodation”; this implies that the state is expected to accommodate the needs of persons with disabilities by enhancing the flexibility of its justice system. Considering the fact that intellectual disabilities may affect a person’s ability to communicate or understand their legal rights or the court proceedings, they need a certain accommodations in order to effectively participate in criminal proceedings. When dealing with women and girls with intellectual disabilities who are victims of violence, the courts should consider the needs of the individual victims and provide individualized support.

Apart from the Criminal Justice Policy of 2011 that provides special protections for vulnerable groups, the provisions in the Ethiopian criminal justice laws and procedures are not accommodating for persons with disabilities.

3.5.3. Legal aid

According to the United Nations Principles and Guidelines on Access to Legal Aid in the Criminal Justice System, legal aid is recognized as an essential element of a fair, humane and efficient criminal justice system. However, the cost of obtaining legal representation or the unavailability of legal assistance is a major impediment for those who wish to exercise their right to access justice. As a result of this, the responsibility to provide legal aid is affirmed by the United Nations, regional instruments, national laws and the Ethiopian Constitution. With the exception of the Maputo Protocol, human rights instruments only guarantee defendants in criminal cases the right to legal aid.⁹⁵

Both the European Court on Human Rights⁹⁶ and the African Commission on Human and Peoples’ Rights have recognized the right to legal aid for defendants in both criminal and civil cases. Accordingly, the Principles and Guidelines on the Right to Fair Trial and Legal Assistance in Africa states that “the accused or a party to a civil case has a right to have legal assistance assigned to him or her in any case where the interest of justice so require”. This is a clear illustration of how the scope of legal aid services has expanded over time. The United Nations Principles and Guidelines on Access to Legal Aid in the Criminal Justice System also provides for a more comprehensive legal aid service that includes the assistance of legal advice and representation, even for victims and witnesses in the criminal justice process. Furthermore, the types of legal aid in the guidelines includes legal education, access to legal information and other services provided for persons through alternative dispute resolution mechanisms and restorative justice processes.⁹⁷

As such, the government has the obligation to provide legal aid services for women and girls with intellectual disabilities who are victims of violence. Legal aid services in Ethiopia are provided by the government, legal professionals and non-governmental organizations. At the governmental level, it is the responsibility of the Attorney General office⁹⁸ to directly provide free legal aid services to those that require it. This is similar to the Children’s Legal Protection Center (CLPC) which was created under the auspices of the Child Justice Project Office of the Ethiopian Federal Supreme Court; the project office provides free legal aid services to children in need of such services. Furthermore, the Ethiopian Human Rights Commission (EHRC) has established 111 Free Legal Centers that seek to provide free legal aid to the most vulnerable groups around the country.⁹⁹

95. International Covenant on Civil and Political Rights (ICCPR) (Art 14), African Charter on the Rights and welfare of the child (Article 17(2) (c)(ii), African Charter on the Human and Peoples’ Rights (Article 7), Protocol to the African Charter on Human and Peoples’ on the Rights of Women in Africa (Article 8 (a), Constitution of the Federal Democratic Republic of Ethiopia (Article 20(5))

96. The European Court on Human Rights, in *Airey v Ireland*, 1979

97. See UN Principles and Guidelines on Access to Legal Aid in Criminal Justice Systems (‘UN Principles on Legal Aid’), adopted by unanimous consent by the UN General Assembly (Resolution A/RES/67/187) 20 December 2012, para. 8, available at: <http://bit.ly/1NRQ0>, ‘legal advice, assistance and representation for persons detained, arrested or imprisoned, suspected or accused of, or charged with a criminal offence and for victims and witnesses in the criminal justice process that is provided at no cost for those without sufficient means or when the interests of justice so require. Furthermore, “legal aid” is intended to include the concepts of legal education, access to legal information and other services provided for persons through alternative dispute resolution mechanisms and restorative justice processes.’

98. See Article 16 (11), Proclamation No. 691/2010, 2010, Definition of Powers and Duties of the Executive Organs of the Federal Democratic Republic of Ethiopia Proclamation. The FDRE Attorney General is mandated, inter alia, “to represent citizens, in particular women and children, who are unable to institute and pursue their civil suits before the federal courts”

99. Accessing free legal aid in Ethiopia, United Nations Development Programme (UNDP), <https://www.et.undp.org/content/ethiopia/en/home/ourwork/democraticgovernance/successstories/Accessingfreelegalaid.html>

Even though one could argue that the services that are being provided by these institutions greatly assist the justice system, their limited geographical reach and the limited types of clients they assist does little for the full realization of the right to access to justice. This is especially true for vulnerable groups such as women and girls with intellectual disabilities. In addition to this, the type of legal aid that currently exists in the Ethiopian legal system could be ineffective if persons with intellectual disabilities are either unaware of the services or are unable to access them.

Conclusion

When gender discrimination is coupled with disability discrimination, it aggravates the vulnerability of women and girls with intellectual disability making them more susceptible to violence that could occur at home, in personal relationships, institutions, and in the general public. In addition to societal discrimination, the lack of access to education and barriers in accessing information and services makes the situation much worse. These factors combined with unresponsive public administrators, judicial organs, health care and other service providers put women and girls with intellectual disabilities at grave risk.

With the aim of improving the treatment of its citizens, the Ethiopian government has signed almost all of the necessary international human rights instruments that would enable the protection of women and girls with intellectual disabilities from violence. However, there is a gap in enforcement in the Ethiopian legal system when it comes to the protection of women and girls with intellectual disabilities from violence.

In regards to women and girls with intellectual disabilities, human rights cannot be made effective unless more inclusive policy documents are adopted. Therefore, it is of upmost importance that policy makers and practitioners develop more nuanced and representative legislation that address the challenges that women and girls with intellectual disabilities encounter.

Recommendations

- Given that education is the most important element in protecting women and girls from violence, the government should reconsider its education policies. The policy must not only consider access to education but should also consider both the quality of education as well as creating an enabling environment that is conducive to learning for children with intellectual disabilities.
- In protecting women and girls with intellectual disabilities from violence, the government should adopt a clear guideline that can assist the police, prosecutors and judges in supporting disabled victims of violence. By doing this, the government would be assisting women and girls with intellectual disabilities in exercising their legal capacity and 'supported decision-making' that respects their rights, will and preferences. They will not only be supported in a manner that is proportional and tailored to their circumstances, but such support will also be subject to a regular review by a competent, independent and impartial authority or judicial body. Conflicts of interest or undue influence by the guardian can be avoided when women and girls with disability exercise their legal capacity if such a regulatory procedure is in place.¹⁰⁰
- The government should adopt regulations and guidelines that are not only multi-disciplinary but also use means of communication beyond verbal communication. This would include assistive technology, expert testimony, and interpreters trained to communicate with individuals that have intellectual disabilities. The United Nations Commissioner for Human Rights also suggested in their 2018 report that national laws and regulations should also define the entity responsible for providing procedural accommodations and should include details on where and how persons with disabilities

100. See Article 12(4) of the Convention on the Rights of Persons with Disabilities.

can both request and access them.

- The government needs to expand/amend national policies, strategies, and action plans to include reasonable adjustments that protect women and girls with intellectual disabilities and improve the quality and access of services for women and girls who are victims of violence.
- In the implementation of the guidelines, the government should consider providing training for police officers, prosecutors and judges to ensure that women and girls with intellectual disabilities have access to justice that is equal to others.
- The government should consider putting a mechanism in place for providing redress for victims of violence. In addition to this, rules and guidelines need to be developed to regulate the qualifications of persons providing legal aid services, the qualifications to receive such services, the availability of legal aid services, and the equitable geographical distribution of legal aid centers across the country.
- The government organs providing legal aid services need to work in collaboration with organizations working on disability issues in order to foster cooperation in the development of policy initiatives across all levels of government.

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The Right of Access to Menstrual Hygiene Products in Ethiopia: An Intersectional Feminist Perspective



The Right of Access to Menstrual Hygiene Products in Ethiopia: An Intersectional Feminist Perspective

Mahlet Abreham Tibebu¹

Abstract

As a biological fact, most women and girls menstruate every month across the world. Yet, studies show that Menstruation and Menstrual Hygiene Management (MHM) has continued to be a monthly challenge for women and girls in Ethiopia. The stigma surrounding menstruation combined with several factors such as poor menstrual health education, the lack of access to sanitary products, safe and gender-sensitive sanitation and the lack of access to safe toilet facilities with clean water all create major barriers in maintaining menstrual hygiene. This article doctrinally examines the right to access menstrual hygiene products under international human rights law. Through an intersectional feminist lens, this article also examines the rationale behind taxing menstrual hygiene products. It finds that tax legislators being predominantly men and the culture surrounding menstruation that stigmatizes women makes gaining access to menstrual hygiene products in Ethiopia difficult. Feminine hygiene products being considered as luxury products, and therefore taxed as such, consequently leads to intersectional discrimination based on both gender and economic status. This article argues that the lack of access to menstrual hygiene products is discriminatory and a violation of the right to equality, education, dignity and reproductive health.

Key Words - Menstruation, Tax, Feminine hygiene products, rights, international human rights laws

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The right to access menstrual hygiene products in Ethiopia: An intersectional feminist perspective

Introduction

“For millions around the world, the stigma surrounding menstruation combined with poor menstrual health education, lack of access to sanitary products and safe and gender-sensitive sanitation, can be a major barrier. Menstrual hygiene should not be a luxury; it should be a human right. It’s time for action!”² Sophia Wang

Most women and girls between the ages of 12-45 have monthly menstruation cycles; this is a biological fact. Menstrual Hygiene Management (MHM), as the United Nations Children’s Fund (UNICEF) defines it, is the process of handling menstruation; this includes access to appropriate menstrual hygiene products and sanitation facilities.³ Also, according to UNICEF, the best practices of MHM include changing disposable or reusable pads several times a day, changing undergarments frequently, taking baths daily, washing private parts after going to the bathroom, and eating a balanced diet.⁴ In Ethiopia, the challenges with MHM include the lack of accessible toilets and toilet facilities, clean water, and sanitary pads. The lack of information on menstruation management and cultural practices that stigmatize menstruation are the other challenges most women and girls face.⁵ Data on MHM in Ethiopia suggests that only 28% of Ethiopian women and girls have everything they need to manage their periods like menstrual hygiene products and clean toilet facilities.⁶

This paper aims to examine the Ethiopian government’s obligations in regards to the right of access to menstrual hygiene products under international and regional human rights instruments and its challenges in fulfilling the obligations. Also, it aims to thoroughly explore access to menstrual hygiene products as an intersectional issue focusing on the discrimination against poor women. It presents a critical analysis of the right to MHM, including access to sanitary products, in line with the right to health, right to education, right to work, right to dignity, right to be free from discrimination, and the right to equality. Then, this paper will go further and explore the challenges that the Ethiopia government faces in fulfilling its obligations under international and regional human rights instruments. It argues that the cultural practices surrounding menstruation and the unaffordability and inaccessibility of menstrual hygiene products are the two main challenges obstructing the government from fulfilling its obligations. Finally, the paper will examine the implications of the taxes imposed on menstrual hygiene products. It examines, through an intersectional feminist lens, taxes imposed on such products and how gender and poverty have intersected causing poor women to be disproportionately burdened economically. This article finds that the Ethiopian government has shown no commitment to eliminate such pervasive discriminatory norms or tax laws and has ultimately failed to prioritize the needs of women or acknowledge the unique economic burden on poor women.

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6. FSG, Report on Menstrual Health in Ethiopia | Country Landscape Analysis, (May 2016) 6 available at https://menstrualhygieneday.org/wp-content/uploads/2016/04/FSG-Menstrual-Health-Landscape_Ethiopia.pdf

Is there a right of access to menstruation hygiene products under international human rights laws?

The issue of menstruation has not gotten the attention required because of the shame, silence, and stigma that accompanies menstruation in many societies. This is also reflected in the failure of regional and international human rights instruments to clearly mention menstruation.⁷ The International Covenant on Economic, Social and Cultural Rights (ICESCR), the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), the Convention on the Rights of the Child (CRC), and the Protocol to the African Charter on Human and Peoples' Rights on the Rights of Women in Africa (Maputo Protocol) are the relevant international and regional instruments that should have included MHM under their scopes but instead have left out the issue of menstruation.⁸

It is appropriate to question whether there is a general right to MHM or a right to access to menstrual hygiene products. Although international and regional human rights/women's rights instruments have failed to clearly incorporate the right to MHM and access to menstrual hygiene products, different scholars argue that these rights are human rights and can cause a huge impact on women's and girl's education, health, work, equality and full participation in public life if they are not respected, protected and fulfilled. Bridget Crawford and Carla Spivak have argued that menstrual hygiene and access to such products are linked to different human rights, including the right to health, education, dignity, work, and non-discrimination.⁹ The cross-cutting nature and impact of MHM on education, health, sanitation, and equality has been elaborated by the CEDAW Committee General Recommendation No 34¹⁰ and 36¹¹, reports by the UN Special Procedure Mandate for Water and Sanitation¹² and the United Nations General Assembly Resolution 70/169¹³ with explicit references to the access of sanitary pads.

The UN Special Rapporteur for Water and Sanitation states that "according to international human rights law, the State must take measures to ensure, as soon as possible, access to water and adequate sanitation that are accessible, available, affordable, acceptable, and safe in all spheres of life. The realization of these rights also requires providing access to adequate and affordable hygiene practices, including hand-washing and menstrual hygiene management."¹⁴

The following will illustrate how MHM and the right of access to feminine hygiene products relates to and impacts the enjoyment of the right to health, dignity, education, work, equality, and non-discrimination.

The Right to Health (Reproductive Health)

Different studies indicate that poor menstrual hygiene management could lead to different reproductive health issues including bacterial vaginal infections and vulva vaginal candidiasis.¹⁵ One of the causes of poor hygiene is the lack of access to sanitary pads, which can be related to high costs or the lack of awareness.

7. Robyn Boosey, 'A Vicious Cycle of Silence: What are the implications of the menstruation taboo for the fulfilment of women and girls' human rights and, to what extent is the menstruation taboo addressed by international human rights law and human rights bodies?' (2014) School of Health and Related Research (SchARR), University of Sheffield, 4342

8. Boosey (n 6) 43

9. Bridget J. Crawford & Carla Spivak, 'Tampon Taxes, Discrimination, and Human Rights' (2017) *Wisconsin Law Review* 491, 513

10. UN Committee for the Elimination of All Forms of Discrimination against Women, 'General Recommendation No 34' on the Rights of Rural women (7 March 2016) U.N. Doc CEDAW /C/GC/34 (2016)

11. UN Committee on the Elimination of Discrimination against Women; General recommendation No. 36' on the Right of Girls and Women to Education (2017) U.N.Doc CCPR/C/GC/35

12. UN Human Rights Council, Report of the Special Rapporteur on the human right to safe drinking water and sanitation, 27 July 2016, A/HRC/33/49, available at: <https://www.refworld.org/docid/57cd86474.html> [accessed 13 May 2020]

13. United Nation General Assembly Resolution 70/169 on the Human Rights to Safe Drinking Water and Sanitation adopted on 17 December 2015. U.N.Doc A/RES/70/169

14. United Nation Human Rights Office of High Commissioner, Statement by the United Nations Special Rapporteur on the Human Right to safe drinking water and sanitation (Visit to Botswana, 9-17 November 2015) available at <<https://www.ohchr.org/EN/NewsEvents/Pages/DisplayNews.aspx?NewsID=16763&LangID=E>>

15. Colin Sumpter and Belen Torondel A Systematic Review of the Health and Social Effects of Menstrual Hygiene Management (2013) 8 PLoS ONE, 6 available at <<https://doi.org/10.1371/journal.pone.0062004>> See also, , Jennifer Weiss-Wolf, 'Helping Women and Girls Period' N.Y. TIMES (28 January 2015) available at <http://kristof.blogs.nytimes.com/2015/01/28/helping-women-and-girlsperiod/?0>

The right to the highest attainable standard of health is provided in Article 12 of the ICESCR¹⁶. Article 12 of CEDAW¹⁷ and Article 14 of the Maputo Protocol obligates States to ensure the right to reproductive health care without discrimination.¹⁸ The Committee on Socio, Economic and Cultural Rights interprets the right to the highest attainable health in General Comment No 14 as having access to facilities, services, and goods, especially for the most vulnerable and marginalized groups.¹⁹

The right of access to sanitary pads is very important for women and girls' health and the realization of other human rights. The lack of access to sanitary pads creates huge obstacles in poor women's ability to practice good menstrual hygiene and could lead to health complications, including serious reproductive health problems.

The Right to Dignity

The right to dignity is recognized under the preamble of the Universal Declaration of Human Rights; it states that "recognition of the inherent dignity and the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world."²⁰ Furthermore, under Article 3 of the Maputo Protocol, the importance of the right to dignity is emphasized; it states that "every woman shall have the right to dignity inherent in a human being and to the recognition and protection of her human and legal rights."²¹ The right to dignity is interlinked with access to menstrual hygiene products being that denying access to such products makes it difficult for women and girls to maintain their hygiene and cleanliness and ultimately causes them to be stigmatized by the society.

Another argument is that it is difficult for women and girls to maintain dignity when they are made to use rags and other uncomfortable materials during menstruation or forced into isolation.²² The Chief of the Human Rights Office Economic and Social Issues Section, Jyoti Sanghera, elucidates that "the stigma around menstruation and menstrual hygiene is a violation of several human rights, most importantly of the right to human dignity".²³ Thus, the lack of access to sanitary pads has multifaceted implications on women's right to dignity.

The Right to Education

Studies show that the number of girls and women who are absent from classes and have a low performance due to menstruation is increasing.²⁴ This is mainly related to the lack of access to menstrual hygiene facilities (ex. toilet facilities), the lack of toilet breaks during class, improper sanitation, the lack of access to sanitary pads, pain related to menstruation, and far distances that many girls walk to school.²⁵ This problem is more challenging for girls from low-income households.²⁶ The right to education is provided under Article 13 of the ICESCR, which states that functioning educational institutions need to have a sufficient quantity of sanitation facilities.²⁷ Also, CEDAW Article 10(f) and Maputo protocol Article 12(2) (c) both note that States have the obligation to close the gender gap in education by reducing the dropout

16. International Covenant on Economic, Social, and Cultural Rights (adopted 16 December 1966 entered into force 3 January 1976) 999 UNTS 171 (ICESCR) Art 12

17. Convention on the Elimination of All Forms of Discrimination against Women (adopted 18 December 1979. entered into force 3 September 1981) 1249 UNTS 180 (CEDAW) Art 12

18. Protocol to the African Charter on Human and People's Rights on the Rights of Women in Africa, (adopted on 28 March 2003 and entered to force 11 July 2003) Art 14

19. UN Committee on Economic, Social and Cultural Rights (CESCR), General Comment No. 14: The Right to the Highest Attainable Standard of Health (Art. 12 of the Covenant), 11 August 2000, E/C.12/2000/4, Para 35

20. Universal Declaration of Human Rights (adopted 10 December 1948 UNGA Res 217 A(III)) (UDHR) prmb1

21. Maputo Protocol Art 3

22. United Nations Human Rights Office of High Commissioner, 'Every woman's right to water, sanitation and hygiene' (14 March 2014) available at <https://www.ohchr.org/EN/NewsEvents/Pages/Everywomansrighttowatersanitationandhygiene.aspx>

23. Ibid

24. ICESCR, Art 13

25. Muthusamy Sivakami et al, 'Effect of menstruation on girls and their schooling, and facilitators of menstrual hygiene management in schools: surveys in government schools in three states in India.' (2019) 9 Journal of global health 1, 4 010408

26. Anne Sebert et al. 'Menstrual Hygiene Management in Resource-Poor Countries.' (2017): 72 Obstetrical & Gynecological Survey 356, 361

27. CEDAW Art 10 (F) and Maputo Protocol Art 12(2)

rate of female students and therefore increasing retention.²⁸ The Committee on CEDAW explains the right of girls and women to education in General Recommendation No 36 as well as its concerns regarding the lack of appropriate menstrual hygiene products and awareness on issues related to menstruation for girls in schools.²⁹

Studies show that poor menstrual hygiene and the lack of proper facilities causes girls to be absent and ultimately hinders them from reaching their fullest potential. If girls are to attend school during their cycle, they often times cannot concentrate because they worry about the leakage of blood on their clothes and the humiliation they will face as a result of it.³⁰ There are also some instances where girls stop going to school after bleeding through their clothes in school and being shamed by teachers and peers. This clearly shows how MHM, especially the lack of access to sanitary pads, has a detrimental impact on a girl's academic performance. It is a violation of their right to education and contributes to the already existing gender gap in education.

The Right to Work

The right to work is another human right that is compromised due to poor menstrual hygiene. Article 7 of the ICESCR states that “everyone has a right to the enjoyment of just and favorable conditions of work.”³¹ Furthermore, CEDAW Article 11(f) has specifically recognized women's right to “protection of health and to safety in working conditions, including the safeguarding of the function of reproduction.”³² Research conducted on this topic shows that the performance of women can be negatively impacted when they lack information, resources, or facilities for effective MHM.³³ For example, the study reveals that female factory workers in Bangladesh take contraceptive pills to stop menstruating so that they will not have to miss work; this is due to poor MHM conditions.³⁴ This has a huge impact on their performance, income, and the gender gap in the workplace. The right to work must also encompass the right to MHM including appropriate menstrual hygiene products and sanitation facilities.

The right to equality and to be free from discrimination

The right to non-discrimination and the right to equality are fundamental rights recognized in almost all international, regional, and national human rights instruments. These instruments have specific provisions that prohibit discrimination and guarantee equal protection under the law. These provisions are also the foundation for ensuring gender equality and the right for women to be free from discrimination. More specifically, under Article 1 of CEDAW, discrimination against women is defined as “any distinction, exclusion or restriction made based on sex which has the effect or purpose of impairing or nullifying the recognition, enjoyment or exercise by women, irrespective of their marital status, on a basis of equality of men and women, of human rights and fundamental freedoms in the political, economic, social, cultural, civil or any other field.”³⁵ Similarly, Article 2 of the Maputo Protocol obligates state parties to eliminate any form of discrimination against women and to take all appropriate and necessary measures, including legislative and institutional measures.³⁶

The higher taxes imposed on sanitary pads causes them to be unaffordable which results in the lack of access to sanitary pads. Such national tax laws are discriminatory against women and foster inequality

28. Ibid

29. Committee on the Elimination of Discrimination against Women General recommendation No. 36 (n 17) para 30

30. Teketo K.Tegegne (n 32) , 4

31. ICESCR, Art 7

32. CEDAW, Art 11(F)

33. Amanda Klasing, 'Menstrual Hygiene Day Links Periods and Human Rights,' WOMEN'S ENews (May 27, 2014) available at <<http://womensenews.org/2014/05/menstrualhygiene-day-links-periods-and-human-rights>> See also, Kounteya Sinha, '70% Can't Afford Sanitary Napkins, Reveals Study,' TIMES OF INDIA (Jan. 23, 2011) available at <<http://timesofindia.indiatimes.com/india/70-cant-afford-sanitary-napkins-revealsstudy/>>

34. Business for Society (BSR) 'Female Factory Workers' Health Needs Assessment: Bangladesh, Herproject,' (2010), available at <http://herproject.org/downloads/countryresources/her_health_needs_bangladesh.pdf>

35. CEDAW, Art 1

36. Maputo Protocol, Art 2

by hampering women from enjoying their rights. Crawford and Spivak argue that “a woman’s right to be free from discrimination is violated when menstrual hygiene products are subject to tax when there are no similar products that men must use because of an involuntary, biological monthly occurrence, and when the closest analogous products used primarily by men are not subject to taxation.”³⁷ It’s an undeniable truth that women are the only users of sanitary pads because of biology. Thus, imposing taxes on such products that are exclusively used by women is discrimination based on sex.³⁸ Moreover, to demonstrate the discriminatory nature of such laws, they used an analogous product - condoms. Condoms are tax-free or tax-exempt in many countries and are mainly used by men for voluntary sexual engagement, while sanitary pads are used by women for involuntary menstrual hygiene.³⁹ Imposing such tax laws on sanitary pads is discriminatory towards women and counters their right to equality. This is especially true for low income women.

Obligations of Ethiopia under International Laws

Ethiopia has ratified seven core international human rights instruments including ICESCR and CEDAW. It has also ratified regional instruments such as the African Charter on Human and People’s Rights and the Maputo protocol. The applications of these instruments are specifically addressed under Article 9(4) of the 1995 Federal Republic Democratic of Ethiopia Constitution, which states that “all international agreements ratified by Ethiopia are an integral part of the law of the land.”⁴⁰ This means all international instruments ratified by Ethiopia are applicable as national law. Furthermore, the Constitution has specifically granted the right to equal protection and non-discrimination under Article 25.⁴¹

International human rights instruments require that member states respect, protect and fulfill human rights.⁴² “Obligation to respect requires member states to avoid any direct or indirect intervention with the enjoyment of that right while the obligation to protect requires taking every measure to prevent third parties from interfering and lastly, obligation to fulfill requires to provide, facilitate and promote the full realization of the right by adopting legislative, administrative, budgetary, judicial and other measures.”⁴³ Thus, Ethiopia has these obligations in respect to the right to health, education, work, dignity, equality, and non-discrimination.

Regarding the right of access to menstrual hygiene products, Ethiopia has obligations to refrain from any interference on the enjoyment of this right. This includes eliminating the heavy taxes on sanitary pads, which hamper women, especially poor women, from accessing the necessary products. The other obligation is the duty to protect from third person interference. In respect of this, the state should work towards providing sanitary pads for free or incentivize domestic enterprises to increase productivity and reduce costs related to the distribution of such products through subsidies. If it is difficult, for the Ethiopian government to provide all women with sanitary pads for free, it should at least refrain from imposing taxes on sanitary pads and making it unaffordable for poor women. It is a very unfortunate truth that the Government of Ethiopia has violated the full realization of women’s right to education, work, and health by failing to respect women’s rights per the constitution and international instruments.

Challenges to Fulfill MHM in Ethiopia

The challenges to MHM in Ethiopia include the lack of water supply, hygiene and sanitation (WASH) facilities, limited access to menstrual hygiene materials, harmful cultural practices and taboos associated

37. Crawford & Spivak, (n 8), 516

38. Margaret E. Johnson, ‘Menstrual Justice’ (2019) 33 UC Davis Law Review 1, 73

39. Crawford & Spivak (n 8), 516

40. Constitution of the Federal Democratic Republic of Ethiopia, Federal Negarit Gazeta of the Federal Democratic Republic of Ethiopia, 1st Year No. 1, 21 August 1995, Art 9(d) available at: <https://www.refworld.org/docid/3ae6b5a84.html> [accessed 13 May 2020]

41. Ibid Art 25

42. Icelandic Human Rights Centre, ‘Human Rights Concepts, Ideas And For’, available at <http://www.humanrights.is/en/human-rights-education-project/human-rights-concepts-ideas-and-fora>

43. Icelandic Human Rights Centre, ‘Human Rights Concepts, Ideas And For’ (n 41)

with menstruation, and the lack of information on proper menstrual hygiene management.⁴⁴ Statistical data on the accessibility of sanitary pads in the country reveals that only 28% of Ethiopian women and girls have everything they need to properly manage menstruation.⁴⁵ 25% of rural girls and 4% of urban girls do not use any menstruation hygiene products to manage their periods which means that they isolate themselves in the forest, desert, field or at home during their monthly menstruation cycle. Only 11% of girls in Ethiopia change their menstrual cloth once a day.⁴⁶ Also, in a study conducted in 2016 in Northeast Ethiopia, it was noted that 12% of girls reported to having missed class due to the lack of menstrual hygiene products.⁴⁷ Furthermore, purchasing appropriate menstrual hygiene products is not a priority for most girls in low-income families because they can not afford them.⁴⁸ In some rural areas, the price of sanitary pads costs one-tenth of a poor family's monthly income.⁴⁹ This means that most women and girls use rags torn from old clothes as material to keep their blood from staining their clothes.⁵⁰ To wash the rags, they often only use water (without soap) to rinse the rags and dry them in the house or places that do not get enough sunlight.⁵¹ Using ash or unclean old rags can cause infection in the cervix and the uterine cavity.⁵² Such practices produce bad odors and increase their susceptibility to infection which is in direct odds with the right to health.

Most schools in the country are not equipped with basic facilities for MHM such as places for changing menstruation materials or clean water and sanitation. This highly impacts girls' education because girls often times do not go to school during their mensuration cycle which causes them to miss class and compromise their performance. Now, I will discuss two main challenges in the way of fulfilling the right of access to menstrual hygiene products in Ethiopia.

Cultural practices and stigmas surrounding menstruation

In Ethiopia, there are many negative cultural attitudes towards menstruation that are deeply rooted in sociocultural and patriarchal interpretations of religion.⁵³ During their mensuration period, women and girls are considered 'dirty', 'impure', 'contaminated', or 'polluted'.⁵⁴ This has led to shame, silence, and stigmatization. UNICEF has reported that there is a misconception among the community that girls who begin menstruating have had sex and are blamed for not being virgins. This sometimes leads to their families preventing them from going to school, church/mosque, or public places.⁵⁵ Religious, cultural, and traditional beliefs that surround menstruation have restrictive and controlling effects the mobility, behavior, and actions of women and girls during their menstruation period.⁵⁶ Menstruating women and girls are secluded and prevented from participating in daily activities such as preparing food and religious rituals; dietary restrictions are imposed on them as well.⁵⁷

44. Population Service International (PSI), Report on Expanding Access to Menstrual Hygiene Products for Adolescent Girls and Young Women in Ethiopia, (October 2018) 4 available at <https://www.psi.org/publication/expanding-access-to-menstrual-hygiene-products-for-adolescent-girls-and-young-women-in-ethiopia-a-market-development-approach/>

45. Ibid

46. FSG, Report on Menstrual Health in Ethiopia | Country Landscape Analysis, (May 2016) 6 available at https://menstrualhygieneday.org/wp-content/uploads/2016/04/FSG-Menstrual-Health-Landscape_Ethiopia.pdf

47. Teketo K. Tegegne (n 32) 4

48. Federal Democratic Republic Of Ethiopia Ministry of Health Menstrual Hygiene Management in Ethiopia An Intersectional issue: Policy and Implementation Guideline (2016) 3 available at <https://menstrualhygieneday.org/wp-content/uploads/2018/12/Ethiopia_MHM-Policy-and-Implementation-Guide-to-Ethiopia.pdf>

49. FSG, Report on Menstrual Health in Ethiopia | Country Landscape Analysis (n 5) 11

50. Ibid 4

51. Ibid

52. Sumpter and Belen (n 14), 6

53. Menstrual Hygiene Management in Ethiopia Guideline (n 47), 4

54. Margaret E. Johnson, (n 37), 15

55. Jane Bevan and Kalkidan Gugsu, 'Menstrual Hygiene in Ethiopia – the Importance of Including Boys in the Discussion', (UNICEF Ethiopia, May 30, 2017) available at <https://unicefethiopia.org/tag/hygiene/>

56. UNICEF Ethiopia, 'Menstrual Hygiene Management In Ethiopia National Baseline Report from Six Regions of Ethiopia' (May 2017) 34 available at <https://www.unicef.org/ethiopia/reports/menstrual-hygiene-management-ethiopia>

57. Lewis Wall, Kibrom Teklay and et al., "Tending the 'monthly flower': a qualitative study of menstrual beliefs in Tigray, Ethiopia", (2018) 18 BMC Women's Health, 4.

Cultural norms that create a stigma against menstruation and consider it a taboo subject play a crucial role in limiting girls and women from accessing affordable menstrual hygiene products. Stigma and shame keep women silent and unable to organize and demand their rights. There is also the shame and embarrassment that girls/ women feel when buying sanitary materials from open places and shops. Although the issue of MHM is a widespread problem in Ethiopia, it is overlooked by the government that fails to take measures to eliminate the discriminatory norms that women and girls face or change the tax laws on menstrual hygiene products and make them affordable. The government is ignoring the issues related to MHM because men hold most of the power and cannot understand the lived experiences of women. One prime example of the patriarchal nature of legislation related to this issue is the tax legislation that imposes a luxury goods tax on sanitary pads. 62% of the legislative body is held by men resulting in the lack of representation of women by women in the highest decision-making positions; this is a prime consequence of sexism.⁵⁸ In 2015, the former president of the United States, Barack Obama said that taxes on menstrual hygiene products would not exist if women were properly represented in political institutions.⁵⁹ The under representation of women in parliament has given way for the male-dominated parliament to not only ignore and overlook girl's and women's need for sanitary pads, but to create sexist laws that negatively impact the lives of many girls and women throughout Ethiopia. Thus, the patriarchy, stigma and cultural norms around menstruation have created a situation where the parliament can designate monthly protection materials as luxury items or a privilege rather than a necessity or a human right.

Unaffordability and inaccessibility of menstrual hygiene products

Studies in Ethiopia show that 70% of women and girls cannot buy and use menstrual hygiene products due to unaffordability.⁶⁰ Menstrual hygiene products in Ethiopia are very expensive due to the huge tax imposed by the government. Because they are mostly imported products and designated as luxury products by the government, they are subject to different types of taxes such as value-added tax (VAT) and excises taxes.⁶¹ In addition to high-taxes, there are limited options for manufacturing domestically and challenges in distribution, especially in rural areas.⁶²

Regarding the tax system, Proclamation No 285/2002 imposes VAT on taxable transactions, imported goods, and services (other than an exempt rate for import at 15% rate of standard value).⁶³ The proclamation has exempt specific supplies, imported goods and rendered services from paying VAT but has failed to exempt menstrual hygiene products.⁶⁴ In addition to this, under the excise tax proclamation that taxes luxury products, hazardous products, and basic goods which are inelastic in demand, menstrual hygiene products have been deemed luxury products, along with cosmetic products for example, which means a 100% tax is imposed.⁶⁵ This means that when it comes to imported menstrual hygiene products, VAT (15%), excise tax (100%), surtax (10%), and withholding tax (2%) are all levied on one product.⁶⁶ A study conducted in 2016 shows that sanitary pads that are manufactured domestically cost \$1 USD (20 ETB) and imported sanitary pads cost \$2 USD (40 ETB).⁶⁷ The current price of sanitary pads has increased to \$1.50 USD (domestic) and \$3 USD (imported). Imported hygiene products cost two times the price of domestically produced ones.

58. Inter-Parliamentary Union (IPU) Percentage of women in national parliaments May 2020 available at <https://data.ipu.org/women-ranking?month=5&year=2020> [accessed on May 14, 2020]

59. Victoria Hartman, 'End the Bloody Taxation: Seeing Red On The Unconstitutional Tax On Tampons' (2017) 112 NULR 313, 314, see also Prachi Gupta, 'Obama: Tampon Tax Probably Exists Because Only Dudes Were Making Laws' (COSMOPOLITAN, Jan. 15, 2016), available at <<http://www.cosmopolitan.com/politics/news/a52262/president-obama-respondstotampon-tax/>> see also Maya Rhoden, 'President Obama Doesn't Understand the 'Tampon Tax' Either' (TIME Jan 15, 2016) <<http://time.com/4183108/obamatampon-tax-sanitary>>

60. Report on Menstrual Health in Ethiopia (n 41), 11

61. Hileleule Getachew, 'Lessons from Kenya on Menstrual Equity' (AWIB Blog January 19, 2020) available at <http://awib.org.et/newsite/3667-2/>

62. Report on Menstrual Health in Ethiopia, (n 4), 14

63. Value Added Tax Proclamation No.285/2002, Federal Negarit Gazeta of The Federal Democratic Republic of Ethiopia, 8th Year No. 33, July 1, 2002, Art 7

64. Ibid Art 8

65. Excise Tax Proclamation No 1186/2020 Federal Negarit Gazeta Of the Federal Democratic Republic of Ethiopia February 5, 2020, prmb1 and Index

66. Report on Menstrual Health in Ethiopia, (n 4) 14

67. Report on Expanding Access to Menstrual Hygiene Products for Adolescent Girls and Young Women in Ethiopia, (n 34),8

While women are challenged by the unaffordability of such products, the government continues to impose taxes, with no readiness or willingness to exempt these products in sight. This is forcing women and girls to pay unnecessary costs and making these products unaffordable to more than 70% of women and girls in Ethiopia.

Access to menstrual hygiene products and intersectional discrimination

The imposition of unjust and excessive taxes on menstrual hygiene products creates intersectional discrimination against poor women. Kimberley Crenshaw asserts that intersectional discrimination is a form of discrimination that is generated because of the combination of different factors such as gender, religion, age, and other grounds occurring at the same time.⁶⁸ The earlier sections explained how taxation denies women and girls access to menstrual hygiene products and violates their right to health, education, equality, dignity, and their right to be free from discrimination. The following will prove how different the attributes of gender and poverty in Ethiopia have intersected and exposed poor women to a disproportionate economic and social burden.

As discussed earlier, the Ethiopian tax system imposed different types of taxes on menstrual hygiene products that are manufactured both domestically and imported. It has been argued that tax on menstrual hygiene products, while condoms are not subjected to tax, is discriminatory and based on sex.⁶⁹ Studies suggest that an average woman is estimated to have roughly 450 periods in her lifetime.⁷⁰ The excessive tax on such products has a significant impact on women. Firstly, it makes it unaffordable for most women. Secondly, for women and girls who can purchase them for every period, the taxes imposed adds up and creates an economic burden. The discriminatory nature of such a tax is not only one that targets women, but also one that intersects with other elements, especially poverty.⁷¹

The nature of the tax itself causes intersectional discrimination. Both the VAT and excises tax imposed on sanitary pads are at a flat standard rate which has a regressive effect.⁷² This means that both low-income and high-income women are subject to the same tax rate and that low-income women will pay a larger percentage of their disposable income on taxes than high-income women.⁷³ The tax on menstrual hygiene products makes the lived experiences of poor women more burdensome than that of women with higher incomes; one can manage their menstrual hygiene in a way that the other can not.⁷⁴ Thus, the excessive and unfair tax imposed on menstrual hygiene products creates intersectional discrimination and exposes poor women to disproportionate burden.

Countries like Scotland, Canada, India, Malaysia, and Kenya have exempted menstrual hygiene products from tax.⁷⁵ Scotland also made access to sanitary pads free in public places like schools and libraries.⁷⁶ Following the European Commission rule that gives member states flexibility with the imposition of VAT, countries such as Germany, the UK, and France have decreased the sales tax on such products.⁷⁷ There is

68. Kimberley Crenshaw, 'Demarginalizing the Intersection of Race and Sex: A Black Feminist Critique of Antidiscrimination Doctrine, Feminist Theory and Antiracist Politics,' (1989) *The University of Chicago Legal Forum* 139, 140

69. Crawford & Spivak, (n 8), 516

70. Jennifer Bennett, 'The Tampon Tax: Sales Tax, Menstrual Hygiene Products, and Necessity Exemptions' (2017) 1 *Bus. Entrepreneurship & Tax L. Rev.* 1, 34

71. Beth Goldblatt and Linda Steele, 'Bloody Unfair: Inequality related to Menstruation Considering the Role of Discrimination Law' (2019) 41 *SLR* 293, 309

72. Bridget J. Crawford and Emily Gold Waldman, 'The Unconstitutional Tampon Tax' (2018) 53 *University of Richmond Law Review* 438, 448

73. Ibid

74. Christopher A. Cotropia, 'Who Benefits from Repealing Tampon Taxes? Empirical Evidence from New Jersey' (2018) 15 *J. Empirical Legal Stud.* 620, 622

75. Maya Salam, 'Goodbye, Tampon Tax (at Least for Some)' (New York Times Nov. 9, 2018) available at <https://www.nytimes.com/2018/11/09/health/tampons-tax-periods-women.html>

76. Elizabeth Howcroft, 'Scottish parliament approves free sanitary products for all women' (REUTERS February 25, 2020) available at <https://www.reuters.com/article/us-britain-scotland-sanitary/scottish-parliament-approves-free-sanitary-products-for-all-women-idUSKBN20J1NZ>

77. BBC News 'Tampon tax' paid around the world' (August 21, 2015) available at <https://www.bbc.com/news/world-32883153> see also Crawford & Spivak, (n 35), 520

also a landmark decision by the Columbia Constitutional Court, Decision C-117 of 2018, on a 5% tax on sanitary products.⁷⁸ The court ruled that tax laws that impose 5% VAT on feminine hygiene products are unconstitutional on the principle of reasonableness and non-discrimination. In its reasoning, the court stated that the congress has failed to confer why tampons should be taxed and therefore concluded that there shouldn't be taxation.⁷⁹ Furthermore, the court held that access to sanitary pads is closely associated with women's ability to fully participate in public. Also, the court acknowledged that menstrual hygiene products are particularly inaccessible for rural women and women who are poor and that access to such products is related to the protection of other rights such as the right to education, health, and dignity.⁸⁰ Finally, the court held that a 5% tax on sanitary pads constitutes indirect and intersectional discrimination against women, particularly on women of low socioeconomic status.

Thus, the elimination of such taxes on menstrual hygiene products by states shows that countries have started to recognize the experience of girls and women, the discriminatory nature of such laws, and the detrimental impacts menstruation has on the lives of poor girls and women. A social movement in Ethiopia called Jegnit has engaged in activism through the use of social media campaigns urging for a tax cut on sanitary pads; their twitter hashtags include #Don'ttaxmyblood, #freesanitarypads and #dignityperiod.⁸¹ The Ethiopia government has not responded with any measures that reduce the tax levied on menstrual hygiene products. In 2019, Dr. Amir Aman, the Minister of Health at the time, said that there would be moves towards making sanitary pads free of tax. However, there has been no action taken towards fulfilling that promise.⁸² The fact that the government has failed to prioritize or even acknowledge the lived experiences of girls and women has led to intersectional discrimination against poor women through the unjust and excessive taxation on menstrual hygiene products.

Conclusion

In conclusion, the Ethiopian government has failed in fulfilling its obligation to ensure that women and girls have access to menstrual hygiene products. This is at odds with the Ethiopian constitution as well as the international instruments in which Ethiopia is a signatory. The unfair, unjust, unreasonable, and excessive tax imposed by the government on such products has led to intersectional discrimination against women of low economic status. Through both government action and inaction, the far-reaching effects of the issue has resulted in the violation of women and girl's right to health, right to education, right to work, right to dignity, right to equality, and their right to be free from discrimination due to the inaccessibility and unaffordability of menstrual hygiene products and sanitation facilities.

78. Columbia Constitutional Court Decision on Constitutionality of 5% tax on sanitary towels Decision C-117 of 2018

79. İlayda Eskitaşçıoğlu, 'Access to Menstrual Products is a Constitutional Right. Period,' (Verf Blog April 12, 2019) available at <https://verfassungsblog.de/access-to-menstrual-products-is-a-constitutional-right-period/>

80. *ibid*

81. Fasica Berhane, 'Jegnit' to launch campaign for tax cut on sanitary pads,' (Ethiopian Press Agency, May 21, 2019) available at https://www.press.et/english/?p=6041&fbclid=IwAR0O2azj0T4kwsFd1SqeC__1YnEmDHi9F6IB3XjuyyfN2BwYvABpCk2KRiU#

82. Dr. Amir Aman "Our country is managing procurement & distribution of 150-200 Mill condoms/year bn the government, NGO's, and Social marketers. I believe we can also use similar/customized model to make sanitary pads available and affordable for the underprivileged and all economic group women" Aug 16, 2019 available at <https://twitter.com/amirabiy/status/1162244731687989248?lang=en>

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The Setaweet Way: An Articulation of Ethiopian Feminism



The Setaweet Way: An Articulation of Ethiopian Feminism

Samrawit Bekele Genet¹

Abstract

Using feminism as a theoretical concept, coupled with feminist reflexivity as the methodology in an analysis of my own experiences, I explore the meaning and utility of feminism and feminist action in Addis Ababa today. The experiences in this article are centered on young, contemporary, Ethiopian women. I do not make the argument that my analysis is universal or applicable to all Ethiopian women, however, I provide these voices as valid and useful sources of knowledge for the focus of this article. The data used was collected through interviews in fieldwork and observations; I provide this articulation of Ethiopian feminism.

Here, I argue that despite the differences, contemporary Ethiopian women have many shared experiences that can be used to theorize and document feminism in the country. The aim of this article is to explore feminism in Ethiopia and build upon the bank of knowledge as well as for future theorizing. The title of this article came about after a conversation, with Setaweet staff in their office at the beginning of my fieldwork, about how Setaweet is not just an organization; it is a movement, a lifestyle. We discussed the attributes of that lifestyle and called it The Setaweet Way.

Key words: Setaweet, Feminism, lifestyle, patriarchy, Ethiopian women

1. Samrawit was born on March 18th in the town of Addis Ketema, located in the capital city of Ethiopia, Addis Abeba. After completing grade 2 in public school in Ethiopia, she immigrated to the United States to Denver, Colorado in November of 1995. Samrawit attended Metropolitan State University of Denver where she received her Bachelor's degree with a major in Africana Studies and a minor in Anthropology and her Master's in Pan-African Studies and a minor in Women and Gender studies from Syracuse University. she realized her dream of going back to Ethiopia through the externship program. In the summer of 2017, she returned to Ethiopia and conducted the feminist ethnography articulated in this thesis. While there, she met and made alliances with other Ethiopian and non-Ethiopian women alike who were joined in the struggle to bring change to Ethiopian society. Here, she has found her passion in utilizing her privilege of education to better bring the voices of Ethiopian women and our lived realities into the global conversation for women's equality. Correspondence email: kecho101@gmail.com

Setaweet:

The point of entry for my fieldwork is my relationship with the women's organization and self-identified feminist movement, Setaweet. I was granted an internship position as a Research Activist during the summer of 2017, from May to August. My involvement with this group shapes the thesis and explorative nature of this chapter.

As articulated in literature by African feminists, feminism can be loosely defined as the activist response to gain economic, political, and social equality for the male and female sexes. However, this is a very general definition and has been obscured by Western interpretations of feminism. The literature and activism that occurs in the name of feminism has been saturated by discourse that is centered on the experiences of middle-class, white women. Crenshaw writes, "early feminist texts such as Betty Friedan's *The Feminine Mystique* placed white middle-class problems at the center of feminism and thus contributed to its rejection within the Black community".² Similarly, in the ways that feminism was rejected by different groups in the United States, the perceived Western concept is often dismissed in the context of Africa as well. This grave oversight has had the negative consequence of aiding the hegemonic response by co-opting the language and techniques to further distort the intentions and goals of feminism. This distortion has crossed borders and caused the mere term feminism to spark negative reactions all over the world, including Ethiopia.

Chandra Talpade Mohanty writes that "feminist struggles are waged on at least two simultaneous, interconnected levels: an ideological, discursive level that addresses questions of representation (womanhood/femininity), and a material, experiential, daily-life level that focuses on the micro politics of work, home, family, sexuality, and so on"³ Organizations like Setaweet aim to dispel these negative distortions and provide necessary intervention for women in Ethiopia through a variety of events, discussions, and publications that address these interconnected aspects of feminism. Setaweet's objective is to positively affect women's issues in Ethiopia by strategically targeted intervention in three areas: language, curriculum, and media. Setaweet believes that a change in ideology will fuel the material changes that need to be made in Ethiopia. These initiatives are undertaken through events, conferences, media presence, online campaigns and more. The Setaweet mission, as found on their official website, states the following:

Setaweet is one of the first feminist movement and business in contemporary Ethiopia. Setaweet meaning 'of woman' in Amharic indicates the purpose of our movement which is the articulation of Ethiopian feminism - the struggle for equality between Ethiopian women and men. Setaweet, which was founded in 2014, is a home-grown Ethiopian movement that aims to articulate what feminism means for Ethiopian women. We are particularly engaged with investigating Ethiopian languages and cultures as avenues of equality, and we believe in constructive dialogue and a collaborative work culture. All women are welcome at Setaweet, and Sisterhood is our hallmark.

As a business, Setaweet PLC provides a range of services for private companies, NGOs and schools. Setaweet PLC is also the custodian of the Setaweet movement which was created to actively pursue gender equality through consciousness-raising efforts. The Setaweet Circle is a woman-only meeting group that meets monthly, and our Open Sessions which are open to all members of society engage on Ethiopian contemporary issues of culture, media and language (Setaweet.com).

2. Crenshaw, Kimberle. "Demarginalizing the Intersection of Race and Sex: A Black Feminist Critique of Antidiscrimination Doctrine, Feminist Theory and Antiracist Politics." 156.

3.. Mohanty, Chandra Talpade. "Under Western Eyes: Feminist Scholarship and Colonial Discourses." *Boundary 2*, 12/13, 1984, pp. 333–358.

To provide a snapshot of feminism in Ethiopia today, data was collected through the observation of and participation in Setaweet events in Addis Ababa and through semi-formal interviews.⁴

Critiques and Limitations

The prominent critique of feminist movements and women's organizations has been the resistance of the term feminism. In Ethiopia, due to previous movements and the history of marginalization, Setaweet has been pegged as an "elite" woman's organization. However, most of these critiques come from women and men who have not engaged with the organization directly or attended any events that it has sponsored or organized. Also, there is evidence that suggests that this initial observation has more to do with lingering feelings of inferiority than actual exclusion. However, conducting academic sessions in English was clearly exclusionary. The English language is used in much of academia in Ethiopia making Setaweet's aim at change curriculum and media representation extremely relevant and important. Many, if not all, of the participants of this study, including the women I observed in Setaweet, countered this critique through their own experiences but were not blind to the threat posed by the use of English. In my own experiences and despite popular notions, I saw Setaweet abide by the intersectional reach that it stands for. The interviews conducted and analysis of the events point towards Setaweet being a movement for the everyday Ethiopian woman. As one participant said:

The greatest strength [of Setaweet] is bringing women together however, on the contrary, its weakest point is that it is not ALL women who are brought together; this is because our circles attract a lot of privileged women. I would like to see a more representative coalition of women and not just privileged women. I would love it if we included more illiterate and uneducated women from the city. We could tell them about feminism and that it shouldn't be an abstract thing and at the same time learn their perceptions. The big challenge for everyone in doing this is breaking down the concepts of feminism in a way that they can understand and identify with, regardless of her level of education; we should be able to do this.

The participant quoted above was speaking on the challenges in reaching marginalized groups of women such as rural women, domestic workers, sex workers and women that are illiterate or have little to no formal education. As women who are often times economically disadvantaged, these women are marginalized twofold and invisible in Ethiopian society. All of the participants spoke on the necessity of incorporating a strategy to bring these women into Setaweet. All of the participants also spoke on the importance of conducting sessions, activities and events in local languages so as to not deter, alienate, or intimidate women who did not receive a formal education.

The Setaweet Way advocates for emancipatory knowledge:

Monthly Setaweet Events: Setaweet Circle

On May 20, 2017/12/12 Genbot 2009, ten days after returning to Addis, I visited the Setaweet headquarters in the Commet Building located in the Haya-Hulet neighborhood of central Addis Ababa.⁵ I participated in my first Setaweet Circle event, a women-only discussion group held on the second Tuesday of every month. The schedule was set so that members that do not have immediate access to computers or e-mail know that they can show up with confidence that an event will be taking place on that day. Setaweet Circle is where I got a glimpse of what I would be a part of for the next three months. The discussion topic that evening happened to be about the most taboo subject for a population of repressed and silenced Ethiopian women - menstruation. It was a Saturday evening and there were about 5-7 women present. The participants varied

4. It is important to note here that in this thesis, and in Ethiopia, for myself and the women involved in Setaweet, The Setaweet Way stands in for Ethiopian Feminism.

5. This is the Amharic equivalent of that date. I utilize this tool of writing both dates as a decolonizing methodology.

in race, ethnicity, age, and religion. What unfolded was a surprisingly transparent and disarming exchange about the first time we had our periods. Although the topic of periods is not as taboo in the United States as it is in Ethiopia, it still isn't a commonly discussed topic in my experience. This discussion served as my welcome and validated that I was indeed in the right place; a revolutionary and transformational space for transparent and forward-thinking women.

My experience as a young girl growing up in Ethiopia was similar to that of many. Women on their periods were considered dirty, sinful, and often discouraged from appearing in public places, especially the church. Even after immigrating to the United States, periods were never discussed in my home but there was an understood silence about it. At the age of 12, I hid my blood-stained underwear from my mother because I was afraid of the consequences. My mother did not reprimand or scold me but I was never made to feel that I could discuss such intimate issues out loud, not even with her. This experience and memories of being teased about periods by boys in both continents made discussing this topic openly at the Setaweet Circle a truly unexpected experience.

This revolutionary feeling that I had was echoed by the participants of this study who expressed feeling similarly after their first introduction to Setaweet. One of the first interviews I conducted was with a young woman who has been involved in Setaweet for about 3 years, shortly after the movement began. She shared:

I participated in every circle and open session that Setaweet had. It was a new circle for me and I never missed an event. I found something that I didn't find in my home, family, friend circles, or school. These circles had important conversations that nourished me intellectually, something that I've never experienced. For me, this was a serious change and I liked it!

For women who reside in the capital, Addis Ababa, the possibility of education and upward mobility is far greater than it is for women in rural areas. However, even in the city, young women have to fight to be taken seriously and have their opinions taken into consideration. It is still common to find both young and old men and women who relegate a woman's place to domesticity. Ethiopian women are not commonly encouraged to engage in discussions about politics, current events (outside of "gossip"), or the exchange of ideas. For those women who have tried to engage in such discussions, the Setaweet circle offers an inviting energy that is rooted in sisterhood, solidarity, honesty, and a safe space to voice concerns.

In my experience as an Ethiopian woman, I found that the first meeting served as a safe space where the women treated each other as sisters, regardless of their individual backgrounds. The more I participated in the different events and engaged with the Setaweet staff, the members, and their extended network, the stronger the feeling of revolutionary action grew inside of me. After a full introduction to the rest of the team on the Monday following my first Setaweet circle, I became part of the Setaweet team as a Research Activist. Because of the synergy and active role I took as part of the staff for the duration of my feminist fieldwork externship, I will intentionally use our/we/us when referencing the organization from this point forward.

The next Setaweet Circle took place on Tuesday, June 13, 2017/ 6 Senay 2009. It was titled the "Critical Analysis of Women's Representation in Advertisement" and presented by Setaweet member, Firaol Belay. The discussion was based on her thesis at Addis Ababa University Graduate School.

The first woman to join us for the event walked in around 5:30 PM, this gave myself and the other Setaweet staff a sense of elevated hope for a good turnout for the evening. Traditionally, punctuality is not a common practice in Ethiopia and events can be negatively impacted by this norm. However, as the night progressed, women from all walks of life joined to embark on a journey through discussion based on fellowship, friendship, learning, growth and networking. It was an eye opening and enriching engagement about our role as women in resisting the negative stereotypes about women that is consistently presented in both Ethiopian and international mainstream media. This Setaweet Circle was both informative and engaging and inspired participants to participate in other Setaweet programs. During this much needed presentation, important dialogue followed about why there seems to be a consistent representation of women that is limited to the home and not as independent individuals in their own spaces. Many of the

women in attendance were vocal and posed lots of questions. One woman asked the group why there was a problem with the hegemonic representation of women as domesticated caretakers and how that could be harmful for her or other young women who may not necessarily choose that life path. The presenter responded to this question by stating that the “hegemonic women’s identity is linked with family and home, this reinforces the patriarchy using our tradition(s) as the guardians of these norms.” Belay was adamant about noting that it is not the women who chose to be wives and mothers that are the issue but rather that the only overt option that many Ethiopian women have or are presented is the domestic sphere.

One of the pillars by which Setaweet aims to create an ideological change throughout Ethiopia, as it pertains to women, is through challenging our representation in the media. This event addressed this sharing academic research conducted by scholar and Setaweet member and providing the space for her to lead a much-needed discussion. “Media does not simply reflect or mirror reality, media creates and re-presents a new reality” shared Belay. If Ethiopian women want to bring the change we want to see in our country then we must challenge images and ideology that are harmful or do not benefit us.

The Setaweet way challenges oppressive images, ideologies and behavior wherever they may be:

On the second Tuesday of following month, July 11, 2017/4 Hamle 2009, another Setaweet member shared a presentation at the Setaweet Circle. Enguday Alemayehu presented her recently defended masters thesis titled “Reflections from a Feminist Classroom and the Need for Curriculum Change”. It investigated the impacts of having feminist curriculum in the classroom, especially in classes offered by the Gender Studies Department at Addis Ababa University. In this session, members discussed the necessity of cultivating and encouraging critical thinking skills for young Ethiopian women, not only in classrooms, but also in life in general. Alemayehu posed the question “what would change if classrooms were more egalitarian and harnessed a safe space for critical thinking?”. Classrooms in Addis Ababa, despite being in the capital city where modernity is to be expected, there are still a lot of oppressive instructors and peers when it comes to women and education. Women are often discouraged from voicing their opinions and the shamed or punishment for being wrong has deep social and academic ramifications. Alemayehu presented her finding that “students who were treated as experts in the knowledge they choose to share had less fear of authority and were more open to engage in dialogue.”

At Setaweet, both of the points that Alemayehu posed have found space to flourish. Setaweet is a space that promotes egalitarian and non-hierarchical modes of expression, stimulates intellectual dialogue and ultimately aspires to inspire critical thinking and growth in perspective. It is a space of encouragement that allows women to share their thoughts, feelings and questions without the fear of being ridiculed. Setaweet has garnered a unique reputation for promoting feminist pedagogy in academic and social events in a culture of repression and sensitivity to disagreement or opposing views.

Having Setaweet members present their own research and information in these circles provides members with a space for practicing presentation skills, sharpening answers to questions, and working on their overall professional development. These skills are useful for upward mobility because they enhance not only the presenter’s soft skills but also the soft skills of the participants who are carefully listening, asking questions and engaging in critical discussion. Both sessions were in English but Amharic translation was made available. Being that academia in Ethiopia is in English, presenters had the task of also making their presentations understandable for women from all walks of life. Setaweet seeks to decolonize knowledge by using Amharic, the national language, in discussions, particularly for non-academic presentations where English is not necessary. Fears of language limitations plays an integral part in the decision-making process when participants and other women consider joining Setaweet. I will discuss this in more detail later in this chapter.

The Setaweet Way fosters dialogue with the Ethiopian Community: Setaweet Open Sessions:

In addition to the monthly Setaweet Circle events, Setaweet also opens up the space to include men in its monthly event called the Setaweet Open Sessions. In July, Setaweet, along with an organization called The Yellow Movement, held an event titled “A Conversation with Male Feminists” in a classroom at Addis Ababa University. Hearing Ethiopian men speak on why we need feminism and doing so in Amharic to a room full of both young women and men was a promising and uplifting conversation. While the resistance to feminism comes from both women and men, Ethiopian men display a more aggressive and negative attitude towards feminism. This is due to the misconception that feminism advocates for the subjugation of men rather than equality of the sexes. This event highlighted that there is in fact a population of Ethiopian men that are either self-identified feminists or feminist allies in conveying the message of equality to the broader community. The men spoke about the experiences of growing up male in the Ethiopian society and how it has caused them to adopt sexist ideals: one even shared that “sexism is in me”. They also spoke on the importance of being self-reflective about their intentions and actions, especially those that directly affect women. There was great debate about how feminism is not a rejection of Ethiopian culture but a method for heading towards greater equality for both men and women. The panelists also spoke about how socialization hurts men in Ethiopian society as well, especially pertaining to pressures of being the breadwinner and/or the pressure to display a certain kind of masculinity. The panelists dispelled the notion that feminists are trying to subjugate men or that feminist women hate men. It is not common to find Ethiopian men that are allies or speak out on women’s issues so having Ethiopian men share in these discussions in solidarity is revolutionary and a necessary part of the Setaweet initiative.

This session was followed by a highly attended discussion led by a prominent member of the community and Setaweet ally, Semeneh Ayalew, a PhD Candidate who presented his Doctoral dissertation titled “Women, Popular Modernity and The Ethiopian Revolution (1940-70). Ayalew’s dissertation unpacked the role women played during a critical period of Ethiopian history where he coins the term ‘cultural brokers’. Despite the fact that the contributions of Ethiopian women is unrecognized, Ayalew shared that Ethiopian women, like Mary Armade, were active participants in historical events and the formation of Ethiopian culture.⁶ “History and culture are interpreted and modernity is translated by the modern institutions of culture” said Ayalew.

The event was informative and shined a light on new ways of exploring Ethiopian history. To make it even better, it was presented by an Ethiopian man who displayed the utmost respect and understanding for women’s issues in Ethiopia. This was a pleasantly uplifting in contrast to the constant objection I get from Ethiopian men on women’s issues.

Ayalew said that “women, cultural brokers, culture benders, culture breakers, and vanguards of modernity are integral to all progress! Their stories need to be told!”. Setaweet is a women’s organization, however, we realize that feminism benefits us all and that alliances with men are beneficial to the end goal of greater equality. After the presentation, the floor was opened for comments and questions that ended up going beyond our allowed time; this confirmed the interest and need for more of these types of discussions. I found this to be common at all Setaweet led or sponsored events. One of the participants in an interview shared her experience at this event; it was the first Setaweet event she had the opportunity to attend.

“I loved the presentation about the women’s popular modernity movement. I grew up going to a German school then lived in a German environment and because of this, I never knew or learned much about Ethiopian history. Learning about the huge impact Ethiopian women had in our history was an eye-opener because... I just never knew... and knowing is very empowering.”

6. An Ethiopian folk singer from the 1930s to the 70s and one of the few female business owners of her time, Armade openly discussed her opinions and pushed cultural norms and provided a space for Ethiopian women’s sexual liberation.

The lack of education on Ethiopian women's important roles and contributions throughout history that the interviewee spoke on is the reason Setaweet aims towards creating an ideological transformation through curriculum changes in the Ethiopian education system. Like the woman quoted above, Ethiopian women and men rarely learn about the positive contributions Ethiopian women have made throughout history. For those who can get a private education, the history they learn is almost always exclusively Western. The lack of women representation coupled with the often times Western focused education system, the stories and contributions of Ethiopian women will be lost unless curriculum changes in the education system are implemented. Incorporating a gendered curriculum into the Ethiopian educational system is part of Setaweet's mission.

The Setaweet Way celebrates culture and tradition but knows these are not static and should not be harmful to women:

While there are some references in academia to the matrilineal and pastoral societies of Ethiopia, the dominant social hierarchy is highly traditional and patriarchal. Bisewar writes that “within this hierarchy, women are relegated to the bottom. They are expected to show the utmost respect and submission to their husbands, a trend that has also found justification in religion and has been maintained for centuries”.⁷ Submission, self-sacrifice, and silence are the perceived attributes of a virtuous woman and any emergence of behavior outside of these attributes can be detrimental to one's social standing in the community. These strict gender roles are emphasized through an even stricter socialization processes and then validated through the community that serves as the “identity police.” The expectation to fulfill gender roles becomes an unspoken norm for Ethiopian women and opposition to it is usually negative.

In my interviews, I wanted to understand what experiences led to the interviewees to feminist consciousness and their involvement with Setaweet. The interviewees were similar in age, education, language, religious background and in their feminist journey. Their stories touched on the resistant and, at times, oppressive attitudes displayed by family members that showed them how much an ideological shift needs to happen in Ethiopia.

All but one of the participants spoke about family members and common practices at home that disadvantage Ethiopian women and young girls. The challenges women faced in their household growing up is a common topic in the monthly Setaweet Circle events. The women expressed the weight of having to always bear the household chores while their brothers did not. Many women also had mothers who adhered to this way of running the household and often discouraged boys when it comes to cleaning or cooking; the presence of a male in the kitchen is even banned in many households. These experiences played a critical role in how some of the participants were pushed to find other ways to understand the world. One participant shared:

“I used to be more of an organic feminist. I would fight for women naturally, always questioning or pointing out places and people who were sexist or oppressive. More specifically, during a family gathering one night, my uncle expressed a sentiment that is usually heard around Ethiopia, he said ‘it is because she is a woman that she is behaving like that!’ to which I responded ‘what is the matter with her being a woman? Does her vagina diminish her skill-sets?’”

The participant quoted above was reflecting on the common dismissal of women in the work place or public spaces. If an Ethiopian woman is seen reacting emotionally way or challenging the views and contribution of men in the workplace, her actions are seen as hostile, unwelcome, and less than the appropriate, accepted behavior. Men and women alike make assumptions that her period, children or husband at home, or other factors can contribute to a woman's “clouded” judgment and inability to complete a given task. The notion that a woman's response is fueled by emotional triggers dismisses her contributions.

7. Bisewar, 105

The social capital of family is one that is held very high in the Ethiopian society. Notions of virtue and what makes a “good” Ethiopian woman are oftentimes in stark contrast to mainstream notions of what feminism is. For these reasons, coupled with the patriarchal norms engrained in the dominant religions (Ethiopian Orthodox and Islam), Ethiopian women come across a lot of push back and backlash from their own families when they exercise agency in search of self-emancipation or seek circles like Setaweet.

The youngest participant was an 18 year old girl. She recounted one of the early experiences that ignited her feminist consciousness. At the time of this experience, she was about 12 years of age. She described a chilling yet common experience of being harassed and stalked by a man that her and her friends had hired to take pictures at a birthday pool party. After meeting her and taking the pictures, the photographer began to stalk and harass the interviewee and went as far as showing up at her school. It got so bad her mother had to take the photographer to court and file a formal complaint to make him leave her daughter alone. Going to court is not a common consequence that most men who are guilty of harassment or harmful behavior have to face in Ethiopia. Completely ignorant to the fact that his actions could be seen as threatening, the photographer claimed that he was in the right to pursue her because she was wearing a swimsuit that made her look older than 12 years old. The opinion of women and children in Ethiopia is oftentimes violently repressed; this has aided in the complete disregard or utter denial of the women’s point of view. Despite her mother taking him to court, her mother was still angry that her daughter was taking pictures in swim wear.

“My mom asked me why I would take a picture in a bikini. That really got to me and for like a year I didn’t go swimming and my head was all messed up from this experience. I got into feminism and read about self and victim blaming and realized that was what was happening to me and my peers.”

In Ethiopia, as well as in most places, whenever a woman experiences sexual harassment or abuse, the response is to question what she was wearing or doing to provoke the assault. Women are expected to navigate the world without provoking men and expect that men will respond with harassment or aggression if they are either dressed provocatively, speak out against a man, or stay out too late. The feminist discourse on victim-blaming put a name to what she endured and validated her feelings and experience.

This same participant also remembers a different incident involving the domestic worker in her family’s home. She was supposed to give the domestic worker money to buy something from the neighborhood store but she forgot to give her the money. When she went to meet the worker at the store, she observed the neighborhood kids saying obscenities they would never say to her or her younger sister. In that moment, she was made aware that her social class safeguarded her from the misogynist and abusive comments the neighborhood boys said to her domestic worker. After running back home to tell her mother what was said, she was met again with what she now knows to be victim blaming.

“My mother asked ‘why does she go to the store a lot then?’ to which I responded ‘she could go there a thousand times a day but they have no right to say that to her!’ My mom said this is how it has always been and that it will never change. But I believe it will change. One hundred years ago none of this (pointing to the buildings) was here so it will change!”

The participant and I laughed with a tinge of sadness that feminism is, at the end of the day, just the radical notion that women are people. We laughed about the mutual understanding between Ethiopian women who would like walk to and from places whenever they wanted without being harassed or risk being met with violence. We looked at each other with the deep belief that a new day was coming.

Yesayt Geber/ Women (“pink”) tax

The next theme will address another economic and psychological effect of being a woman in Ethiopia, “Yesayt Gebir” or “Pink tax”. Yesayt Gebir is equivalent to the Western term “Pink tax”.⁸ In a popular article titled “‘Pink Tax’ Forces Women to Pay More Than Men”, the Pink Tax, “so named because of the color of products directly marketed to girls and women, refers to the price difference for female-specific products compared with the gender-neutral goods or those marketed to men”.⁹ Women are on average paid less than men and then expected to pay more than their male counterparts for many products. The same article further explains that “price discrimination adds another layer to the wage inequality women face, making it harder sometimes for women to make ends meet”.¹⁰ The implications of the pink tax in the West and Yesayt Gebir in Ethiopia, further contributes to the feminization of poverty observed around the world.

Not only do Ethiopian women pay more for goods while being paid less in the workplace, gebir (or tax) is also in affect through the lack of service in public restaurants, banks, or traditionally non-feminine stores, the refusal of entry into prominent hotels and meeting places without the presence of an accompanying man and often being considered available and/or a sex worker if not accompanied by a male at all times. For women who constantly face this long list of discrimination and oppression, life can be psychologically taxing in many ways.

Setaweet provides the space to air these grievances amongst understanding peers and contributes to their wellness by letting them emotionally unpack and not hold it all in. Demeaning comments and practices are very common in most gathering places in Ethiopia. Personally, all of my memories as a young girl at gatherings include sexist, ethnocentric, and indecent comments and ideas about the world and women’s place in it. The Setaweet gatherings I participated in all provided a different reality than the culturally oppressive reality of Ethiopia that at times can seem unbeatable. Spaces like Setaweet offer a different narrative for Ethiopian culture and are evidence of what we able to achieve.

The Setaweet Way understands that solidarity is political:

Accepting the term feminist and unapologetically asserting it is a means of resistance and a source of pride for Setaweet. We align with other feminist movements globally and know there are benefits of doing so while acknowledging the contextually specific means of intervention that women in Ethiopia need in their lives. We find it useful to take up the term “feminist” and align with global movements in the formation of transnational feminist solidarity. We uplift and validate the necessity of voicing individual, contextual stories and experiences and draw out the common patterns in the oppression women faced globally. This transnational feminist solidarity has a voice on social media. This medium has been integral in both my own and our participant’s ability to articulate our needs and find support.

The Setaweet way is audaciously hopeful about the future for Ethiopian women:

I got a chance to ask the participants the hard question; how can we achieve a shift in Ethiopian culture that aims to uplift women. While the answers varied, there were many similarities. This next section explains what the young participants are seeking from organizations like Setaweet to secure a promising future for women in Ethiopia. The youngest participant said that “consciousness change will happen when we realize the long-term dreams we have put together.” Another participant articulated some of these long-term goals.

8. Gebir is the Amharic word for “tax.”

9. Ngabirano, Anne-Marcelle. “‘Pink Tax’ Forces Women to Pay More than Men.” USA Today, 2017

10. ibid

“For me, making it inclusive is important. I would like to see Setaweet chapters in areas of Ethiopia outside of Addis Ababa and I believe we can actually achieve this goal! I mean, we could do different workshops. But in order to be sustainable, we need to bring awareness and advocacy to every region. We need to develop curriculum and modules in different languages. There are 9 regions in Ethiopia; I want to see a Setaweet chapter in each. Multiple if we can!”

The young lady quoted above was born and educated in Addis Ababa and her work takes her to rural areas of Ethiopia. She is already engaged in the work that has transformed her life and others. Her case study shows once again that feminism is not a western concept and that feminism, in consciousness and action, is very much alive in contemporary Ethiopian woman. Her statement below is where she envisions Setaweet going next.

“I want to see it [Setaweet] grow, I want to see a day where we book our sessions 6 months in advance, have proper T.V. and radio representation and even our own programming. I want to express our vision to higher level officials like the Ministers of Gender, Education, and Media. I want us to work with the government in implementing curriculum in grade schools and universities across Ethiopia. These are my long-term dreams.”

“I think it [Setaweet] should be geared towards making it as mainstream as possible. It is crucial that it is accessible to everyone here in the city and in every part of the country. Also, I would like to see classes for learning self-defense techniques. There is a lack of communication amongst women’s organizations and at times we forget that other people are also trying to do similar things. Thinking that you are alone is a problem. I would like to see more coalition-building with women’s organizations in the future.” shared another participant.

“I believe in storytelling, putting the stories out there, putting pressure on the government to be as serious as possible on punishing the guilty so that justice is actually served. Also, rape is often followed with trauma and addressing that should be another program we should be involved in” said another participant.

The hope that both the interviewees and other Setaweet women have, their vigor to be involved in bringing forth a transformation, and their commitment to the work despite its many challenges calls for the formation transnational solidarity with other feminists who are engaged in this work globally. Their positive outlook is a stark contrast to archaic notions that culture is static and beyond reform. While there are many people who don’t believe these changes can happen, these young women of Setaweet are committed to doing the work that will ultimately benefit the most cynical of people.

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መብታችንን መዳፍ







በዋግ ኸምራ ብሄረሰብ አስተዳደር
የወሊድና የጋብቻ ሥነ-ሥርዓት
ወቅት በሴቶች ላይ አሉታዊ
ተጽእኖ ያላቸው ድርጊቶች



በዋግ ኸምራ ብሄረሰብ አስተዳደር የወሊድና የጋብቻ ሥነ-ሥርዓት ወቅት በሴቶች ላይ አሉታዊ ተጽእኖ ያላቸው ድርጊቶች

በአፀደ ተፈራ (ዶ/ር)¹

አኅጽሮተ-ጽሑፍ (Abstract)

የዚህ ጥናት አላማ በዋግ ኸምራ ብሄረሰብ አስተዳደር የወሊድና የጋብቻ ሥነ-ሥርዓት ከዋኔ ወቅት በሴቶች ላይ አሉታዊ ተጽእኖ ያላቸውን ድርጊቶች ለመግለጽና ለመተንተን ነው። በዚህ የብሄረሰብ አስተዳደር ላይ ጥናቴን እንዳከናውን ያነሳሳኝ ምክንያትም በአካባቢው የባህል ጥናት (Folklore) ላይ በዚህ ርዕስ የተጠና ጥናት አለመኖሩና አሉታዊ ተጽእኖ ያላቸው ድርጊቶች ከዘመኑ ነባራዊ ሁኔታ ጋር የማይጣጣሙ መሆኑ ነው። ጥናቴ ዓይነታዊ ሲሆን፤ መረጃው የተሰበሰበውም በቃለ መጠይቅ፤ በምልከታ፤ በቡድን ተኮር ውይይትና ሰነድ ፍተሻ ነው። የመጀመሪያ ደረጃ መረጃ (Primary Data) የተሰበሰበው ከመጋቢት 2004 እስከ የካቲት 2007 ዓ.ም በተለያዩ ጊዜያት በተካሄደ የመስክ ቆይታ ነው። ስለአካባቢው ዳራና ስለፎክሎርና፤ (አፈታሪክ) ስርዓተ-ጾታ የተዛማጅ ጽሁፎች ቅኝት አድርጌያለሁ። የጥናቴ ግኝት እንደሚመለከተው በሴቶች ላይ የሚከናወኑት ጎጂ ልማዳዊ ድርጊቶች ምክንያት የአካባቢው ሴቶች በአዎንታዊ አድል (affirmative action) የተፈጠረላቸውን የትምህርት እድል በአግባቡ መጠቀም አለመቻላቸው ነው። ለዚህ በውሳኔ ሃሳብነት የተገለጸው ስርዓተ-ጾታን በሚመለከት በተዋረድ የሚገኙ አካላትን እና ማህበረሰቡን ማስተማር እንደሚያስፈልግ ነው።

ቁልፍ ቃላት (Key words) - ጎጂ ልማዳዊ ድርጊት፤ ስርዓተ-ጾታ፤ ወሊድ፤ ጋብቻ፤ አዎንታዊ አድልዎ፤ አሉታዊ ድርጊት

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መግቢያ

የአማራ ክልል አስራ አንድ የአስተዳደር ዞኖች ይገኙበታል። እነዚህም ሰሜን ጎንደር፣ ደቡብ ጎንደር፣ ምዕራብ ጎንደር፣ ምስራቅ ጎንደር፣ ሰሜን ወሎ፣ ደቡብ ወሎ፣ ሰሜን ሸዋ፣ የባህር ዳር ከተማ ልዩ ዞን፣ የአዊ ብሄረሰብ፣ የኦሮሚያ ብሄረሰብ እና የዋግ ኸምራ ብሄረሰብ አስተዳደር ናቸው።² ይህ ጥናት የተከናወነው በዋግ ኸምራ ብሄረሰብ አስተዳደር ነው። በማእከላዊ ስታትስቲክስ ኤጀንሲ (2003: 24) መረጃ መሰረት የዋግ ኸምራ ብሄረሰብ አስተዳደር ስፋት 9039.04 ካሬ ኪሎ ሜትር ነው። ብሄረሰብ አስተዳደሩ እስከ 1998 ዓ.ም ድረስ በሶስት ወረዳዎች ማለትም ድሃና ወረዳ፣ ሰቆጣ ወረዳና ዝቋላ ወረዳ የተከፈለ ነበር። ከዚያ ወዲህ ግን በሶስት ወረዳዎችና በአንድ የከተማ አስተዳደር ተከፍሏል። ይህ ጥናት የተካሄደውም በስድስቱ የገጠር ወረዳዎች ላይ ነው። የዚህ ጥናት አላማ በዋግ ኸምራ ብሄረሰብ አስተዳደር የወሊድና የጋብቻ ሥነ-ሥርዓት ክዋኔ ወቅት በሴቶች ላይ የሚፈጸመው ጎጂ ልማዳዊ ድርጊቶችን መግለጽ ነው።

የጥናቱ ዘዴና የመረጃ መሰብሰቢያ መሳሪያዎች

አንድ ጥናት በሶስት ዘዴዎች ሊቀርብ ይችላል። በዓይነታዊ፣ በመጠናዊ ወይም በጥምር ዘዴ (ክሬስዌል 2009:3-4)። የጥናቱ ዘዴ አይነታዊ ነው፤ ይህን ዘዴ የመረጥኩበት ምክንያትም ቶምሰን (2011:78) እንዳሰፈሩት፣ አንድ ጥናት የሚከናወነው የአንድን ሁኔታ ፍች ወይም አንድ ሁኔታ በተወሰኑ የሰዎች ማህበራዊ ተራክቦ ላይ የሚኖረውን ገጠመኝ ለመረዳት ከሆነ፣ ትክክለኛው የጥናት ዘዴ ዓይነታዊ ዘዴ ነው።

አንድ ተመራማሪ ለጥናቱ በግብዓትነት የሚያገለግሉትን መረጃዎች የሚሰበስቡባቸው የተለያዩ መሳሪያዎች አሉ። ይህም እንደ ጥናት አይነቱ የሚወሰን ቢሆንም፣ ዋና ዋና የሚባሉት ምልክታ፣ ቃለ-መጠይቅ እና ጽሑፋዊ መጠይቅ ናቸው (ፈቃደ፣ 1991፣ 90)። እነዚህን መሳሪያዎች እንዳስፈላጊነቱ በተናጠል ወይም በጥቅል መጠቀም ይቻላል። ተመራጩ ግን አጣምሮ መጠቀሙ ነው፤ እኔም መረጃ የሰበሰብኩት በምልክታ፣ በቃለመጠይቅ፣ በቡድን ተኮር ውይይትና በሰነድ ፍተሻ ነው።

መረጃውን የሰበሰብኩት የመጀመሪያ ደረጃ እና ሁለተኛ ደረጃ ምንጮችን በመጠቀም ነው። የመጀመሪያ ደረጃ ምንጮችን የሰበሰብኩትም ከመጋቢት 2004-የካቲት 2007 ዓ.ም ሲሆን አራት ጊዜ ወደ የጥናቱ ቦታው የመስክ ጉዞ በማድረግና እና ለሰነድ ስት ወራት ያህል በዚያው በመቆየት፣ ተፈጥሯዊ እና አርቲፊሻል መቼቶችን በመጠቀም ነው። ዋናው ግን ተፈጥሯዊ መቼት ነው፤ ምክንያቱም Wilson (1989:242) እንደገለጹት ከሌላዎቹ የትምህርት መስኮች ይበልጥ ፎክሎር በተፈጥሯዊ መቼት መታየት ስላለበት ነው። በዚህ አውድ መረጃ የሰበሰብኩትም አምስት የወሊድ እና አስር የጋብቻ ሥነ-ሥርዓቶች ላይ ምልክታ በማድረግ ነው።

ክለሳ ድርሳን

የጋብቻ ዓይነቶች

በሴቶች ላይ አሉታዊ ተጽእኖ ከሚያደርጉ ድርጊቶች መካከል አንዱ በጋብቻ ሥነ-ሥርዓት ወቅት የሚከናወኑ ድርጊቶች ናቸው። ስለዚህ ድርጊቶቹን ከመግለጹ አስቀድሞ ስለ ጋብቻ ምንነት መግለጽ አስፈላጊ ነው። የአማራ ብሔራዊ ክልላዊ መንግስት የቤተሰብ ህግ አንቀጽ አስራ አንድ ጋብቻን እንደሚከተለው ይበይነዋል፤ ጋብቻ ማለት ለአካለ መጠን የደረሱ አንድ ወንድና አንዲት ሴት ለዘለቄታው አብሮ በመኖር ሃሳብ በራሳቸው ነፃ ምርጫ በሕግ ለመዋሃድ ፈቅደው በይፋ የሚመሠርቱት ግንኙነት ወይም በዚሁ ግንኙነታቸው አማካኝነት የሚዋቀር ሕጋዊ ተቋም የሚወሰን ነው። የጋብቻ አይነት በተለያዩ መንገዶች ሊገለጽ ይችላል፤ ዋናው የሚጋቡ ሰዎችን መጠን ወይም ጋብቻው የሚከናወንበትን የስርዓት አይነት በመለኪያነት በመውሰድ ጋብቻን በአይነት መክፈል ነው Randall (1988) የሚጋቡ ሰዎችን መጠን መለኪያ በማድረግ ጋብቻ በሁለት ሊከፈል እንደሚችል አስፍረዋል፤ እነዚህም Monogamy አንድ ለአንድ ጋብቻ፣ ማለትም አንድ ወንድ ለአንድ ሴት ወይም አንድ ሴት ለአንድ ወንድ ብቻ፣ Polygamy ደግሞ ብዙ የትዳር ጓደኛ መኖር ሲሆን ይህም በሁለት ይከፈላል፤ Polyandry አንድ ሴት ከሁለት ወይም ከሁለት በላይ ከሆኑ ወንዶች ጋር ጋብቻ መፈጸም፤ እና Polygyny አንድ ወንድ ከሁለት ወይም ከሁለት በላይ ከሆኑ ሴቶች ጋር ጋብቻ መፈጸም ናቸው። በዋግ ኸምራ ማህበረሰብ ዘንድ በብዛት የሚፈጸመው የጋብቻ ዓይነት አንድ ወንድ ለአንድ ሴት፣ አንዲት ሴት ለአንድ ወንድ ጋብቻ ነው።

በሌላ በኩል በተጋቢዎች መፈቃቀር ወይም የቤተሰብ ህግ አንቀጽ ስድስት የጋብቻ ስምምነትን በሚመለከት፣ «ህጋዊ ጋብቻ መካሄድ ያለበት ሁለቱ ተጋቢዎች የተሟላና ነጻ ስምምነታቸውን ሲሰጡ ብቻ ነው» ቢልም በቤተሰብ ብቻ ፈቃደኝነት ጋብቻ

2. አበባው፣ 2001፣ 3

ሊፈጸም ይችላል። በዋግ ኸምራ በብዛት የሚፈጸመው የጋብቻ ዓይነት በቤተሰብ ብቻ የሚወሰን ጋብቻ ነው።

ጾታና ሥርዓተ-ጾታ

በዚህ ጽሁፍ በሴቶች ላይ አሉታዊ ተጽእኖ እያደረሱ የሚገኙት ድርጊቶች ከስርዓተ-ጾታ ጋር የተያያዙ ናቸው። ስለዚህ ስለምንነቱና በኢትዮጵያ ስለሚከናወነው ሥርዓተ-ጾታዊ እርምጃዎች ማንሳት ተገቢ ነው። በተለያዩ ምንጮች ሰፍሮ እንደምናገኘው፣ ተፈጥሯዊ ጾታ እና ሥርዓተ-ጾታ የተለያየ ሀሳብ የሚገለጽባቸው ቃላት ናቸው። ለአብነት ያህል ከሚከተለው ምንጭ እንደሚከተለው ተገልጿል፤

ተፈጠሯዊ ጾታ የሚያመለክተው በወንዶችና በሴቶች መካከል የሚታየውን ስነ-ፍጥረታዊ (Biological) ልዩነት ነው። ሰዎች በተፈጥሮ ወንድ ወይም ሴት ሆነው ሲወለዱ ያሏቸው አካላዊ ልዩነቶች የተፈጥሯዊ ጾታ ገጽታ ናቸው። ሥርዓተ ጾታ የሚገልጸው በወንዶችና በሴቶች መሃከል የሚገኙ ማህበረሰብ-ሥሪት የሆኑ ልዩነቶችን ነው። ይህም ለወንድና ሴት የታዎች ማህበራዊ ትርጉም የሚያሰጥና በማህበረሰቡ የተፈጠሩ ሚናዎችንና ኃላፊነቶችን የሚያጠቃልል ነው። ³

ለዚህ ነው⁴ ሥርዓተ ጾታ ማለት አንድ ማህበረሰብ ወንዶችን እና ሴቶችን ለመለያየት የሚጠቀምበት ባህል ተኮር ነው ያሉት። አስከትለውም ህብረተሰቡ ይህንን የወንድና የሴት ምደባ የሚያደርገው ከተለያዩ እይታዎች አንጻር መሆኑን እንደሚከተለው አስፍረዋል፤ የሥርዓተ ጾታ ልዩነቱ ከህብረተሰቡ ማህበራዊ፣ ርዕዮተ ዓለማዊ እና ኢኮኖሚያዊ ሁኔታ ጋር የተያያዘ ነው። በዚህም መሰረት የወንዶች ደረጃ የሚለካው የእርሻ ስራውን በሚገባ በማከናወኑ እናቤተሰቡን በትክክል በመምራቱ ነው። ሴቷ ደግሞ የምትለካው በቅድሚያ በወላድነቷ ሲሆን በሁለተኛ ደረጃ ደግሞ ብቁ ሚስት መሆኗ ማለትም የሴት ስራዎቿን በሚገባ ማከናወኗ፣ ባሏንና ልጆቿን መንከባከቧ፣ ከዚህም በተጨማሪ ለአማኞቿ ታማኝ መሆንና ከባሏ ቤተሰቦች ጋራ ስላማዊ ሕይወት መምራት የምትችልና ተባባሪ የሆነች በመሆኗ ነው።⁵

ይህ ሥርዓተ-ጾታዊ የሥራ ክፍፍልም ሴቶችን ወደ ኋላ ያስቀረና ከወንዶች ጋር እኩል እንዳይራመዱ እያደረገ የሚገኝ ነው። ይህም በሃገራችን ባለፉት ሥርዓቶች በሰፊው ይንጸባረቅ እንደነበር ሲገለጽ ሴቶች ላይ አሉታዊ ተጽእኖ የሚያደርጉ የጾታ እኩል አለመሆን የሚያንጸባርቁ ሁኔታዎች በሃገራችን ለረጅም ጊዜ ስር ሰዶ የነበረ ሲሆን ይህም በባህላዊ ሁኔታዎች፣ በተቋማትና የተለያዩ ህጎች ታግዞ ነው።⁶ ይህ የሥርዓተ-ጾታ ልዩነት በድርጊት ብቻ ሳይሆን በስነ-ቃላት በተለይም በምሳሌያዊ አነጋገሮችም ይገለጻል። ለአብነት ያህል፣ ሴት ካለች በዓመት ወንድ ካለ በእለት፣ የሴት አገሯ ባሏ፣ ማደሪያዋ አመሏ፣ ሴትን ያመነ ጉም የዘገነ፣ ሴት ከበዛ ጎመን ጠነዛ፣ ሴት ብታውቅ በወንድ ያልቅ፣ ሴት አግብተው ሴት ቢወልዱ የት አለ ንግዱ፣ ሴት ከመውለድ ይሻላል ማስወረድ፣ ሴት አዋቂ ትወልዳለች እንጂ ራሷ አታውቅም፣ መስራት ነው ወንድነት ማውራት ነው ሴትነት፣ ወዘተ...የሚሉትን መጥቀስ ይቻላል።

እነዚህ ስነ-ቃላት የተሸከሙትን በወቅቱ የሴቶችን የበታችነት የሚያመለክት ድርጊትና ከወንዶች ጋር እኩል እንዳይሆኑ እንቅፋት የነበሩ ድርጊቶች ሳቢያ የተፈጠረውን ክፍተት ለመሙላትና የሴቶችን መብት ለማስከበር እንዲቻልና በሀገራችን ለዘመናት ተንሰራፍቶ የነበረውን የሴቶች ተጽእኖ ለማስቀረትና እኩልነታቸውን ለማረጋገጥ እንዲቻል በኢ.ፌ.ዴ.ሪ ህገ መንግሥት አንቀጽ 35 ተራ ቁጥር አንድ ውስጥ እንደሚከተለው ሰፍሮ እናገኛለን። ሴቶች ይህ ሕገ መንግሥት በአረጋገጣቸው መብቶችና ጥበቃዎች በመጠቀም ረገድ ከወንዶች ጋር እኩል መብት አላቸው፤ ሲል ቀደምት ጉዳታቸውን ለማካካስና በተሻለ ሁኔታ እንዲገኙ ለማበረታታ እንዲቻል፤ በተራ ቁጥር 3 ደግሞ «ሴቶች በበታችነትና በልዩነት በመታየታቸው የደረሰባቸውን የታሪክ ቅርስ ከግምት ውስጥ በማስገባት ይህ ቅርስ እንዲታረምላቸው በተጨማሪ የድጋፍ እርምጃዎች ተጠቃሚ መሆን መብት አላቸው» ይላል። (አጽንኦት የራሴ) በዚህም በአሁኑ ጊዜ ለሴቶች አዎንታዊ አድሎን (affirmative action) እየተደረገላቸው ነው። አዎንታዊ አድሎ ማለት የሴቶችንና በዝቅተኛ ደረጃ ላይ የሚገኙ የህብረተሰብ ክፍሎችን በታሪክ አጋጣሚ ተገልለው ከነበሩበት የቅጥር፣ የትምህርት፣ የባህል ውክልና ከፍ ለማድረግ የሚከናወን አዎንታዊ ሂደት ነው።

ይህን በሚመለከት World book Encyclopedia እንደሚከተለው አስፍሯል። «አዎንታዊ አድሎ ማለት ከአንድ ማህበረሰብ መካከል የተወሰነውን ለይቶ ልዩ ትኩረት የመስጠት ፖሊሲ ነው። ይህም በቅጥር፣ በትምህርት፣ በስራ፣ በአመራርና በሌሎች መስኮች ሊሆን ይችላል፤ አዎንታዊ አድሎ የሚከናወነው በአድሎ ምክንያት የተጎዱ የማህበረሰብ ክፍሎችን ለመጥቀም ነው» በኢትዮጵያ ለሴቶች አዎንታዊ አድልዎ ለማድረግ እንዲቻል ብሄራዊ የሴቶች ጉዳይ ፖሊሲ ተነድፏል።ፖሊሲው በአላማነት

3. አካዳሚያልፎርኤዲኬሽናልደቪሎፕመንት Academy for Educational Development, ማህበረሰብ አልተገለጸም፡ 14-15

4. Guday, 2005: 11

5. Guday, 2005: 95

6. ጸሐፊው ስም አልተገለጸም፤ ጆንደር ሜንስትራሚንግ :2004,58

ካሰፈራቸው መካከል«...ለዘመናት ስር ሰዶ የቆየውን በጾታ ላይ የተመሰረተ ባህላዊና ልማዳዊ አድሎአዊ አስተሳሰብ ደረጃ በደረጃ ማጥፋትና ሴቶች በውሳኔ ሰጭነት ከዝቅተኛ እስከ ከፍተኛ መንግስታዊ ስልጣንና አስተዳደር ውስጥ በብዛት ተካፋይ እንዲሆኑ ማድረግ»⁷ የሚል ይገኝበታል፡፡

በሴቶች ጉዳይ ሚ/ር(2008) እንደተገለጸው በመንግስት እየተተገበረ ያለው አዎንታዊ አድሎ (affirmative action) ሴቶችን በትምህርትና በስራ እድል ለማበረታታት አንዱ መሳሪያ ነው። ይሁን እንጂ የዋግ ሴቶች ያለፈ ክፍተታቸውን በአዎንታዊ አድሎ ተግባራት ለማሻሻልና ከወንድሞቻቸው ጋር እኩል ተሳታፊ እንዲሆኑ ከማበረታታት ይልቅ ባለፉት ዘመናት ወደኋላ ያስቀሯቸው የነበሩ ድርጊቶችን በመቀጠል ላይ ናቸው፤ ይህ ደግሞ ሴቶች የስነ-ልቦና ጫና እንዲያድርባቸው ያደርጋል። Hobbler (2011) እንደገለጸው ሴቶች ካልተበረታቱ የልማት ሂደቱ ከፊል-ይሆናል።ምክንያቱም በአሁኑ ጊዜ በኢትዮጵያ ህዝብ ግማሽ ቁጥሩን የያዙት ሴቶች ናቸው።

ይሁን እንጂ ባለንበት ዘመንም ሴቶች ላይ አሉታዊ ተጽእኖ የሚያደርሱ ድርጊቶች በመፈጸም ላይ ይገኛሉ። ይህንንም⁸ ሲገልጹ፣ የኢትዮጵያ ህገ መንግስት፣ ፖሊሲዎችና ህጎች የጾታ እኩልነትን ያበረታታሉ፤ይሁን እንጂ በኢትዮጵያ በተለይም በገጠሩ ማህበረሰብ ቦታ እየተሰጠው አይደለም። በመሆኑም በህገ መንግስቱና በህጉ በአንድ በኩልና በገጠሩ ልማድ መካከል ክፍተት አለ ብለዋል። ይህ ከሚገለጽበት አንዱ ባህል ነው።ይህንን አስመልክቶ David (2011) እንደገለጸው፣ ፖለቲከኞች ወንዶችን ለአመራር እንዲመርጧቸው ያደረጋቸው፣ ባህል ሴቶችን ዝቅ አድርጎ ስለሚመለከት ነው። ባህል ሴቶችን ዝቅ አድርጎ ለመመልከቱ ማሳያ ከሆኑት ነገሮች አንዱ በዚህ ጥናት የተዳሰሰው በወሊድና በጋብቻ ሥነ-ስርዓት ወቅት በመከናወን ላይ ያሉ ጎጂ ልማዳዊ ድርጊቶች ናቸው። ጎጂ ልማዳዊ ድርጊቶች በሰው ልጅ ጤንነት ላይ ጉዳት የሚያደርሱ፣ የፖሊቲካዊ፣ ማህበራዊ እኩልነት ግብንና የኢኮኖሚ እድገት ሂደትን የሚያደናቅፉ ናቸው።⁹ ከባህል ባህል፣ ከማህበረሰብ ማህበረሰብ፣ ከክልል ክልል መጠኑ ቢለያይም በኢትዮጵያ በጎጂ ልማዳዊ ድርጊት ከሚጠቁት በ50% የሚሆኑት ሴቶች ናቸው። የኢትዮጵያ ሴቶች በተለየ መንገድ የጎጂ ልማዳዊ ድርጊት ተጠቂዎች ናቸው።¹⁰ከዚህ የምንረዳው በኢትዮጵያ ከወንዶች ይልቅ ሴቶችን የሚያጠቁ ጎጂ ልማዳዊ ድርጊቶች መኖራቸውን ነው።የዚህ ጥናት አብይ ዓላማም በዋግኸምራ ብሄረሰብ አስተዳደር ፡በወሊድና በጋብቻ ስነስርዓት ክዋኔ ወቅት በሴቶች ላይ የሚያርፉ ጎጂ ልማዳዊ ድርጊቶችን መግለጽ ነው።

በዋግ ኸምራ ብሄረሰብ አስተዳደርም በዞን፣ በወረዳና በቀበሌም ደረጃ ሴቶች አዎንታዊ ድጋፍ እንዲያገኙ የሚያስችሉ መዋቅሮች ቢኖሩም፣ በወጉ ተግባራዊ ባለመሆናቸውና ማህበረሰቡ የአስተሳሰብ ለውጥ እንዲያመጣ ባለመደረጉ በወሊድና በጋብቻ ሥነ-ሥርዓቶች ክዋኔ ወቅት በሴቶች ላይ አሉታዊ ተጽእኖ የሚያደርጉ ጎጂ ልማዳዊ ድርጊቶች በመፈጸም ላይ ናቸው። እነዚህንም በቅደም ተከተል እንመለከታለን።¹¹

የመረጃ ትንተና፣ ግኝት፣ ምክረ ሀሳብና ማጠቃለያ

በጋብቻ ሥነ-ሥርዓት ክዋኔ ወቅት በሴቶች ላይ የሚፈጸሙ ጎጂ ልማዳዊ ድርጊቶች

በዋግ ኸምራ ብሄረሰብ አስተዳደር በወሊድ ሥነ-ሥርዓት ክዋኔ ወቅት ብቻ ሳይሆን በጋብቻ ስነስርዓት ወቅትም፣ በሴቶች ላይ አሉታዊ ተጽእኖ ያላቸው በርካታ ጎጂ ልማዳዊ ድርጊቶች ይፈጸማሉ፤በተለይም በገጠሩ ጋብቻ የሚፈጸመው በቤተሰብ ወሳኝነት ነው። ለዚህም የወንድ ቤተሰብ ልጁን ለማሳጨት ሲፈልግ ወደ ሴቷ ቤት ቢያንስ ሶስት ጊዜ ሽማግሌዎችን ይልካል፤ እነዚህም የመጀመሪያው የሽማግሌዎች ጉዞ ወደቤት ገብተው ስለማይስተናገዱ፣ ምንም አይነት ስጦታም ይዘው ስለማይመጡ፣ ደጅ መርገጫ (በኸምጣሻ ቢዘ ደደነው) ይባላል። ሁለተኛው ደግሞ ለመጨረሻው ደጅ ጥናት ቀጠሮ የሚሰጥበት ነውና ቀን መቅጠሪያ (በኸምጣሻ ግርዶ ቻጽረነው) ይባላል። የመጨረሻው ደግሞ ለእጮኝነት ጥያቄው ከሴቷ ቤተሰቦች ለሽማግሌዎቹ የእሽታ መልስ የሚሰጥበት፣ በሶስተኛው ቀን መቁረጫ (በኸምጣሻ ግርዶ ቻጽረነው) ይባላል። በእነዚህ የሽማግልና ምልልሶች ወቅት ሴቶች በቤት

7. World book Encyclopedia 1986 5

8. Guday 2005:11

9. WHO, 2010

10. EDHS, 2011

11. በዋግኸምራ-ብሄረሰብአስተዳደርከሚገኙሰባትወረዳዎችመካከልጥናቱየተመለከተውስድስቱንየገጠርወረዳዎችነው። የሰቆጣከተማአስተዳደርን አልተመለከተም፡፡

አመልካችነት ወይም ያልታጩት ልጅ መኖሩን በመግለጽ በጠቋሚነት እንጂ ሽማግሌ ሆነው አይሄዱም፤ የሚሄዱት ወንዶች ብቻ ናቸው። በቃለ መጠይቅ መረጃ የሰጡት ሰዎች፣ ሴቶች ሽማግሌ ሆነው የማይሄዱበትን ምክንያት አስመልክተው እንደሚከተለው ብለዋል።

ድሮ ደብር ከደብር የወንዝ ልጅ ስለሚባል አይጋቡም ነበር፤ የሚጋቡት ወንዝ ተሻግረው ነበር፤ ይህም ወንዱ በሚኖርበት አካባቢ ችግር ቢፈጠር፤ የተሻገረበት አካባቢ በመደበቂያነት ያገለግል ነበር። ስለዚህ ሽማግሌዎች ሩቅ ቦታ ጉዞ ያደርጋሉ። ሴት ግን ሩቅ ተጉዛ ፣ ወንዝ ተሻግራ ለመሄድ ስለማትችል ሽማግሌ መሆን አትችልም። ይህ ብቻ አይደለም ሽማግሌዎች ወደ ሴቷ ቤት በመጀመሪያው ቤተሰቦቿን ሲጠይቁም የተጠያቂዋ ልጅ እናት ለሽማግሌዎች በሚሰጠው መልስ አትሳተፍም፤ ከቤቷም አትወጣም፤ ከቤት ወጥቶ መልስ የሚሰጠው አባት ወይም አሳዳጊ የሆነው ወንድ ነው። ምክንያቱም ሴቶች ወጥተው መልስ መስጠት፤ በአካባቢው ያልተለመደ ባህል እንደ ሆነ ነው። በቃለ መጠይቅ መረጃ የሰጡት ሰዎች የገለጹት፤ አለመለመዱም ወሳኙ አባት እንጂ እናት እንዳልሆነች ያመለክታል።

ሌላው ቦታብቻ ሥነ-ሥርዓት በሴቶች ላይ አሉታዊ ተጽእኖ የሚያደርገው ጎጂ ልማዳዊ ድርጊት ያለ እድሜ ጋብቻ ነው። በዋግ ኸምራ ሴቶች ለአቅሙ-ሐዋን ሳይደርሱ እንዲጋቡ ይደረጋል። ለዚህ እንደ አንድ ምክንያት የሚጠቀሰው የተጋቢ ቤተሰቦች በእድሜ የገፉና ህመምተኛ ከሆኑ «የልጄን አለም ሳላይ እንዳልሞት» በማለት በልጅነታቸው በመዳራቸው ነው። ሌላው ምክንያት ደግሞ ለሴት ልጅ ትምህርት የሚሰጠው አነስተኛ ግምት ነው፤ ከምትማር ትዳር እንድትይዝ የማድረግ ከፍተኛ ፍላጎት አለ።

በዋግ ኸምራ የወንድ እንጂ የሴት ሙሽራ ሚዜ የላትም። በሰርጓ እለት የምታስውባት ከቀየዋ የምትገኝ አግብታ ያልፈታች እና ባንድ ባል የጸናች ወይም የካህን ሚስት የሆነች ናት። ጓደኛዋ መሆን አትችልም፤ ምክንያቱም ለስዋ የመምረጥ ነጻነት አይሰጣትም። ለማጋገፍ ሲባልም በሰርጓ እለትም ቢሆን በአብዛኛው አትቀመጥም፤ እንዲያውም በድግሱ ስራ ትጠመዳለች፤ ሚዜ ቢኖራት ኖሮ እነዚህ ስራዎች በሚዜዎች ይሰሩ ነበር። አሷም ታርፍ ነበር። ይሁን እንጂ የነበረው ማህበረሰባዊ አመለካከት ድጋፍ ና አክብሮቱ ለወንድ እንጂ ለሴት ባለመሆኑ ወንዱ የሚያጋጧትና የሚንከባከቡት እንዲሁም በርካታ ስራዎችን የሚሰሩለት ሚዜዎች ሲኖሩት ሴቷ ግን ሚዜ ሳይኖራት በሰርጓ እለትም ላይ ታች እንድትል ትገደዳለች።

ምንም እንኳ ከቅርብ ጊዜ ወዲህ በሰርግ አንዳንድ የሴት የሚባሉ ስራዎች (ጠላ ከጋን መቅዳት፣ ወጥ በጎላ መስራት፣ ከወንዝ ውሃ መቅዳትና ሊጥ ማብካት) በወንዶች ሲሰሩ ብመለከትም፤ አብዛኛዎቹ የድግሱ ስራዎች የሚሰሩት ግን ማህበረሰቡ ስራዎቹን ለወንድና ለሴት ብሎ በከፋፈለው መስረት ነው። ይህም አብዛኛውን የስራ ጫና በሴቶች ላይ የሚያሳርፍ ነው።

በዋግ ኸምራ ለሰርግ ደጋሽ ብር ሲሰጥ (ሲመረቅ) የሚሰበሰበው በአዋጅ ነጋሪ ነው። አዋጅ ነጋሪ መሆን ያለበትም ወንድ ነው፤ ምክንያቱን በቃለ መጠይቅ መረጃ የሰጡት ሰዎች ሲገልጹ፤ በባህላችን ሴቶች አዋጅ ነጋሪ አይሆኑም። ይህም ስራው በብዙ ሰዎች መካከል ተቁም የሚሰራ በመሆኑና ሴትም እንደዚህ አይነት ህዝብ በተሰበሰበበት ቦታ መካከል ላይ ተገኝታ ስራውን ለመስራት ልምዱ ስለሌላት ነው፤ ስራውም የወንድ ስራ ተብሎ የተመደበ ስለሆነ ማህበረሰቡም ስላልፈቀደላት ነው።

በሰርግ ድግስ አመጋገብ ወቅት ሴቶችና ወንዶች ባንድ ላይ አይመገቡም፤ ወንዶች ለብቻ ሴቶች ለብቻ ነው የሚመገቡት። ሴቶች ለምን ለብቻቸው እንደሚመገቡ አንድ በቃለመጠይቅ መረጃ የሰጡት ሰዎች ሲገልጹ፤ « ምክንያቱም ወንዱ እንጀራውን ወደ አፋ ለመውሰድ እጁ ፈጣን ነው፤ ሴቶች ግን ትንሽ ትንሽ ስለሚቆርሱና ቀስ ብለው ስለሚበሉ ይጎዳሉ፤ ብዙ ብዙ እንጀራ ጠቅለል አድርገው እንዳይጎርሱም ወንዶቹን ያፍሯቸዋል።

ሴቶች ለብቻ መመገባቸው እንዳያፍሩና ነጻነት እንዲሰማቸው ለማድረግ ሲባል ነው። ቢባልም፤ ዋናው ምክንያት ግን ሴቶች ከወንዶች ጋር በእኩል ቦታ እንዳይቀመጡ ለማድረግ ነው። ምክንያቱም እንደተመለከትኩት ዳሱ ጠባብ ከሆነ ወንዶች ዳስ ውስጥ ሴቶች ግን ከዳስ ውጭ መመገባቸው ለወንዶች አክብሮት መቸርን፤ ለሴቶች ደግሞ አክብሮት መንፈግን የሚያመለክት፤ በሴቶች ላይ ስነ-ልቦናዊ ጫና የሚያሳድር ጎጂ ልማዳዊ ድርጊት ነው።



ሴቶች ከዳስ ውጭ ሆነው ሲመገቡ የሚያሳይ ፎቶ (በክፍል)¹²

በቃለ መጠይቅ ያገኘሁት መረጃ እንዳመለከተው፤ ሙሽራዋ በሰርጓ እለት ትንሽ መቅመስ እንጂ ብዙ አንድትመገብ አይፈቀድላትም። ምክንያቱም በብቅሎ በምትጓዝበት በመንገድ ላይም ሆነ በወንድ ቤተሰብ የመጸዳጃ ቦታ ጥያቄ እንዳታቀርብ ሲባል ነው። ምክንያቱም ብዙ ብትመገብና መጸዳጃት ብትፈልግ « በቅሎውን አቁሙልኝ ልጸዳዳ » ብላ የመጠየቅ ድፍረት የላትም፤ አስተዳደሩም ይህንን የድፍረት የሚመስል ስብእና እንድታዳብር አላደረጋትም። ይህ የምግብ ክልከላ በእሷ ላይ ተጽእኖ የሚያደርግ ድርጊት መሆኑ ግልጽ ነው። ምክንያቱም የምትመገባት አነስተኛ ምግብ በስራ ተጠምዳና ስትለፋ ለዋለችው ሙሽራ ተመጣጣኝ ባለመሆኗም ለረሃብም ትዳረጋለች።

ሌላው ጎጂ ልማዳዊ ድርጊት ተጋቢዎች ጎጆ የሚወጡት በወንድ ቤተሰብ ቤት እንጂ በሴት ቤተሰብ ቤት አለመሆኑ ነው። በሴት ቤተሰብ ቤት ጎጆ ከወጡ፤ ወንዱ «እንደ ደረቆት ቁልቁል ገባ (በኸምጣኝ አውርሳ) ያስብለዋል። ምክንያቱም የተዘወተረው የሙሽራዎች የጎጆ መውጪያ አካባቢ ሴት ወደ የወንድ ቤተሰብ በመሄድ እንጂ፤ ወንድ ወደ የሴት ቤተሰብ አካባቢ በመሄድ አይደለም። ቁልቁል የሚለውም ቃል የሚያመለክተው ወደ ታች ዝቅ ማለትን ሲሆን ዝቅተኛዋ ሴቷ፤ ከፍተኛው ደግሞ ወንዱ መሆኑን በግልጽ ያሳያል።

ስለዚህ ሴት ልጅ ወደ ወንድ ቤተሰብ ሂዳ ጎጆ መውጣት ቀደም ሲል በምሳሌያዊ ንግግር የተመለከትነውን «የሴት አገሯ ባሏ፤ ማደሪያዋ አመሏ» የሚለውን የሚገልጽ፤ ሴትን በጥገኛነት የሚመድብና ነጻነት የሌላት መሆኑን የሚያመለክት ነው።

በወሊድ ሥነ-ሥርዓት ክዋኔ ወቅት በሴቶች ላይ አሉታዊ ተጽእኖ ያላቸው ልማዳዊ ድርጊቶች

በዋግ ኸምራ ብሄረሰብ አስተዳደር በወሊድ ሥነ-ሥርዓት ክዋኔ ወቅት በሴቶች ላይ አሉታዊ ተጽእኖ ያላቸው በርካታ ልማዳዊ ድርጊቶች ይፈጸማሉ፤ እነዚህ ድርጊቶች መፈጸም የሚጀምሩት ሴቷ ገና ነፍሰ-ጡር እያለች ከሚከናወን የምግብ ክልከላ ነው። በአካባቢው ነፍሰ-ጡር ሴት እንዳትበላ ከምትከለከላቸው የምግብ አይነቶች መካከል ጥራጥሬዎች ይገኙባቸዋል፤ እነዚህ ደግሞ ገንቢ ምግብ ከሚባሉት የምግብ ዓይነቶች ውስጥ የሚመደቡ ናቸው። እነዚህ የምግብ አይነቶች እራሷንና ጽንሱን ለምትመገበው ነፍሰ-ጡር ሴት እጅግ በጣም አስፈላጊ ናቸው። ለዚህም ነው (Gunday) ሴቶች ነፍሰ-ጡር ከማይሆኑበት ወቅት ይልቅ ነፍሰ-ጡር በሚሆኑበት ወቅት አመጋገባቸው ከፍ ያለ መሆን አለበት፤ የእረፍት ጊዜ ሊኖራቸው ይገባል፤ ማህበረሰባዊ ድጋፍና ጥሩ አካባቢ ያስፈልጋቸዋል ያሉት።¹³ አንዲት ነፍሰ-ጡር ሴት ገንቢ ምግብ ካልተመገበች እራሷንም ጽንሱንም ጉዳት ላይ ትጥላለች። ሴቶችን በልማድ ምግብ መከልከል በጎጂ ልማዳዊ ድርጊትነት የሚጠቃለል መሆኑንና የሚያስከትለውን ችግር በመግለጽ Kouyate (2009:3) እንደሚከተለው አስፍረዋል።

12. መሃል ላይ የሚገኙት ወጣት ወንዶች ወጥ አውጭዎች (ጨለፊዎች) ናቸው።

13. Gunday, 2005:87

የምግብ አይነቱ ማለት ለአንድ የተወሰነ ማህበረሰብ ክፍል፣ በተለይም ለሴቶችና ለሕጻናት፣ በልማድ ምግብ እንዳይወስዱ ማስገደድ ነው። እነዚህ ምግቦች ደግሞ እንደ እንቁላል፣ ስጋ፣ አሳ የመሳሰሉ አስፈላጊ ምግቦች ናቸው። እነዚህን ምግቦች የማይወስዱ የምግብ እጥረት ያጋጥማቸዋል፤ የሚወልዱትም ልጅ ከብድቱ አነስተኛ የሆነ፣ ለበሽታ የተጋለጠና አንዳንድ ጊዜም ለሞት የሚጋለጥ ሊሆን ይችላል።¹⁴

ከዚህም ሌላ በአካባቢው ነፍሰ-ጡሯ የመውለጃዋ ጊዜ ሲደርስ ድፍድፍና ገንፎ እንዳትበላ ትከለክላለች፤ ምክንያቱም ድፍድፍና ገንፎው ከህጻኑ/ኗ ጭንቅላት ተለጥፎ ይገኛል ተብሎ ስለሚታመን ነው። ይህም የሚያመለክተው እናት የምትመገበው ምግብ በቀጥታ ወደ ጽንሱ እንደሚሄድ ተደርጎ የሚታሰብ መሆኑን ነው። ይሁን እንጂ እነዚህ ምግቦች ወደ ጽንሱ የሚሄዱት አስፈላጊው የመፍጨት ሂደት ተካሂዶ በእናት እትብት አማካይነት ነው። ስለዚህ ትክክለኛ ባልሆነ ግንዛቤ ነፍሰ-ጡሯ ሴት አስፈላጊ የሆነ ምግብ እንዳታገኝ ይደረጋል። ሌላው፣ በወሊድ ሥነ-ሥርዓት ወቅት በሴቶች ጎጂነት የሚጠቀሰው ልማዳዊ ድርጊት ደግሞ፣ አንዲት ነፍሰ-ጡር ሴት የመጀመሪያ ልጇን በወላጅ እናቷ ቤት መውለድ አለባት የሚባለው ነው። ለዚህም በምክንያትነት የሚጠቀሰው ለእንክብካቤ ሲሆን፣ አራሷ የሚያስፈልጋትን ደፍራ መጠየቅ የምትችለው ከባእድ (ከአማቷ) ይልቅ ወላጅ እናቷን ነው። የወደፊት አመጋገቧን በሚመለከት ጥንቃቄ እንድታደርግም እናቷ ምክር ትለግሳታለች። እናቷ ያላረሰቻት አራስ ደሟን (በወሊድ ወቅት የፈሰሰባትን) አትተካም (ሰውነቷ አይጠገንም) ይባላል። ለዚህም ያግዛት ዘንድ የመውለጃዋ ቀን ሲደርስ ከምትኖርበት የወንድ ቤተሰብ ቤት ወደ እናቷ ቤት እንድትሄድ ይደረጋል። የመውለጃ ቀኗን አሳስታ ከራሷ ቤት ብትወልድ እንኳ፣ ወላጅ እናቷ መጥታ ወደ ቤቷ ትወስዳታለች እንጂ ከወንድ ቤተሰብ ቤት እንድትታረስ አታደርጋትም።

እንደ በቃለ መጠይቅ መረጃ የሰጡኝ አቀባዮቼ አገላለጽ፣ ነፍሰ-ጡር ሴት የመጀመሪያ ልጇን ወደ እናቷ ቤት ሄዳ እንድትወልድ የሚደረገው «ለኩራትና ለእንክብካቤ፣ በላችም አልበላችም እናት ደሞዜ»፤ ስለሆነ ነው። አንዳንዶች ደግሞ ለዚህ ተግባር በምክንያትነት የሚገልጹት ሴት ልጅ አብዛኛውን ጊዜ የምትፈልገውን በግልጽ መናገር ይከብዳታል፤ ለዚህ ደግሞ አማቷንና እናቷን እኩል አታያቸውም፤ አማቷን ታፍራታለች፣ ትፈራታለች፤ እናቷን ግን አታፍራትም፤ አትፈራትም፤ ልክ እንደ አራሷ ስለምታያት የምትፈልገውን ሁሉ በግልጽ ትጠይቃታለች፤ ደም የነካና የሚታጠብ ልብስ ወይም እቃ ሲኖርም፣ እናቷ ያለ መጸየፍ ታጥብሳታለች። በደንብም ታሳርሳታለች የሚል ነው። ይሁን እንጂ ይህ ልማድ ሴቶች በቤት ውስጥ እንዲወልዱ እንደ አንድ ምክንያት ሊወሰድ የሚችል ነው። ምክንያቱም ከትትል ስታደርግበት የነበረው የጤና ተቋም የሚገኝበት ቦታና እናቷ የምትገኝበት ቦታ የተለያየ ከሆነ አልፎም የጤና ተቋም የማይገኝበት ከሆነ ነፍሰ-ጡሯ በወሊድ ወቅት ችግር ሊያጋጥማት ይችላል። ምክንያቱም በአንድ ጤና ጣቢያ ከትትል ያደርጉ የነበሩ ነፍሰ-ጡሮች ወደ ሌላ ቦታ በሚሄዱበት ወቅት በሄዱበት የጤና ተቋም የሚገኝ የጤና ባለሙያ ስለቀደምት ሁኔታቸው ስለማያውቅ በቂ ድጋፍ ሊያደርግላቸው አይችልም። ስለዚህ ልማዳዊ ድርጊቱ ሴቶች በወሊድ ምክንያት ለህልፈት እንዲዳረጉ ያደርጋል።

ሌላው ግርዛትን የሚመለከትነው፤ የሴት ልጅ ግርዛት በኢትዮጵያ ጎጂ ልማዳዊ ድርጊቶች ከሚባሉትና ሴቶችን ከሚጎዱት መካከል አንዱ ነው። ይህ ድርጊት የሚፈጸመውም በባህሉ ልጅቷን ለመጥቀም ሲባል ቢሆንም ጉዳት እንዳለው በተለያዩ ጥናቶች ተገልጿል፤ ለአብነት ያህል (Kouyate, 2009) እና Boyden and A፣ አሉላ ፓንክረስት፣ ይሳቅ ተፈራ፣ 2012) ያለ እድሜ ጋብቻ እና የሴት ልጅ ግርዛት ከጎጂ ልማዳዊ ድርጊቶች መካከል የሚካተቱ መሆናቸውን አስፍረዋል።

በዋግ ኸምራ ግን በሁሉም ቦታ የሴት ልጅ ግርዛት አሁንም ይፈጸማል። የግርዛት ጊዜው ግን ወጥ አይደለም፤ በደጋውና በቆላው የተለያየ ነው። በደጋው ሴትም ወንድም የሚገረዙት በተወለዱ በሰባተኛው ቀን ነው። ይህንንም ቃለ መጠየቅ የሰጡ የመረጃ አቀባዮቼ እንደሚከተለው ገልጸውታል፤

ሰነፍ እናት ካልሆነች በስተቀር ወንድ ልጇን ለማስገረዝ፣ ከሰባት ቀን ማሳለፍ የለባትም፤ ምክንያቱም ቆዳው እንዳይገረዝና ነፍስ አውቆ ቁስሉን እየነካካ ማልቀስ ከጀመረ፣ ወደፊትም አልቃሻ ይሆናል ተብሎ ስለሚታመን ነው። በግርዛት ጊዜም ሶስት ትንንሽ ቂጣ (ቋቋቴ) ይጋገርና ቁስሉን በዚያ ተኮስ ተኮስ አደርጎ ለውሻ ይሰጣል። «የውሻ ቁስል ያደርግልኝ/ህ» ይባላል። ውሻው ቂጣውን ከበላው ቁስሉ ቶሎ ይድናል ተብሎ ይታመናል። ከዚያ ልብስ ባልተለበሰበት ከባዶ ጫንቃ (ጀርባ) ላይ ይታዘላሉ፣ ይህም ሽንታቸው ቁስሉን እንዲያደርቅ ያደርጋል ተብሎ ስለሚታመን ነው ። ብለዋል።

የቆላውን በሚመለከት ደግሞ በዝቋላ ወረዳ፣ ጽጽቃ ከተማ ነዋሪ የሆኑት ወ/ሮ ማርያም እንደሚከተለው ገልጸዋል።

«በቆላው ቋሚ የግርዛት ቀን የለም፤ አንዱም ፍየል እስከሚውል (ፍየል ለመጠበቅ እስከሚበቃ) ይቆያል፣ ቁስሉ እንዲድን ቀቀባ የምትባል ቅጠል ቀጥቅጠን ጨምጥጠን (ጨምቀን) እና ኩል ደቁስን ይተመተማል፤ የፍየል ቅልጥም መቅኔም ከቁስሉ ላይ እንቀባለን። ይህም ቁስሉ እንዲደርቅ ያደረጋል። » ብለዋል።

14. Kouyate 2009:3

ሌላው ልማዳዊ ድርጊት የሚከወነው በምጥ ወቅት ነው፤ አንዲት ሴት ምጥ ሲይዛት በርካታ ሰዎች ጭንቀቷን ለመጋራትና ጽንሰ-በሰላም እንዲመጣ ለመማጽን ይሰባሰባሉ። በአቅራቢያዋ እንዲገኙ ወይም ምጥ ወደያዛት ሴት ቤት እንዲገቡ የሚፈቀድላቸው ግን የወለዱ ሴቶች ብቻ ናቸው። ገና ያልወለደች እና መካን የሆነች ሴት ወደ ቤት እንድትገባም ሆነ ካጠገቧ እንድትደርስ አይፈቀድላትም፤ ምክንያቱም በአካባቢው ያልወለዱ ሴቶች «ድፍን ቅሎች» ናቸው ተብሎ ይታመናል። ያልወለደች ወይም መካን ሴት ካሁን በፊት ለመውለድ ሲባል የምጥን ጭንቀት ስላላየች፤ አሁንም ምጥ ለያዛት ሴት የጭንቀቱ ተካፋይ ሆና የምጡ ጊዜ እንዲያጥርና ምጥ የተያዘችው ሴት ቶሎ እንድትወልድ ልታደርግ አትችልም ተብሎ ይታመናል። ይህ ድርጊት ልጅ ባለማግኘት በመከፋት ላይ የምትገኘውን መካን ሴትም ሆነ ገና ያልወለደችውን ሴት ስነ ልቦና የሚጎዳና ከሌሎች ሴቶች እንድትገለል የሚያደርግ ጎጂ ልማዳዊ ድርጊት ነው።

በአካባቢው በወሊድ ወቅትም ወንድን ከፍ፤ ሴትን ደግሞ ዝቅ አድርጎ የሚያሳይ ድርጊት ይፈጸማል፤ ይህም ወላጁ በሰላም በመገላገል፤ ለደስታ መግለጫነት የሚያገለግል እልልታ በሴቶች ይስተጋባል፤ የእልልታው መጠን ግን ለወንድና ለሴት የተለያየ ነው፤ ይኸውም ወንድ ሲወለድ በዛ ተደርጎ ሰባት ጊዜ፤ ሴት ስትወለድ ደግሞ አነስ ተደርጎ ሶስት ጊዜ እልል ይባላል፤ የእልልታው መጠን ከሴት ይልቅ ለወንድ ልጅ ከፍተኛ ስለ መሆኑ በቃለ መጠይቅ ስጠይቅ የተሰጠው ምክንያት የተለያየ ነው፤ አንዳንዶቹ ቀደም ሲል በአካባቢው ወንዶች በዋግ ሹምነት¹⁵፤ በፊታውራሪነት፤ በቀኛዝማችነት፤ ባጠቃላይም በአስተዳደር ስራ ላይ ተሰማርው ይሰሩና፤ የዳኝነት ስልጣን ይዘው ይዳኙ፤ ስለነበር ነው። ከሚለው አመለካከት ጋር የተያያዘ ይመስለናል ሲሉ፤ ሌላዎቹ እንደ ገለጹት ደግሞ ወንድ ሩቅ ቦታ የሚሄድና ወንዝ የሚሻገር ጠንካራ ነው፤ ሴት ግን ብቻዋን ወንዝ መሻገር ስለማትችል ነው ይላሉ። ከእነዚህ የተለዩት ሌላዎቹ ደግሞ፤ የእልልታው መጠን ለወንዶችና ለሴቶች የተለያየው ከአባቶቻችን እና ከእናቶቻችን የወረሰነው ባህል ስለሆነ ነው ይላሉ። ከዚህ የምንረዳው ምክንያቱ ምንም ምን ይሁን የእልልታው መጠን ለሴቶችና ለወንዶች መለያየት ማህበረሰቡ ለሁለቱ ጾታዎች ያለውን አመለካከት ማለትም ሴትን ዝቅ ወንድን ደግሞ ከፍ አድርጎ እንደሚያይ አንዱ ማሳያ ነው።

ከዚህም ሌላ፤ አራሷን እርኩስ መንፈስ እንዳይዛትና ለመጠበቂያነት እንዲያገለግላት ብሎ በማመን፤ በቤቷ በር ላይ መጥፎ ጠረን ያለው ስራ ስር በአዲስ ቅል ተዘፍዝፎ ይሰቀላል፤ ይህን ስራ ስር መዘፍዘፍና ማዘጋጀት ያለበት ወንድ ነው፤ ሴት ከነካቸው ግን ይረከሳል ወይም መጠበቂያነቱ ይሰረዛል ተብሎ ይታመናል። ይህም በሴቶች ላይ አሉታዊ ተጽእኖ የሚያሳርፍ ጎጂ ልማዳዊ ድርጊት ነው።

በልብስ አጠባም ጎጂ ልማዳዊ ድርጊት ይፈጸማል፤ ይኸውም በአካባቢው በወለደች በሰባተኛው ቀን የአራስ ሴት ልብስ በሌሎች ሴቶች ይታጠባል፤ ሴቶቹ ልብሱን አጥበው ከወንዝ ወደ ቤት ሲመለሱ፤ የተለያየ ነገር ይዘው ይመለሳሉ። ይህም የተወለደችው ሴት ከሆነች፤ ወደ ፊት ጎጆ ስትወጣ ከቤተሰቦቿ የምትወስዳቸውን የቤት እቃዎች፤ የሴት እቃዎች የሚባሉት ናቸው። እነዚህም፤ ላክሽም¹⁶፤ እንዝርት፤ ወንፊት፤ ማንዝርዘሪያ፤ ቅል፤ ወስከንቢያ፤ ሙዳይ፤ ከመሳሰሉት መካከል የተወሰኑትን ነው። የተወለደው ወንድ ከሆነ ደግሞ የወንድ እቃዎች የሚባሉት፤ ጠብመንጃ (መሳሪያ)፤ የእርሻ መሳሪያ ወስኮ፤ ማረሻ በአካባቢው ከሚገኝ ስራ ስር፤ ልጥ ወይም ቅጠል አስመስለው በመስራት ያመጣሉ። እነዚህ እቃዎች ቀደም ሲል ማህበረሰቡ የወንድና የሴት ስራዎች ብሎ የከፈላቸውን ስራዎች ማከናወኛ ናቸው፤ ስለዚህ በተፈጥሮ ሳይሆን ማህበራዊ ክፍፍልን የሚያሳይ ስርዓተ-ጾታን የሚያመለክት ነው።

ሕጻኑ/ሐጻኗ ክርስትና ሲነሳ/ሰትነሳም ጎጂ ልማዳዊ ድርጊት ይከወናል፤ እንደሚታወቀው በኢትዮጵያ ኦርቶዶክስ ክርስትና መሰረት ወንድ ልጅ በተወለደ በአርባ ቀኑ፤ ሴት ልጅ በተወለደች በሰማንያ ቀኗ ክርስትና ትነሳለች፤ ይነሳል። ሕጻኑ/ሐጻኗ ክርስትና ተነሳ/ተነሳታ አስነሽዎቹ ወደ ቤት በሚመለሱበት ወቅት የተለያዩ ድርጊቶች ይከናወናሉ¹⁷። ከእነዚህ መካከል አንዱ ክርስትና የተነሳቸውን ሴት ልጅ ያዘለቻት የክርስትና እናት ወደ ቤት ከመግባቷ አስቀድሞ ከወፍጮ ላይ፤ ክርስትና የተነሳን ወንድ ልጅ ያዘለች ደግሞ ወንበር ላይ እንድትቀመጥ ይደረጋል።

15. እኦክ 1966 ዓ.ም በዞኑ (በወቅቱ በዋግ (በአውራጃው) ገዝ የነበሩ ሰዎች መጠሪያ ነው።
16. ከቆዳ በተዘጋጀ መስፊያ ያጌጠች ከቅል የተሰራች የጸጉር ቅቤ መያዣ
17. ይህ ከዋኔ በሌሎች አምነት ተከታዮች አልታዩም ምክንያቱም። በእስልምና መጠመቅ የለም፤ የሌሎች የክርስትና አምነት (ፕሮቴስታንት ተከታዮች ከሌላ ቦታ የመጡ አንጂ የአካባቢው ተወላጆች አይደሉም።



ክርስትና የተነሳችን ሕፃን የክርስትና እናቷ አዝላት ቋት ላይ ተቀምጣ የሚሳይ ፎቶ

ይህም የሚያመለክተው ሴት ልጅ ወደ ፊት በድንጋይ ወፍጮ እህል መፍጨቷ የማይቀር መሆኑን፤ ወንድ ልጅ ደግሞ ስልጣን ላይ የሚቀመጥ መሆኑን የሚያመለክት በወፍጮና በወንበር የተወከለ ተምሳሌታዊ ድርጊት ነው። ስለዚህ ወንበር ላይ መቀመጥ የሚያመለክተው፤ ስልጣን ላይ መቀመጥ የሚገባው ወንድ እንጂ ሴት እንደማትሆን ማህበረሰቡ አሁንም እያመነበትና እያንጸባረቀበት ያለ በሴቶች ላይ አሉታዊ ተጽእኖ የሚያሳርፍ ልማዳዊ ድርጊት ነው።

የጥናቱ ዋና ዋና ግኝቶች

ከጥናቱ የተገኙት ውጤቶች የሚከተሉት ናቸው።

- * በአሁኑ ጊዜ ባለፉት ዘመናት በሴቶች ላይ ይደርሱ የነበሩ ጫናዎች ለማካካስ በርካታ አዎንታዊ አድሎዎች እየተካሄዱ ቢገኙም፤ በዋግ ኸምራ ብሄረሰብ አስተዳደር ግን የስርዓተ-ጾታ ግንዛቤው ከቀደምት ዓመታት የተለየ ባለመሆኑ የተዘረዘሩት ጎጂ ልማዳዊ ድርጊቶች በሴቶች ላይ ይከናወናሉ፤
- * በአካባቢው በሴቶች ላይ የሚተገበሩ ጎጂ ልማዳዊ ድርጊቶች ከትውልድ ወደ ትውልድ እየተላለፉ የመጡ ህጎች ተደርገው የተያዙ ከትምህርት አጥረት የመነጨ ናቸው።
- * ቀደም ሲል በተዛማጅ ጽሑፍ ቅኝት እንደተገለጸው አብዛኛዎቹ በዋግ ኸምራ ብሄረሰብ አስተዳደር በሴቶች ላይ የሚተገበሩት ጎጂ ልማዳዊ ድርጊቶች በኢትዮጵያ በጎጂ ልማዳዊ ድርጊትነት የሚፈረጁ ናቸው።

ምክረ ሀሳብ

በብሄረሰብ አስተዳደር ሴቶችም ሆኑ ወንዶች የስርዓተ-ጾታና የአዎንታዊ አድልዎ ግንዛቤ እንዲኖር ለማድረግ ከዞን አስከ ቀበሌ ተዋቅሮ በሚገኘው የሴቶችና ወጣቶች መ/ቤት ያለማቋረጥ የግንዛቤ መፍጠሪያ መድረክ መፍጠር ያስፈልጋል። ከዞን አስከ ወረዳ ተዋቅሮ የሚገኘው የባህልና ቱሪዝም መ/ቤትም በጎጂ ልማዳዊ ድርጊቶች ላይ ጥናትና ምርምር ማድረግና ጎጂነታቸውን የሚገልጽ የማስተማሪያ መድረክ ማዘጋጀት ይገባዋል። ከዚህም በተጨማሪ ሴቶች በልማቱ ንቁ ተሳታፊ እንዲሆኑ ለማድረግ የሚሰሩ መንግስታዊም ሆኑ መንግስታዊ ያልሆኑ ድርጅቶች ጠንክረው መስራት ይገባቸዋል።

ማጠቃለያ

ከላይ የተዘረዘሩት በዋግ ኸምራ ብሄረሰብ አስተዳደር በሴቶች ላይ አሉታዊ ተጽእኖ በማድረስ ላይ የሚገኙት ጎጂ ድርጊቶች ከትውልድ ወደ ትውልድ እየተሸጋገሩ የመጡና ማህበረሰቡ ይሁነኝ ብሎ የያዛቸው ድርጊቶች ናቸው። እነዚህን ድርጊቶች ማስወገድ የሚቻለው ደግሞ ተከታታይ የሆነ የግንዛቤ መፍጠሪያ መድረክ በማዘጋጀትና ማህበረሰቡ በሴቶች ላይ የሚያስከትለውን አሉታዊ ተጽእኖ እንዲረዳውና እንዲያቆም በማድረግ ነው። ለዚህ ደግሞ በተለይ ሴቶች እንዲበረታቱና አዎንታዊ አድሎ አግኝተው ወንድሞቻቸው በሚደርሱበት ደረጃ እንዲደርሱ ድጋፍ እንዲያደርግ ተብሎ የተቋቋመውና በተዋረድ ከቀበሌ ጀምሮ የሚገኘው የሴቶችና የወጣቶች ጉዳይ መ/ቤትና የባህልና ቱሪዝም መ/ቤት ነው። ካልሆነ በዚህ ሁኔታ ከቀጠለ የህብረተሰቡን ግማሽ ቁጥር ይዞ የምትገኘው ሴት አስፈላጊው ድጋፍና ማበረታታት ተደርጎላት በልማቱና በሀገሪቱ እድገት ላይ ንቁ ተሳታፊና ተጠቃሚ አያደርጋትም።

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